



Republic of the Philippines
SENATE
Pasay City

JOURNAL

SENATE SITTING AS AN
IMPEACHMENT COURT
ON THE IMPEACHMENT TRIAL OF
VICE-PRESIDENT
SARA ZIMMERMAN DUTERTE

IMPEACHMENT TRIAL NO. 9
TUESDAY, 21 JULY 2026

PREPARED BY THE
LEGISLATIVE JOURNAL SERVICE
SENATE OF THE PHILIPPINES

IMPEACHMENT TRIAL NO. 9
Tuesday, July 21, 2026

CALL TO ORDER

At 2:00 p.m., Tuesday, July 21, 2026, the Senate President, Win Gatchalian, with the Senate sitting as an Impeachment Court, called the impeachment trial of Vice President Sara Zimmerman Duterte to order.

PROCLAMATION OF THE SERGEANT-AT-ARMS

The Sergeant-at-Arms, PMGen Alfred S. Corpus, commanded all persons, on pain of penalty, to keep silent while the Senate is sitting for the trial of the Articles of Impeachment against Vice President Sara Zimmerman Duterte.

PRAYER

Sen. Panfilo "Ping" M. Lacson led the prayer, to wit:

Let us all pause for one-minute of silent prayer for humility, wisdom, neutrality, and fairness.

In the Name of the Father, and of the Son, and of the Holy Spirit. Amen.

ROLL CALL

Upon direction of the Senate President, the Clerk of Court, Atty. Renato N. Bantug Jr., called the roll, to which the following senator-judges responded:

Aquino, B.	Marcos, I. R.
Cayetano, A. P. S.	Padilla, R.
Cayetano, P. S.	Pangilinan, F. N.
Ejercito, J. V.	Sotto III, V. C.
Escudero, F. G.	Tulfo, E. T.
Gatchalian, W. T.	Tulfo, R. T.
Hontiveros, R.	Villanueva, J.
Lacson, P. M.	Villar, C. A.
Lapid, M. M.	Villar, M. A.
Legarda, L.	Zubiri, J. M. F.



With 20 senators present, the Chair declared the presence of a quorum.

Senator-Judge Go was also present.

Senator-Judges Estrada and Marcoleta were under detention and unable to attend.

Senator-Judge Dela Rosa was absent.

In accordance with the Rules of Procedure on Impeachment Trials, Senate President Gatchalian recognized the duly-elected Presiding Officer, Senator-Judge Francis "Chiz" G. Escudero, to preside over the proceedings of the Impeachment Court.

DEFERMENT OF THE APPROVAL OF THE JOURNAL

At the instance of the Presiding Officer, there being no objection, the Body deferred the approval of the *Journal* on Impeachment Trial No. 8 (July 20, 2026) pending the submissions of the senator-judges' manifestations. He ruled, however, that regardless of the submissions, the Court would be approving the *Journal* before the end of the day's trial and the parties would be furnished with a copy thereof in view of the Counsel for the Respondent's request for an official copy of the previous day's rulings in order to afford them sufficient time to avail of remedies in relation to yesterday's ruling on the subpoena of financial documents.

He added that the late submissions would only form part of the transcripts and would no longer be included in the previous day's *Journal*.

CALLING OF THE CASE

Upon direction of the Presiding Officer, the Clerk of Court called Case No. 004-2026, titled "*In the Matter of the Impeachment Trial of Vice President Sara Zimmerman Duterte.*"

APPEARANCES

The Presiding Officer directed the parties to enter their appearances.

Representative Gerville Luistro entered the appearances previously entered, on behalf of the Prosecution.

Atty. Mark Vinluan entered the same appearances on behalf of the Respondent.

PRESENTATION OF WITNESS

Representative Luistro, called on Atty. Melvin Matibag, Director of the National Bureau of Investigation (NBI), to the witness stand, after which the Clerk of Court administered his oath.

REMINDER OF THE PRESIDING OFFICER

The Presiding Officer reminded the witness to refrain from making public statements concerning individual members of the Court that may impinge upon the independence or integrity of the Court or the senator-judges, without prejudice to any investigation he may be undertaking. He further informed the witness that the statements of Senator-Judge Cayetano (A) and Senator-Judge Cayetano (P) made on July 15 regarding the witness's statements and the video presented before the Impeachment Court would be referred to the Senate, as a legislative body, through the Committee on Rules, for proper disposition.



DIRECT EXAMINATION OF THE WITNESS

Representative Luistro proceeded to make the following offer and direct examination of the witness:

Representative Luistro: Your Honor, we are offering the testimony of witness NBI Director-Attorney Melvin Matibag to prove the following:

- 1) *Siya ang kasalukuyang director ng National Bureau of Investigation;*
- 2) *Matapos siyang itataga bilang director, may binuo siyang special task force para magsagawa ng imbestigasyon sa patuloy na mga pagbabanta sa buhay ng Pangulo;*
- 3) *May karagdagang imbestigasyon na isinagawa ang special task force hinggil sa mga pagbabantang ginawa sa buhay ng Pangulo kasama ang pagbabanta ng Bise Presidente;*
- 4) *Ang pagbanta sa buhay ng Pangulo ay hindi lamang pagbanta sa kanyang buhay kundi pagbanta sa pambansang seguridad;*
- 5) *Ang mga natuklasan at naging resulta ng special task force mula sa karagdagang imbestigasyon;*
- 6) *Kilalanin at patunayan ang mga dokumento kaugnay ng nasabing imbestigasyon ng NBI;*
- 7) *Ang iba pang mga bagay na may kaugnayan at mahalaga sa nagaganap na Impeachment Trial ng Bise Presidente.*

Mr. Vinluan. Comments, Your Honor.

The Presiding Officer. Comment from Counsel for Respondent.

Mr. Vinluan. Your Honor, as to the first purpose, we are willing to stipulate, Your Honor, that Attorney Matibag is the current NBI Director. In the interest of expediting the proceedings, no need to profound questions on that.

Number two, as to the task force, Your Honor, we would have to object thereto on the basis of them being irrelevant. Your Honor, we would just like to manifest for the record that such task force, Your Honor, was not part of the Articles of Impeachment as well as the impeachment complaint. There was no mention thereof, and this is tantamount to a new information. So, Your Honor, we would just like to manifest for the record that the Articles of Impeachment is akin to information that is filed in court, and the trial is already started, and the prosecution cannot modify such information or Articles of Impeachment, for such will be a violation of our client's right to due process, particularly her right to be promptly and fully apprised of the exact charge against her. So, any new information is irrelevant.

Number 3, same objection, Your Honor, because the good counsel mentioned "*karagdagang investigation*," so it pertains also to a new information, which is irrelevant.

Number 4, we would have to object because the good counsel used the word "*banta*," which is a conclusion of fact. She mentioned it twice. So, we are objecting on the basis of it being conclusions of fact.

Number 5, as to the special task force, same objection, Your Honor, considering that, again, there was no mention of such new information in the Articles of Impeachment.

Numbers 6 and 7 are okay, Your Honor.

The Presiding Officer. Would the lead prosecutor care to respond?

Representative Luistro. We would like to respond, Your Honor.

The Presiding Officer. The lady may proceed.

Representative Luistro. Your Honor, *maliwanag po sa naging banta ng Bise Presidente kaugnay ng November 23, 2024 na video, may kinausap siyang tao kaugnay ng kaniyang banta sa buhay ng Presidente, ng First Lady, at ng dating Speaker.*

Later, Your Honor, we will present that this special task force was specifically created for the purpose of furthering the investigation because of the possibility of seeing *na hindi po mag-isa ang Bise Presidente sa bantang ito*. In other words, Your Honor, the mention of special task force, including its creation *at ang karagdagang imbestigasyon nito*, passes the test of relevance. As a matter of fact, this is the very reason why we are presenting Atty. Melvin Matibag, the NBI Director, before the Honorable Impeachment Court.

Your Honor, the Defense likewise mentioned that special task force was not mentioned in the Articles of Impeachment. *Nais ko pong ibalik ang naging desisyon ng Kagalangalang na Impeachment Court kahapon kaugnay ng mga dokumento*, which pertains to acts and omissions prior to 2022, and acts or omissions which were not specifically mentioned in the Articles of Impeachment.

Ang mahalaga po dito, Your Honor, *ay itong mga alegasyon* or testimony to be presented *ay may kaugnayan o relevant sa Article of Impeachment*. It is not necessary that they be specifically mentioned in the Articles of Impeachment.

Finally, Your Honor, they likewise raised the issue of due process of the respondent. It is very much apparent, Your Honor, since day one of our impeachment trial, the respondent is very well represented by her very much able defense panel. In other words, Your Honor, *atin pong ibinibigay ang nararapat na due process sa respondent Vice President*, and as far as this impeachment trial is concerned, *kasama na po ang pagtestigo ni NBI Director kaugnay ng special task force at ang mga naging imbestigasyon nito*.

Mr. Vinluan. Just a shorter rejoinder, Your Honor.

The Presiding Officer. Counsel for Respondent may do so before the Chair makes a ruling on the offer and the comments to the offer. You may proceed, Attorney Vinluan.

Mr. Vinluan. Your Honor, considering that the prosecution mentioned dates prior to the appointment of Director Matibag, then we would also add as basis for our objection his lack of personal knowledge.

The Presiding Officer. Noted. The Chair will now make a ruling. The Chair reminds the lead prosecutor to skip the introduction and preliminary questions with respect to the witness being the current NBI Director, having been admitted by the Counsel for Respondent.

Insofar as the phrase "*banta*" is concerned, the Chair would like to remind the senator-judges that that is indeed a conclusion which the prosecutors will seek to prove. For our purposes, *tawagin na lamang natin o ituring na lamang natin ang mga pahayag na binitiwang ng Ikalawang Pangulo*. But, lead prosecutor, kindly let the witness testify and characterize it as such if he will, but it should come from the witness and not from any of the counsel for the parties.

As to the task force, the task force was formed on April 16, 2026, after the impeachment complaints have been filed. Although the impeachment complaint was filed before the Senate in May, the impeachment complaints were already filed prior to the formation of the task force.

And as a last point, this, if at all, would show persistence, absence, or lack of it, which is an element of the crime of grave threats which the prosecution is seeking to prove, again, not through their statements but through the witnesses they will be presenting, in the person today of Director Matibag.

The Chair will therefore allow the testimony, and the Counsel for the Respondent may object at any time with respect to the points he raised, and the Chair will rule each time an objection is raised regarding that matter without prejudice. I'm already seeing what Atty. Vinluan will do because he's reaching for the mic. Without prejudice to the counsel, of course, making a continuing objection with respect to his observations to the offer so that we would abbreviate the proceedings, and he won't need to object each time, if at all it is brought up.

Would that be correct, Attorney?

Mr. Vinluan. Yes, Your Honor, we register our continuing objection and everything subject to cross, Your Honor.



The Presiding Officer. Noted. The lead prosecutor may proceed. Your witness.

Representative Luistro. Mr. Witness, *pakisabi po ang inyong pangalan, edad, at iba pang pagkakakilanlan.*

Mr. Matibag. *Ako po ay si Atty. Melvin Matibag, na kasalukuyang Director ng National Bureau of Investigation. Ang amin pong tanggapan ay may address na 9th Floor, Filinvest Cyberzone Building, Diosdado Macapagal, Pasay City.*

Representative Luistro. *Nabanggit mo na ikaw ay isang abogado. Gaano ka na katagal sa nasabing propesyon?*

Mr. Matibag. 29 years *po.*

Representative Luistro. *Saan ka nagtapos ng iyong abogasya?*

Mr. Matibag. Sa Ateneo Law School *po.*

Representative Luistro. *Bago ang iyong abogasya, ano ang una mong inaral sa kolehiyo?*

Mr. Matibag. *Ako po ay nagtapos ng Bachelor of Arts, Major in Philosophy, sa University of Santo Tomas.*

Representative Luistro. *Pagkatapos naman ng abogasya, Mr. Witness, ano ang iyong inaral, kung mayroon man?*

Mr. Matibag. *Nag-aral po ako ng Master of Law, Major in Corporate and Finance Law, sa Wayne State University, Detroit, Michigan, USA po.*

Representative Luistro. You are here as NBI Director. *Bago ka itinalaga bilang NBI Director, ano ang iyong mga naging trabaho, kung mayroon man?*

Mr. Matibag. *Bago po ako itinalaga na NBI Director, ay kasalukuyan po akong naglilingkod bilang dean o dekanong Lyceum, Alabang College of Law.*

Representative Luistro. *Nabanggit mo na ikaw ay dating Dean ng Lyceum College of Law, Alabang. Bukod sa pagiging dean, ano pa, kung mayroon man, ang iyong naging trabaho bago ang iyong pagkatalaga bilang NBI Director?*

Mr. Matibag. *Ako po ay nanungkulan na rin sa iba't ibang kapasidad sa ilalim po ng iba't ibang administrasyon. Unang-una po rito, bilang Director ng Laguna Lake Development Authority, sa administrasyon po ni dating Pangulong Gloria Macapagal-Arroyo.*

Representative Luistro. *Nabanggit mo na ikaw ay naglingkod bilang Director ng Laguna Lake Development Authority, panahon ng dating Pangulong Gloria Macapagal-Arroyo. Ano pa, Mr. Witness, kung mayroon man, ang iyong naging trabaho bago ka itinalaga bilang NBI Director?*

Mr. Matibag. *Sa administrasyon po din ng dating Pangulong Gloria Macapagal Arroyo, ako rin po ay nanungkulan bilang general manager ng Manila International Airport Authority. At sa administrasyon din po ng dating Pangulong Rodrigo Roa Duterte, ako rin po ay nanungkulan sa iba't ibang kapasidad po.*

Representative Luistro. *Nabanggit mo na sa ilalim ng administrasyon ni Pangulong Duterte, nanungkulan ka rin sa gobyerno. Ano itong mga posisyon mo sa gobyerno na iyong nabanggit?*

Mr. Vinluan. Objection, Your Honor—relevance.

Representative Luistro. Your Honor, may I respond?

The Presiding Officer. Counsel may respond.

Representative Luistro. The Prosecution, Your Honor, is establishing the competence of the witness, the qualification as an official of the government. We are establishing, Your Honor, that he is loyal to his duty regardless of the principal he is serving.

The Presiding Officer. Wind up with your preliminaries, Counsel.

Witness may answer. Objection overruled.



Mr. Matibag. Thank you, Your Honor.

Ako po ay nanungkulan bilang presidente at CEO ng National Transmission Corporation mula po noong January 2017 hanggang Marso 2022. At pagkatapos noon, ako po ay itinalaga bilang Cabinet Secretary po ng dating Pangulong Rodrigo Roa Duterte.

Representative Luistro. *Kaugnay pa rin ng iyong pagiging NBI Director, kailan ka itinalaga sa nasabing posisyon?*

Mr. Matibag. *Ako po ay nai-appoint noon pong February 20 ng kasalukuyang taon po.*

Representative Luistro. *Mr. Witness, bilang NBI Director, ano ang iyong mga responsibilidad at kapangyarihan, kung iyong nalalaman?*

Mr. Vinluan. Objection, Your Honor. We already stipulated on these matters. No need for the director to elaborate.

Representative Luistro. Your Honor—

The Presiding Officer. Did you stipulate, Counsel, as well as with the powers, responsibilities of the NBI Director?

Mr. Vinluan. We're willing to stipulate, Your Honor, as what the law provides.

Representative Luistro. Your Honor, regardless of the position of the Defense to stipulate on the fact pertaining to the powers and responsibilities of the NBI Director, it is the position of the Prosecution that, since this is a constitutional process, *mahalaga po na marinig ng ating mga iginagalang na senator-judges, ganoon din ng mga kababayang nanonood, kung ano talaga ang responsibilidad at kapangyarihan ng isang NBI Director.*

The Presiding Officer. Understood, Counsel. But it has been stipulated already by Counsel for the Respondent, so kindly go straight to the matter at the soonest possible time. You're on a short leash with respect to the preliminaries on the qualifications of the witness.

Kindly proceed, Ma'am.

Representative Luistro. *Mr. Witness, ano ang iyong mga kapangyarihan at responsibilidad, kung iyong nalalaman?*

Mr. Matibag. *Ang kasama po rito sa aking mga responsibilidad, unang-una na po, we are the primary investigating authority ng atin pong bansa, kung kaya po ito po ay aming mandato na mag-imbestiga sa anumang usapin o mga maaaring krimen na pumapasok sa amin. At kasama rin po rito ang pagbabalangkas ng mga polisiya at pagbubuo po ng mga units or division kung kinakailangan, at ang pagma-manage din po administratively po ng aming opisina.*

Representative Luistro. *Sa mga kapangyarihan at responsibilidad na iyong binanggit, ano ang araw-araw mong ginagampanan, kung mayroon man, at kung iyong nalalaman?*

Mr. Matibag. *Ang araw-araw pong pagbabantay at pakikipag-ugnayan sa aming mga ahente dahil po sa araw-araw naming pag-iimbestiga ng iba't iba pong usapin na pumapasok po sa aming ahensiya.*

Representative Luistro. *Kaugnay pa rin ng mga binanggit mong kapangyarihan at responsibilidad, ano ang pinakamabigat mo na responsibilidad bilang NBI Director, kung iyong nalalaman?*

Mr. Vinluan. Objection, Your Honor—calls for an opinion.

The Presiding Officer. Witness may answer. I think witness is competent enough to answer that question.

Mr. Matibag. Thank you, Mr. Presiding Officer.

Hindi lamang po bilang primary investigating agency, kundi ang amin pong primerong ginagawa ay ang pagbabantay para po sa ating mga taumbayan; bantayan din po na ang ating Konstitusyon ay maipatupad; at siguraduhin na hindi po nagkakaroon ng kaguluhan at ligalig, para ito po ay puksain, habulin, at amin pong, kung kinakailangan, kasuhan ang mga taong lumalabag po sa amin pong mandatong binabantayan.

The Presiding Officer. The Chair would like to remind the Lead Prosecutor to go into the meat of her direct examination already. I think we've heard enough of the preliminaries insofar as Director Matibag is concerned.

Kindly proceed, Ma'am.

Representative Luistro. May we proceed, Your Honor?

Mr. Witness, *naririto ka upang tumestigo sa impeachment trial na ito. Ano ang pagkakakilanlan ng respondent sa impeachment trial na ito, kung iyong nalalaman?*

Mr. Matibag. *Malinaw naman po na ang nasasakdal po sa impeachment trial na ito ay ang atin pong Bise Presidente na si Vice President Sara Duterte.*

Representative Luistro. *Bukod sa ang respondent ay ang Bise Presidente, ano pa, kung mayroon man, ang pagkakakilanlan ng respondent sa impeachment trial na ito?*

Mr. Matibag. *Base po sa aking mandato bilang director, nang ako po ay pumasok sa aming opisina, lahat po ng mga kasong nakabinbin at mga amin nang naipasok sa Department of Justice, ay akin pong nirebisa at tiningnan upang akin po itong masubaybayan. At isa po sa mga kasong aking nakita rito, ang respondent po rito ay ang atin pong Bise Presidente, kung saan po siya ay kinasuhan ng aming Cybercrime Division ng grave threat at inciting to sedition na kasalukuyan pong nakabinbin sa Department of Justice.*

Representative Luistro. *Nabanggit mo na ang respondent ay may kasong grave threat at inciting to sedition sa DOJ. Mr. Witness, ano pa, kung mayroon man, ang pagkakakilanlan ng respondent sa impeachment trial na ito?*

Mr. Matibag. *Ang atin pong Bise Presidente ay kasalukuyang atin pong subject sa ating continuing investigation doon po sa pagbabanta at plano na pagpatay po sa ating Pangulo, sa First Lady, at sa dati pong Speaker of the House.*

Representative Luistro. Mr. Witness, *may binanggit ka na "continuing investigation" ng NBI. Ano ang iyong ginawa, kung mayroon man, kaugnay ng ongoing investigation ng NBI na iyong binanggit?*

Mr. Matibag. *Tayo po ay nagtatag ng tinatawag na Special Task Force po, sa pamamagitan ng pag-create po ng isang administrative order, kung saan bumalangkas po tayo ng mga miyembro ng amin pong opisina para sila po ang magtuloy ng imbestigasyon na ito at mag-monitor po ng mga kailangang gawin.*

Representative Luistro. *Kaugnay pa rin ng binanggit mong special task force, ano ang kahalagahan nito sa imbestigasyon na ginagawa ng National Bureau of Investigation?*

Mr. Matibag. *Napakahalaga po para sa amin, sapagkat, from our law enforcement perspective, ang ginawa pong banta ng Bise Presidente ay tinatrato na naming hindi banta, kundi isang plano para po sa pagpatay sa ating Pangulo, and that is a threat to the President, which we consider also na threat po sa ating national security.*

Representative Luistro. Mr. Witness, *anong katunayang mayroon ka kaugnay ng iyong binanggit na binuong special task force upang mag-imbestiga sa lahat ng banta sa buhay ng Presidente, kasama na ang pagbabanta ng Bise Presidente?*

Mr. Matibag. *Mayroon po akong inisyu na Administrative Order No. 11 noong April 16 ng kasalukuyang taon po.*

Representative Luistro. *At kung ipapakita sa iyo ang kopya ng Administrative Order No. 11, ito ba ay makikilala mo?*

Mr. Matibag. *Opo.*

Representative Luistro. Your Honor, may we request that AO No. 11, previously marked as Exhibit P-IV-29, be flashed?

We likewise request, Your Honor, that Atty. Kyle Kapunan, Assisting Counsel, be allowed to approach the witness for confirmation of the document.

The Presiding Officer. Assisting Counsel for the Prosecution may approach, and likewise, Assisting Counsel for the Respondent may approach, to confirm and validate the document being shown to the witness.

Likewise, the Tech, through the Clerk of Court, is instructed to kindly flash on the screens the document being referred to by the Lead Prosecutor, the Honorable Luistro.

Kindly zoom it in, please.

(Document was shown on the screen.)

Mr. Vinluan. Your Honor, can we be given time to comment?

The Presiding Officer. Atty. Vinluan is recognized.

Mr. Vinluan. Your Honor, we manifest, for the record, that the document is a photocopy.

The Presiding Officer. So, noted.

Does the Lead Prosecutor confirm the observation of the Counsel for the Respondent, while we are waiting for their review of the document?

Representative Luistro. Your Honor, after the confirmation of the document, the Prosecution will be requesting for the transfer of marking to a certified true copy, Your Honor.

The Presiding Officer. At a later time.

Representative Luistro. Yes, Your Honor.

The Presiding Officer. Noted. Counsel may proceed when she's ready.

Representative Luistro. May we request the Assisting Counsel to please show the document to the witness?

The Presiding Officer. Atty. Kapunan, kindly...

Representative Luistro. Mr. Witness, *ipinapakita sa iyo ngayon ang isang dokumento na may pamagat na Administrative Order No. 11. Ano ang kaugnayan nito sa binanggit mo kanina na Administrative Order No. 11 kung saan nabuo ang Special Task Force?*

Mr. Matibag. *Ito ho ang aking dokumentong binabanggit.*

Representative Luistro. *Sa pangalawang pahina ng Administrative Order No. 11, makikita ang isang lagda sa taas ng pangalang "Atty. Melvin Matibag." Kaninong lagda ito, Mr. Witness?*

Mr. Matibag. *Sa akin po.*

Representative Luistro. Your Honor, may we manifest that AO No. 11 has been previously marked as Exhibit P-IV-29, and we just want to place on record the request for the transfer of marking at a later time to the certified true copy, Your Honor.

The Presiding Officer. Noted.

Representative Luistro. *Kaugnay pa rin ng Administrative Order No. 11, Mr. Witness, ano ang composition ng special task force, kung iyong nalalaman?*

Mr. Matibag. *Ito po ay binubuo ng iba't-ibang division na pinamumunuan po ng aming team leader na deputy director for operations at dalawa po na assistant team leaders sa pangunguna po ng assistant director namin for investigation at assistant director for intelligence po.*

Representative Luistro. *Nabanggit mo ang team leader at assistant team leader ng special task force. Sino naman ang mga miyembro ng special task force, kung iyong nalalaman?*

Mr. Matibag. Your Honor, *hindi po sino, kundi ito po ay mga grupo, specific units po, isa na po rito ang National Capital Region Division namin, ang Cybercrime Division po namin, ang aming pong OCTD (Organized and Transnational Crimes Division), ang TID po, at ang CFD.*

Representative Luistro. Mr. Witness, *nabangit mo ang National Capital Region Division. Ano ang dahilan at isinama ang National Capital Region Division sa miyembro ng special task force, kung iyong nalalaman?*

Mr. Matibag. *Sapagkat ang pag-iimbestiga po at ang continuing surveillance ay tungkol sa banta sa kaligtasan po ng ating Pangulo at ang primerong opisina at tirahan po ng ating Pangulo ay nasa National Capital Region, kung kaya naman po atin pong isinama rito ang National Capital Region bilang miyembro po ng special task force na ito.*

Representative Luistro. *Mr. Witness, binanggit mo din kanina ang Cybercrime Division. Ano naman ang dahilan, kung iyong nalalaman, bakit ginawang miyembro ng special task force ang Cybercrime Division?*

Mr. Matibag. *Ang Cybercrime Division po ay kasama dito sa task force na ito, sapagkat marami po ngayon na banta na pumapasok po sa ating Pangulo sa pamamagitan po ng paggamit ng social media platform at ang CCD, sila po iyong may karanasan at kaalaman po na sapat para bantayan po ang mga bantang papasok dito sa pang araw-araw po.*

Representative Luistro. *Mr. Witness, binanggit mo din ang Organized Transnational Crime Division. Ano naman ang dahilan at isinama ito sa Special Task Force, kung mayroon man?*

Mr. Matibag. *Hindi naman po lingid sa atin na ang ating Pangulo ay may mga pagkakataon na lumalabas ng ating bansa at nagbibyahe na kung saan ay atin pa rin pong tungkulin na bantayan ang kanyang seguridad kahit na siya ay nasa labas ng ating bansa. At ang atin pong Organized and Transnational National Crimes Division, sila po iyong mayroong ugnayan sa atin pong mga counterparts sa iba't-ibang bansa upang atin pong maisiguro ang kaligtasan po ng ating Pangulo habang siya ay nasa labas ng ating bansa.*

Representative Luistro. *Mr. Witness, kasama sa iyong binanggit ang Technical Intelligence Division. Ano naman ang dahilan at kasama ito sa miyembro ng STF, kung mayroon man?*

Mr. Matibag. *Napakaimportante po ng role ng TID—Technical Intelligence Division, sapagkat ang mga banta na katulad na pumapasok po sa ating Pangulo ay nangangailangan po ng masusi at malawak na intelligence network, at ang TID po natin, sila po ang may karapatan dito at at nagpo-proseso ng mga ganito pong gawain.*

Representative Luistro. *Bilang huli, Mr. Witness, binanggit mo din ang Digital Forensic Laboratory Division. Ano naman ang dahilan at isinama ito sa miyembro ng Special Task Force?*

Mr. Matibag. *Importante po ang kanilang role dito sa task force na ito sapagkat lahat po ng mga ebidensiya na ating makakalap, lalong-lalo na kailangan pong idaan sa forensics o pagsuri na teknikal, sila po ang dibisyon na maaaring pong gumawa ng pagsusuri na ito.*

Representative Luistro. *Maraming salamat sa iyong paglilinaw kaugnay ng composition ng special task force.*

Mr. Witness, anong mga pagkakataon kailangan ng NBI bumuo ng task force, kung iyong nalalaman?

Mr. Matibag. *Ang pagbubuo ng task force ay iyong mga immediate po/ na pangangailangan na kailangan nating tugunan, isa po iyan. Pangalawa po rito, ito ay kung isa nang malawakan ang isang bagay na kailangan nating tugunan at imbestigahan. At ang task force din po, kaya po ganyan kalawak, kung makikita ninyo, ay kung ang nasasakupan po nito ay hindi lamang iisang lugar. At iyon pong mga seryosong banta na katulad ng banta sa ating Pangulo, ay ganitong task force po ang pakiramdam namin na kinakailangan.*

Representative Luistro. *Mr. Witness, balikan ko ang Special Task Force na iyong binuo. Kanina, ibinahagi mo ang composition nito. Ano ang iyong partisipasyon bilang NBI Director, kung meron man, sa imbestigasyon ng special task force?*

Mr. Matibag. *Nakasaad po diyan sa administrative order na iyan na ang patuloy na pakikipag-ugnayan po sa office ng director, patuloy na pag-uulat kung ano man po ang kanilang nakikita o namo-monitor, at lalong-lalo na po kung may specific po na kailangang kaagad matugunan ay dapat na ipaalam sa opisina ng office ng director.*

Representative Luistro. *Balikan natin ang special task force na binuo sa ilalim ng AO No. 11, Mr. Witness. Ano ang nagtulak sa iyo, kung mayroon man, upang buuin ang special task force na ito?*

Mr. Matibag. *Ang akin na pong nabanggit— ang malinaw na banta at planong pagpatay po sa ating Pangulo na para sa amin po sa law enforcement— ito ay nag-transcend na sa banta po sa ating national security sapagkat anuman pong banta sa ating Pangulo ay banta sa seguridad sa ating bansa sapagkat ito ay magdudulot ng kaguluhan, ng ligalig, at destabilisasyon po sa ating pong gobyerno at sa atin pong bansa.*

Representative Luistro. *Nabanggit mo na ang banta sa buhay ng Pangulo ay banta na rin sa national security. Ano pa, Mr. Witness, kung mayroon man, ang nagtulak sa iyo upang buuin ang special task force na ito?*

Mr. Matibag. *May mga pangyayari po na atin pong nasaksihan na nagpatunay na ang banta ay seryoso. Katunayan po, ang aming imbestigasyon ngayon ay tumawid na sa hindi banta, kundi isang plano talaga na patayin po ang ating Pangulo ng Pilipinas sapagkat doon po sa ating mga inobserbahan na tinatawag nating open source intel, malinaw po roon na ang ating Bise Presidente sinabi mismo na siya ay kumausap na ng papatay at pumayag iyong pagpatay na iyan sa ating Pangulo ng Pilipinas.*

Representative Luistro. *Mr. Witness, bukod sa iyong nabanggit kung saan may kinausap ang Bise Presidente na papatay sa Pangulo, ano pa, kung mayroon man, ang dahilan o nagtulak sa iyo upang buuin ang special task force?*

Mr. Matibag. *Kung makikita po ninyo doon sa whereas clauses ng Administrative Order No. 11, ang isa pong nagpatibay rito ay iyong aming napanood na live broadcast po ng isang rally na tinatawag na Rage Coalition. If I remember correctly, it's April 12 na nagsasalita ang mayor ng Davao City na si Mayor Sebastian "Baste" Duterte na sinabi niya na "Isang ulo lang naman ang kailangan namin at iyan ay ang ulo ni Bongbong Marcos." Iyon po ay aming isinama sa aming factor upang buuin po itong ating Administrative Order No. 11.*

Representative Luistro. *May nabanggit ka na RAGE Coalition Rally noong April 12, 2026, ano itong insidenteng ito, Mr. Witness?*

Mr. Vinluan. *Objection, Your Honor, relevance? We ask for the relevance, Your Honor.*

The Presiding Officer. *Part of the witness's narration. Counsel, you're in a short leash again, kindly connect it to this case.*

Representative Luistro. *Your Honor, this question—*

The Presiding Officer. *Witness may answer.*

Mr. Matibag. *Dito po sa rally na ito ay nakita natin doon pa lang sa pangalan na sinasabing "RAGE", ito po ay may interpretasyon base sa aming law enforcement experience na kapag sinabing "rage" – galit, poot. At ang mga personalidad po na dumalo rito ay makikita nating mga personalidad na kilalang tumutuligsa, at naglalabas ng destabilisasyon po sa atin pong gobyerno ngayon.*

Makikita po natin ang presence ng iba't-ibang personalities diyan na consistent na nagdudulot ng ligalig po sa atin pong bansa.

Representative Luistro. *Mr. Witness, kung ipapakita sa iyo itong video na ito, ito ba ay makikilala mo?*

Mr. Matibag. *Opo.*

Representative Luistro. *Anong partikular na bahagi ng videong ito ang tumutukoy sa iyong sinabi kung saan may binanggit si Mayor Sebastian Duterte?*

Mr. Matibag. *Mr. Presiding, may I be allowed to check on the timestamp?*

Mr. Vinluan. *Objection, Your Honor.*

The Presiding Officer. *Let us listen to the Counsel's objection first.*

Attorney Vinluan, what is your objection?

Mr. Vinluan. *Again, irrelevant, Your Honor.*

The Presiding Officer. Same ruling. Counsel, go to it directly and hope you will connect and make the connection between this video and the matter at hand.

Yes, Director Matibag, you may proceed to open the USB, Or are you referring to your notes, rather?

Mr. Matibag. *Opo, iyon po aking investigation notes.*

The Presiding Office. You may refer to your notes.

Mr. Matibag. *Kung saan po nakasulat ang timestamp noong video na akin pong binabanggit.*

Mr. Vinluan. Your Honor, may we be allowed also to peruse—

The Presiding Officer. Assisting Counsel of the Respondent may look at the document being reviewed by the witness. Likewise, to the Prosecutor if she wishes to do so. Assisting Counsel for the Prosecutor may also stand up and accompany Assisting Counsel for the Defense.

You may proceed, Director Matibag to answer.

Mr. Matibag. *Iyan po ay nasa timestamp 2:34:35 to 2:34:43.*

Representative Luistro. Your Honor, we are requesting that the video of Mayor Sebastian Duterte during the RAGE Coalition on April 12, 2026, which has been previously marked as P-IV-30, particularly timestamp 2:34:35 to 2:34:43, be flashed, Your Honor.

The Presiding Officer. The tech is directed to kindly play the timestamps mentioned.

May I request Assisting Counsel for the Defense to kindly witness the breaking?

Is the USB sealed, Counsel?

Representative Luistro. I believe, Your Honor.

The Presiding Officer. Witness is instructed to break the seal, while being witnessed by Assisting Counsel for both parties before it is presented to the tech for it to be played.

While the witness is breaking the seal and bringing it, giving it, rather, to the Counsel for the Prosecutor and Assisting Counsel for the Respondent, Chair would like to make a manifestation with respect to the proceedings.

MANIFESTATION OF THE PRESIDING OFFICER

The Presiding Officer reminded the Senator-Judges that interjections and interventions should be made only after the parties have completed the direct, cross, redirect, and re-cross examination of the witness, except when the matter involves an urgent administrative or procedural concern. He explained that the proceedings should primarily follow the nature of a trial by allowing the parties to fully examine the witnesses, as the counsels could elicit the necessary clarifications during the examination.

DIRECT EXAMINATION OF THE WITNESS

(Continuation)

The Presiding Officer. Yes, are we ready to play the video?

[Video Presentation]

Representative Luistro. Mr. Witness, *napanood mo ang video? Ano ang kaugnayan ng video na ito sa insidente ng RAGE Coalition na tinukoy mo kanina?*

Mr. Matibag. *Iyan po iyong aking tinutukoy na video.*

Representative Luistro. *Ano ang partikular na sinabi ni Mayor Sebastian Duterte sa nasabing insidente kung iyong naaalala?*

Mr. Matibag. *Sinabi po niya na "Isang ulo lang naman ang kailangan namin. Ang ulo ni Bongbong Marcos."*

Representative Luistro. Mr. Witness, *ano ang kahalagahan ng insidenteng ito sa RAGE Coalition sa imbestigasyon na ginagawa ng Special Task Force kaugnay ng banta ng Bise Presidente sa buhay ng Presidente?*

Mr. Vinluan. Objection, Your Honor, up to now the prosecution has not established the relevance of these incidents to the matter at hand, Your Honor.

Representative Luistro. Your Honor, I'm in the process—

Mr. Vinluan. We're objecting on the basis of irrelevance.

Representative Luistro. I'm in the process of establishing the relevance already, Your Honor.

The Presiding Officer. Counsel, kindly do so as best you can with the shortest possible time. I will allow it.

Mr. Matibag. *Iyan pong video na iyan ay amin pong naikumpara sa mga naging pahayag ng ating Bise Presidente na kung saan meron din po kaming videong binalikan na ang ating Bise Presidente ay nagre-refer din po sa pagtanggali ng ulo ng atin pong Presidente. Kung kaya't nakita namin po ang pagkakahambing ng statement po ng ating pong Mayor at ng Vice President Sara Duterte.*

Representative Luistro. Mr. Witness, *binanggit mo ang isang insidente kung saan sinabi ng Bise Presidente na "gusto tanggali ang ulo ng Presidente." Ano itong insidenteng ito kung iyong nalalaman?*

Mr. Matibag. *Sa akin pong recollection, sa aking pag-iimbestiga, ito po iyong kaniyang press conference noong October 18 ng 2024 kung saan sinabi niya, "Gusto kong tanggali ang ulo niya ba?" At sinabi rin po niya na "I imagined cutting his head." So iyan po ang binabanggit ko na video.*

Representative Luistro. *Kaugnay ng sinabi niya na: "Gusto ko tanggali yung ulo niya ba," anong partikular na bahagi ng binanggit mo na video ang tumutukoy sa sinabi nito ng Bise Presidente?*

Mr. Matibag. Mr. Presiding Officer, respectfully, with your permission, for the timestamp, I want to refer to my notes.

The Presiding Officer. Witness is allowed to refer to his notes.

Mr. Matibag. *Salamat po.*

The Presiding Officer. With the assistance and within the view of the Assisting Counsel for the Respondent, and the Prosecution, if they so desire.

Mr. Vinluan. Your Honor, can we ask permission to scan the whole notebook or, at least, the salient portions of the notebook.

The Presiding Officer. To look at it, to scan it, to see that—*baka may mga nakasulat na iba diyan na wala nang kinalaman.*

Just to confirm that it is indeed his notes. What is the book you're referring to, or notebook you're referring to Atty. Matibag?

Mr. Matibag. Mr. Presiding Officer, actually, diary ko po ito at saka notes, combination. So, kung makikita naman po mula pa noon, iba't-iba pong nakasulat dito. May mga personal po, may mga usapin. Ito lamang pong notes ko na ito nakatuon doon sa date kung saan po nagkaroon na ng imbestigation po iyong Administrative Order No. 11.

Mr. Vinluan. Then just the salient portions, Your Honor.

Representative Luistro. Your Honor, just for the record. We would like to invoke the right of the witness to refer to his notes because that note pertains to investigation notes which were prepared, done, written, at the time of the investigation, Your Honor. That is to refresh his memory, Your Honor.

The Presiding Officer. No, the Presiding Officer already allowed it.

Counsel for the Respondent, your Assisting Counsel is there. Without necessarily scanning the whole notebook, which might contain other confidential or perhaps personal information, he may observe what the witness is referring to and you may make your observations known to the record, should he observe something out of the ordinary.

Witness may answer.

Mr. Matibag. Ang timestamp *po doon sa sinabi kong "Gusto kong tanggalin yung ulo niya ba"* is from 1:35:57 to 1:36:10 *po*.

Representative Luistro. Your Honor, may we request that the video of the Vice President on October 18, 2024, during her press conference, previously marked as P-IV-11, particularly timestamped 1:35:57 to 1:36:10, be played, Your Honor.

The Presiding Officer. Has the USB seal been broken by the witness? If not, then he is instructed to kindly break the seal of the marked evidence in full view of the assisting counsels for the parties. Thereafter, for the USB to be brought to the tech booth, and the clerk of court is instructed to have it played with respect to the identified timestamps of Director Matibag.

[Video Presentation]

Representative Luistro. Mr. Witness, *napanood mo ang video—*

The Presiding Officer. The video is still playing, I believe, lead Prosecutor, unless you want it cut already.

Representative Luistro. It may be cut, Your Honor.

The Presiding Officer. I'm sorry?

Representative Luistro. It may be cut, Your Honor.

The Presiding Officer. Okay.

Representative Luistro. The timestamp is only 1:35:57 to 1:36:10.

Mr. Witness, *napanood mo ang video? Ano ang kaugnayan nito sa insidenteng tinukoy mo kanina, kung saan sinabi ng Bise Presidente, "Gusto kong tanggalin ang ulo niya ba."*

Mr. Matibag. That is the same video that I was referring to.

Representative Luistro. *Kanina, Mr. Witness, binaggit mo din na may sinabi ang Bise Presidente, "I imagine myself cutting his head." Anong partikular na bahagi naman ng video na iyong tinukoy ang tumutukoy sa sinabing ito ng Bise Presidente, kung iyong nalalaman?*

Mr. Matibag. Again, Mr. Presiding Officer, may I be allowed to look for the...

The Presiding Officer. Witness may do so.

Mr. Matibag. Thank you, *po*.

Timestamp 1:36:52 *po* to timestamp 1:36:58.

Representative Luistro. Your Honor, may we request that the same video be played, particularly timestamp 1:36:52 to 1:36:58.

The Presiding Officer. Pertaining to the same exhibit, Counsel?

Representative Luistro. Yes, Your Honor, same Exhibit P-IV-11.

The Presiding Officer. Tech is instructed through the Clerk of Court to kindly play the video.

[Video Presentation]

Representative Luistro. Mr. Witness, *napanood mo ang video, ano ang kaugnayan nito sa insidenteng tinukoy mo kanina, kung saan sinabi ng Bise Presidente, "I imagine myself cutting his head."*

Mr. Matibag. *Iyan din po iyong video na aking tinutukoy.*

Representative Luistro. Mr. Witness, *kanina ay binanggit mo ang insidente ng Mayor Sebastian Duterte. Kaninong ulo ang kailangan nila, kung iyong nalalaman?*

Mr. Vinluan. Objection, asked and answered, Your Honor.

The Presiding Officer. Asked and answered. Move on, Counsel.

Representative Luistro. *Binanggit mo din ang video ni Vice President Sara Duterte, Mr. Witness, kaninong ulo ang gustong tanggalin?*

Mr. Vinluan. Objection, asked and answered, Your Honor.

The Presiding Officer. Move on, Counsel. Asked and answered.

The court understands and knows who the Vice President was referring to in that video.

Representative Luistro. Thank you, Your Honor. We will proceed.

Ano ang obserbasyon mo dito sa video ni Mayor Sebastian Duterte at sa video ni Vice President Sara Duterte kaugnay ng imbestigasyon ng Special Task Force, kung mayroon man?

Mr. Vinluan. Objection. Vague, Your Honor. "Ano ang obserbasyon mo?"

The Presiding Officer. Kindly be more specific, Counsel.

Although the witness is competent, kindly be more specific so that the witness can more intelligently answer the question.

Representative Luistro. Mr. Witness, *anong konkesiyon, kung mayroon man ang video ni Mayor Sebastian Duterte at ang video ni Vice President Sara Duterte sa kasalukuyang imbestigasyon ng Special Task Force, kung mayroon man at kung iyong nalalaman?*

Mr. Vinluan. Objection, Your Honor. Still vague and asked and answered.

The Presiding Officer. Witness may answer, if he knows, so that we can move on.

Director Matibag, kindly respond.

Mr. Matibag. *Salamat po. Kapansin-pansin po na makikita natin na nanggagaling sa isang pamilya ang pagbabanta sa ating Pangulo at parehas na nagre-refer sa ulo ng Pangulo. Kung kaya naman iniisip po ba namin kung mayroon bang kasabwat o may sabwatan sa pangyayaring ito. Sapagkat gaya po nang aking binanggit na noong November 23 binanggit po nang ating Bise Presidente na mayroon na siyang kinausap para pumatay sa ating Pangulo at pumayag siya. Kaya ito po ang amin pong tinututukan sa task force na amin pong itinatag.*

Mr. Vinluan. Objection Your Honor. We would have to object as to the answer being non-responsive and we would like to move, Your Honor, that it be expunged from the record.

Representative Luistro. Your Honor, the witness has answered already and that should form part of the transcript of our trial today.

Mr. Vinluan. Then we move to strike it off, Your Honor.

The Presiding Officer. The objection is overruled and the motion to strike is denied. Let it remain in the records for the appreciation of the senator-judges as to the weight they will give that particular part of the witness's testimony.

Mr. Vinluan. We will submit, Your Honor.

Representative Luistro. Mr. Witness, *binanggit mo kanina na may kinausap nang tao ang Bise Presidente. Ano ang kahalagahan nito sa inyong imbestigasyon sa special task force, kung mayroon man?*

Mr. Matibag. *Sapagkat ito po iyong aming mismong tinitingnan, sapagkat ang tingin nga po namin dito, that the threat is serious, active, and continuing doon po sa banta sa ating Presidente. At dahil ito ay seryoso, aktibo, at patuloy na umiiral, ay nagiging banta na rin po sa ating pambansang seguridad. Sapagkat ano man pong banta sa seguridad ng ating Pangulo, ay banta po sa ating national security.*

Representative Luistro. Mr. Witness, *ano ang inyong obserbasyon, kung mayroon man, doon sa sinabi ng Bise Presidente na mayroon na siyang kinausap na tao?*

Mr. Vinluan. Objection vague, Your Honor.

Representative Luistro. Your Honor, the witness is very much competent. Please allow him to answer the question.

The Presiding Officer. Objection overruled, witness may answer. Kindly move on, Counsel. I think I know where you're getting at but kindly move on toward your point. Witness may answer.

Mr. Matibag. *Ang obserbasyon po namin dito ay hindi na ito isang banta, kundi isang plano. Sapagkat ang tingin po namin dito ay inanunsyo ng ating Bise Presidente ang kaniyang planong pagpatay sa Pangulo ng Pilipinas at mga nabanggit pang kaniyang gusto ipapatay doon po sa kaniyang pagbabanggit sa kaniyang press conference.*

Representative Luistro. *Kanina, Mr. Witness, binanggit mo ang imbestigasyon ng NBI noong November 2024. Ano ang pagkakaiba, kung mayroon man, ng imbestigasyon ng NBI noong November 2024 sa kasalukuyang imbestigasyon ng special task force na nag-umpisa noong Abril 2026?*

Mr. Matibag. *Malaki po ang pagkakaiba. Iyong imbestigasyon na ginawa noong November 24, na nag-iimbestiga doon po sa grave threat at sa inciting to sedition, ito po ay ordinaryong krimen na iniimbestigahan, na sa ngayon po ay nakabinbin na sa Department of Justice para sa kanilang resolusyon. Pero ang amin pong iniimbestigahan, inuulit ko nga po, the serious, active, and continuing threat to the life of the President which already transcends to a national security issue. Sapagkat malinaw po na hindi na ito banta kundi isang plano na patayin ang Pangulo ng Pilipinas.*

The Presiding Officer. With the permission of the Counsel for the parties, Chair would like to clarify for the record and for the senator-judges that the investigation conducted by the NBI in November of 2025, the witness was not yet the director at that time. But he can testify as to the fact that the agency he now heads conducted the investigation, but not as to the truth of the investigations conducted at that time, but as to fact that investigations were conducted only.

You may proceed, Counsel.

Representative Luistro. Mr. Witness, *ano ang dahilan bakit kasama ang video ni Mayor Sebastian Duterte sa inyong sinasabi ngayon na ang bantang ito ay banta na sa national security, kung mayroon man?*

Mr. Vinluan. Objection, asked and answered, Your Honor.

The Presiding Officer. Asked and answered. Counsel, move on.

Representative Luistro. Your Honor, as a matter of fact, we haven't asked that question, and the witness is supposed to explain the reasons why the video was actually considered in their observation that this is a threat to national security.

The Presiding Officer. I believe the witness already answered that any threat to the President is a threat to national security—to the national security of the country, and earlier the Counsel already asked the relationship of the video to that statement of the witness, which the Chair allowed. We're already there, Counsel. Please move on.

Representative Luistro. *Bilang karagdagan, Mr. Witness, sa iyong binanggit na isyu ng national security, kaugnay ng video ni Mayor Sebastian Duterte, ano pa ang dahilan, kung mayroon man, kung bakit isinama siya sa pagsusuri ng Special Task Force?*

Mr. Matibag. *Sapagkat dito lang po makikita na ang naging pagbabanta ng ating Vice President ay nagkaroon po ng tinatawag natin na epekto. It is a kinetic force na kung saan, iyong mga nakarinig ng kaniyang pagbabanta ay gumagaya na rin ng pagbabanta, lalong-lalo na na sila ay nabibilang sa isang pamilya. That is the very purpose of the task force, to monitor all those threats na lumalabas po ngayon, at sa araw-araw nga ay meron po tayong mga nakikitang threat sa social media, sa mga pahayag po during sa mga rallies ay tuloy-tuloy po na banta sa atin pong Pangulo, na umaabot na po sa banta sa ating national security.*

Representative Luistro. *Binanggit mo ang kinetic force, ano'ng ibig sabihin nito, Mr. Witness?*

Mr. Matibag. *Na iyong kanila pong aksyon ay nagkakaroon po ng epekto para kumilos sa mga nakakaranig na kanilang mga supporter, upang maghasik po ng ligalig at kaguluhan po sa atin pong bansa; at hindi na nirerespeto ang atin pong Konstitusyon; at wala na rin pong pagtingin sa ating democratic process.*

Representative Luistro. *Ano pa ang dahilan, kung meron man, bakit isinama sa pagsusuri ang video ni Mayor Sebastian Duterte kaugnay ng RAGE Coalition rally?*

Mr. Matibag. *Iyong presensya—*

Mr. Vinluan. Objection, asked and answered, Your Honor.

The Presiding Officer. Witness may answer.

Mr. Matibag. *Iyong proseso po namin na iyan, doon po namin nakita na, sinasabi ko nga, iyong mga participants dito, iyon pong mga kilala na mga tao na nagdudulot ng ligalig at pagtutol sa demokrasya po natin, at naroon din po iyong broadcast na iyan, napakarami pong naabot na tao, nasa 600,000 plus po iyong live broadcast niyan. Doon na po papasok iyong tinatawag ko nga kanina, na sinabi kong kinetic force, na maaaring magkaroon po ng reaksiyon ang mga taong nanonood nito na hindi po maganda, at makagugulo po sa pag-promote po natin ng law and order na primero po na gawain po dapat ng National Bureau of Investigation.*

Representative Luistro. *Binanggit mo na may mga kilalang personalidad na nakibahagi sa RAGE Coalition rally. Sino-sino itong mga ito?*

Mr. Vinluan. Objection, Your Honor, irrelevant.

The Presiding Officer. Witness may I answer.

Mr. Matibag. *Makita po natin doon, may mga senador din po na nandodoon. Nandoon din po si Mike Defensor, at nandodoon po ang mga haligi po ng PDP-Laban na akin pong mga kakilala. Nandoon din po ang mga leaders sa iba't ibang rehiyon na akin na pong nakasama noon noong ako'y miyembro pa ng PDP-Laban.*

Representative Luistro. *Mr. Witness, ano ang ibig sabihin ng RAGE, kung iyong nalalaman?*

Mr. Vinluan. Objection, Your Honor, irrelevant.

The Presiding Officer. I think, Counsel has already made the connection between the RAGE, the statements of Mayor Baste, and the statements of the respondent. Witness may answer.

Mr. Matibag. *Sa Tagalog po niyan ay galit o poot. Iyon po.*

The Presiding Officer. *Wala pong acronym iyon, Director Matibag?*

Mr. Matibag. *Hindi po kasi tumutugma doon sa acronym nila, dahil iyong acronym nila, Reform Alliance for Good Governance, so hindi po RAGE. So, medyo malayo po.*

Representative Luistro. May I proceed, Your Honor?

The Presiding Officer. Counsel may proceed.

Representative Luistro. *Nabanggit mo rin, Mr. Witness, na maraming nanood ng videong ito. Ilan ang nanood ng videong ito, kung iyong nalalaman?*

Mr. Matibag. *Sa live broadcast po, lumabas po na naka-600,000.*

Representative Luistro. *At ano ang kahalagahan na 691,000 ang nanood sa live broadcast ng videong ito, kung mayroon man?*

Mr. Matibag. *Again, ganoon na po kalawak iyong nakikita natin na resulta ng paghahasik po ng ligalig po, at pagbabanta po sa kaayusan, pati na rin po sa seguridad ng ating Pangulo.*

Representative Luistro. *Mr. Witness, kanina binanggit mo ang pagkakaiba ng naunang imbestigasyon ng NBI sa kasalukuyang imbestigasyon ng Special Task Force ng NBI. Ngayon, ano naman ang ginawa ng NBI sa pagitan ng unang imbestigasyon kung saan na-file ang kasong*

Grave Threat at Inciting to Sedition sa DOJ, February 2025, sa kasalukuyang imbestigasyon ng Special Task Force na inumpisahan noong buuin ang STF, April 2026, kung mayroon man?

Mr. Matibag. Sa pagkakaalam ko po—

The Presiding Officer. Counsel, you mean April 16, 2026, you're referring to AO 11?

Representative Luistro. Yes, Your Honor.

The Presiding Officer. Witness may answer.

Mr. Matibag. Doon po base po sa tanong, noong mula February 25, 2025, ako po ay hindi pa NBI noon, subalit noong ako po ay nag-assume noong February 20, kasama po sa ating pinag-aralan iyan, at alam naman po natin na ang mandato ng NBI ay ang patuloy na bantayan ang seguridad ng ating mga opisyaes at siguraduhin na may law and order, so ako po'y na-apprise naman na tuloy-tuloy ang mga monitoring at consultation po, at surveillance na ginagawa ng iba't ibang unit noon. Ngayon, noong ako naman po ay pumasok bilang NBI Director at atin pong pinag-aralan iyong mga kaso, noong April 16 nga po, itinatag na po natin ang task force na ito upang po matutukan ang mga isyu na akin na nga pong nabanggit.

Representative Luistro. Mr. Witness, maraming salamat sa iyong paglilinaw kaugnay ng nauna at ng kasalukuyang imbestigasyon ng NBI. Kaugnay pa rin ng Special Task Force, ano ang iyong naging direktiba, kung mayroon man, kaugnay ng video ni Mayor Sebastian Duterte noong April 12, 2026?

Mr. Matibag. Akin pong ipinag-utos to the task force na ma-authenticate at mai-preserve itong videong ito, sapagkat amin pong naiisip na ito'y magiging material sa amin pong pag-iimbestiga sa darating po na panahon na amin po itong gagamitin.

Representative Luistro. Mr. Witness, sino ang iyong inutusan upang ma-preserve at ma-authenticate ang video ni Mayor Sebastian Duterte na tinukoy mo?

Mr. Matibag. Ito po ay aming naitoka kay Agent Edgar Apolonio po ng Cybercrime Division po.

Representative Luistro. Ano naman ang iyong patunay na ang videong ito ay na-preserve at na-authenticate ni Agent Edgar Apolonio, kung mayroon man?

Mr. Matibag. Ako po ay nakakuha ng kopya ng Affidavit of Authentication na ipinasa po sa aking tanggapan. Akin po itong nahawakan po.

Representative Luistro. Your Honor, we are requesting that Affidavit of Authentication of Edgar Apolonio previously marked as Exhibit P-IV-31 be flashed. Likewise, Your Honor, we're requesting that we allow Assisting Counsel to present the document to the witness for confirmation.

Mr. Witness, we are presenting to you a document entitled Affidavit of Authentication. Ano ang kaugnayan nito sa Affidavit of Authentication ni Agent Edgar Apolonio na tinukoy mo kanina?

Mr. Matibag. Ito po ang Affidavit of Authentication na akin pong binabanggit.

Representative Luistro. We manifest, Your Honor, that the same has been previously marked as Exhibit P-IV-31.

Sa pahina 2, makikita ang isang lagda sa ibabaw ng pangalang Agent Edgar Apolonio. Mr. Witness, kaninong lagda iyan, kung iyong nalalaman?

Mr. Matibag. Kay Agent Edgar Apolonio po.

Representative Luistro. Mr. Witness, paano mo nalaman na ang lagdang iyan ay lagda ni Agent Edgar Apolonio?

Mr. Matibag. Noon pong ito'y sinumite sa aking opisina, siya po ay aking ipinatawag at tinanong ko kung siya ang gumawa at kung lagda po niya ito. Bukod po doon ay marami na po akong naiutos na ipa-authenticate sa kaniya at iba pang dokumento na siya po ang lumalagda, kung saan nagkaroon na po ako ng familiarity doon sa kaniya pong mga lagda.

Representative Luistro. *Maraming salamat sa iyong paglilinaw.*

Ngayon ay puntahan natin ang imbestigasyon ng Special Task Force sa banta ng Bise Presidente sa buhay ng Presidente. Ano ang mga ginamit ninyong batayan, kung mayroon man, sa inyong pag-iimbestiga sa Special Task Force, sa banta ng Bise Presidente sa buhay ng Presidente?

Mr. Matibag. *Consistent po sa ginagamit po na protective intelligence methodology ng Secret Service ng Amerika, diyan po sa tinatawag natin na "if there is a threat to a known personality," mayroon po silang mga pamantayan at doon din po namin ibinase itong pamantayan na ito. Lima po ito na pamantayan na amin pong ginamit.*

Representative Luistro. *Mr. Witness, binanggit mo na mayroon kayong ginamit na limang pamantayan. Ano-ano itong mga limang pamantayan na binanggit mo?*

Mr. Matibag. *Una na po rito iyong pattern of violence po.*

Representative Luistro. *Bukod sa pattern of violence, ano pa, kung mayroon pa?*

Mr. Matibag. *Iyon pong gravity or seriousness po ng isa pong pangyayari.*

Representative Luistro. *Anong sunod dito, kung mayroon pa?*

Mr. Matibag. *Iyon pong identity and identifying characteristic po ng involved po doon sa pangyayari.*

Representative Luistro. *Bukod sa identity, ano pa, Mr. Witness, kung mayroon man?*

Mr. Matibag. *Ang isa po rito ay iyong kakayanan po at kapasidad po ng nabanggit po na subject.*

Representative Luistro. *At bukod sa apat na iyong nabanggit, ano pa ang inyong ginamit na batayan kaugnay ng imbestigasyon na ito?*

Mr. Matibag. *Iyon pong tinatawag na "motive" o motibo, at "intent" po ng personality po.*

Representative Luistro. *Mr. Witness, balikan natin ang pattern of violence na una mong binanggit kanina. Ano ang inyong sinuri, kung mayroon man, kaugnay ng pattern of violence ng Bise Presidente?*

Mr. Matibag. *Sa tulong po ng amin pong Special Task Force ay amin pong binalikan ang mga pangyayari, na iyan naman po ay lumabas na tinatawag namin sa media na mga officers intel namin, at doon po nakita namin 'yung isang event noong Mayor pa po ang ating Vice President Sara Duterte, na mayroon pong isang sheriff na gustong gawin ang kanyang tungkulin, na legal na atas ng Korte, na magpatupad po ng demolition order. Subalit, hindi po ito nagustuhan ng noon ay Mayor at ngayon Bise Presidente, kung saan ay tinawag po niya 'yung Sheriff at pinagsusuntok po sa mukha itong sheriff na ito.*

Representative Luistro. *Mr. Witness, binanggit mo ang isang insidente ng sheriff na pinagsusuntok sa mukha. May ipapakita ako sa iyong video.*

[Video presentation]

Representative Luistro. *Ito ba ang insidenteng tinutukoy mo?*

Mr. Matibag. *Tama po. Iyan po.*

Representative Luistro. *Bukod sa insidente ng sheriff na sinuntok ng Bise Presidente, ano pa, kung mayroon man, ang inyong sinuri kaugnay ng pattern of violence ng Bise Presidente?*

Mr. Matibag. *As part of our investigation, kami po ay nakakuha ng mga dokumento related po dito sa aming iniimbestigahan, kung saan, we got hold of an affidavit, ito pong dating pulis na si Arturo Lascañas, na self-confessed member ng DDS, na kung saan, doon po sa kanyang affidavit na iyan, ay atin pong nakita at inilalarawan po at sinasabi nitong si Arturo Lascañas, na ang Bise Presidente mismo ay kasama doon sa Oplan Tokhang, isa sa mga arkitekto ng Oplan Tokhang. At dito rin po niya sinabi na instead na barilin at patayin, para hindi nalalaman ng media, ay kidnapin na lamang ang mga subject po—mga shabu users, o kaya iyon pong ibang*

gumagawa ng krimen, o nagtitinda ng droga—at ibaon na lang po sa isang quarry, na kung saan natagpuan po later on itong Laud Quarry, na mayroon pong mga biktima ng extrajudicial killings.

Representative Luistro. Mr. Witness, *nabanggit mo ang affidavit ni Arturo Lascañas. Nasaan ang affidavit na tinutukoy mo?*

Mr. Vinluan. Objection, Your Honor. May we know the relevance of all these questions?

Representative Luistro. Your Honor, we are establishing the pattern of violence, and this is very much relevant.

The Presiding Officer. Witness may answer.

Mr. Matibag. *Sa pagkakaalam ko po, ang affidavit na ito ay nakasumite po sa International Criminal Court, na sa kasalukuyan pong dumidinig ng kaso ng extrajudicial killings po.*

Representative Luistro. *Kaugnay pa rin ng affidavit of Arturo Lascañas, nasaan ang kopya nito, kung mayroon ka man?*

Mr. Vinluan. Objection, Your Honor. The witness is not competent to provide an answer an affidavit that he did not execute.

Representative Luistro. Your Honor, may I respond?

The Presiding Officer. Lead Counsel may respond.

Representative Luistro. Your Honor, this affidavit of Arturo Lascañas can be considered as a declaration against interest. He is saying in the affidavit *na siya ay hitman, na siya ay bahagi ng Davao Death Squad*, and under the *Rules*, Your Honor, this may be considered also even with respect to third party. And in this particular case, Your Honor, the Vice President, the Respondent, is the third party.

Mr. Vinluan. Just a rejoinder, Your Honor.

The Presiding Officer. Counsel for the Respondent.

Mr. Vinluan. Then, we would have to object to that, Your Honor, because it will be Mr. Lascañas, if at all, who has the personal knowledge. We're already going into the contents of such affidavit, and the witness is incompetent to testify on that.

The Presiding Officer. The Chair will make a ruling.

It is of no moment that it is a declaration against interest. Again, it is not an exception to the Hearsay Rule, and certainly not a declaration against the interest of the witness.

However, the Court will allow it as part of the testimony and narration only of the witness, not as to the truth of the allegations of fact contained in the affidavit of Lascañas—just as to the fact that the affidavit went through the office of the NBI Director, that he knows of the affidavit, but certainly for the information and likewise of the senator-judges, not as to the truth of the allegations stated in the Lascañas affidavit.

Witness may answer.

Mr. Vinluan. Your Honor, we will submit, but we register our continuing objection.

The Presiding Officer. The continuing objection of the Counsel for Respondent is duly noted and entered into the records.

Representative Luistro. Mr. Witness, *kaugnay pa rin ng affidavit ni Arturo Lascañas, nasaan ang kopya ng affidavit na ito?*

Mr. Matibag. *Mayroon po akong sipi ng...*

The Presiding Officer. Counsel, witness already answered—he said it is in the ICC, I believe.

Representative Luistro. Your Honor, I am pertaining to his actual copy.

The Presiding Officer. You may proceed, Counsel.

Witness may answer.

Mr. Matibag. *Nandirito po sa akin. Dala-dala ko po ang kopya ng affidavit.*

Representative Luistro. Your Honor, may we allow the witness to present his own copy?

The Presiding Officer. Witness is allowed to produce a copy he is referring to in his testimony.

For the record, Assisting Counsel for the Respondent, as well as Assisting Counsel for the Prosecutors, are viewing the document produced by the witness.

Mr. Vinluan. Your Honor, just a comment.

The Presiding Officer. Counsel for the Respondent is recognized.

Mr. Vinluan. Your Honor, it appears that this document has not been marked during the Pre-Trial Conference.

Representative Luistro. Your Honor, may I respond to that?

Mr. Vinluan. I am not yet done with my manifestation, Your Honor.

The Presiding Officer. Let the Counsel for Respondent finish.

Counsel?

Mr. Vinluan. In other words, may we request, Your Honor, that we be given a copy of such document as well for our perusal?

The Presiding Officer. The Prosecutor is so instructed to kindly furnish a copy, if, indeed, this document has not yet been marked.

Representative Luistro. Your Honor, may I respond to that?

The Presiding Officer. Counsel may respond.

Representative Luistro. The Affidavit of Arturo Lascañas has been previously marked as P-II-10-1-W, Your Honor, for the Prosecution.

Mr. Vinluan. Then, I stand corrected, Your Honor. But can we still request for a copy?

The Presiding Officer. Nevertheless, kindly give the Counsels for Respondent a copy.

Representative Luistro. We submit, Your Honor.

The Presiding Officer. Thank you, Counsel.

Mr. Vinluan. But we make the manifestation, Your Honor, that such exhibit was, indeed, marked, but it was marked under Article II, Your Honor— not Article IV.

Representative Luistro. We confirm, Your Honor. Nevertheless, we maintain that this document has been marked during the pretrial conference, Your Honor.

The Presiding Officer. Duly noted.

Representative Luistro. Mr. Witness—

Mr. Vinluan. Just an additional comment, Your Honor.

The Presiding Officer. Counsel may proceed.

Mr. Vinluan. It appears that the two documents are not the same, and that the marked documents contain a page and attached thereto is a USB. However, the copy of Director Matibag does not have—does not contain that page, Your Honor.

The Presiding Officer. I am sorry, Counsel.

Mr. Vinluan. It appears, Your Honor, that the two documents are not the same.

The Presiding Officer. What two documents are you referring to, the marked—

Mr. Vinluan. The marked exhibit and the set of documents from Director Matibag. With all due respect, Your Honor, the copy that was marked contains a page with annexes, including a USB, and such page does not appear in the copy provided by Director Matibag.

The Presiding Officer. So, the copy of Director Matibag does not contain a page with an attached USB.

Mr. Vinluan. That is correct, Your Honor. It is incomplete.

The Presiding Officer. Does Counsel for the Prosecutors, Assisting Counsel for the Prosecutors, or Lead Counsel confirm that, for the record?

Representative Luistro. We confirm, Your Honor. Nevertheless, the representation of the witness is that the copy is his own copy and does not pertain to the copy of the Prosecution. And we will be willing, Your Honor, to use the pre-marked copy for the purpose of confirmation of the witness, Your Honor.

The Presiding Officer. If you have it with you, Counsel, why not just use that copy—

Representative Luistro. Yes, Your Honor.

The Presiding Officer. —so that we can go directly to it, unless there are any reservations on the Counsel for Respondent.

Mr. Vinluan. Your Honor, if I may be recognized. We are okay with using—confronting the witness with his own copy, Your Honor. But, again, we manifest that it was not the document that was marked, and it does not contain the USB.

Moreover, just an additional manifestation: the marked copy or marked set contains a stamp “certified true copy,” but it was not signed by anyone and there was no date provided.

The Presiding Officer. Duly noted. Again, this is without prejudice to the Counsel for the Prosecutor furnishing Counsel for Respondent with a copy of the exact document produced by Director Matibag for further comparison and/or observation, either during cross or future proceedings later on.

Representative Luistro. We submit, Your Honor.

Mr. Vinluan. Your Honor, just a correction: there was a stamp, Your Honor, and a signature, but there was no name. Just for the record.

The Presiding Officer. Duly noted. For the record.

Representative Luistro. With the permission of the Court, we will be using the pre-marked document, Your Honor, for the purpose of confirmation.

The Presiding Officer. Likewise, for the information of the Counsel for Respondent, would that be okay?

Mr. Vinluan. Then we take exception to that, Your Honor, because it was not the one that was identified by the witness in open Court. What he identified was his own copy, and that copy does not contain any USB. So, he does not have—he will be incompetent to testify on a pre-marked exhibit that he did not submit or participate in.

The Presiding Officer. The exhibits can be later on compared with a certified true copy at a later date, as has been previously done by the parties. In the meantime, Chair will allow the witness to use his copy, without prejudice to any differences that may be shown, either through cross or through the comparison, after a copy shall have been furnished to the Counsel for Respondent.

Mr. Vinluan. Continuing objection, Your Honor.

The Presiding Officer. So, ordered.

Continuing objection is noted.

Representative Luistro. May we confirm, Your Honor, which copy we would be using for confirmation.

The Presiding Officer. The copy produced by Director Matibag will be the one that will be used in the meantime.

Representative Luistro. Mr. Witness, *kanina binanggit mo ang Tokhang*, Laud Quarry, *at ang Bise Presidente*. *Saang partikular na bahagi ng affidavit ni Arturo Lascañas na ipinapakita mo ngayon tumutukoy dito sa mga binanggit mo?*

Mr. Vinluan. Objection, Your Honor. Then that already goes into the contents of such affidavit. And since the witness is not the one who executed the affidavit, then he has no personal knowledge and incompetent to answer that question.

Representative Luistro. Your Honor, Your Honor, may I respond—

Mr. Vinluan. However, the Court already ruled, Your Honor.

The Presiding Officer. Counsel for the Prosecutor may respond before the Court rules on the objection.

Representative Luistro. Your Honor, the witness is merely pointing to that pertinent portion of the affidavit. And later, Your Honor, for the record, we will just be asking him to read into the records.

Mr. Vinluan. Just a short rejoinder, Your Honor.

The Presiding Officer. Counsel for the Respondent may give his rejoinder.

Mr. Vinluan. Objection, the document will speak for itself.

The Presiding Officer. Chair sustains the objection, Counsel for the Prosecutors, the document will speak for itself, and the document will be furnished to the Senator-Judges anyway, given that it is part of the annexes. Let the witness merely testify as to the fact that he included the affidavit of Mr. Lascañas as part of his investigation and part of his narration of his investigation to prove “pattern of violence.” But, again, not as to the truth and the contents of the affidavit itself.

Move on, Counsel.

Representative Luistro. With that, Your Honor, we will be requesting for the sub-marking of the pertinent portion of the affidavit of Arturo Lascañas the witness already referred to.

The Presiding Officer. Again, only as to tenor but not as to the truth, Counsel; for the record and for the information of the Senator-Judges, you may do so.

Representative Luistro. For purposes, Your Honor, of reference, which particular portion to be sub-marked, Your Honor, may we ask the witness to make reference or point which part of that affidavit he is referring to?

The Presiding Officer. In his investigation, Counsel.

Mr. Vinluan. Same objection, Your Honor.

The Presiding Officer. As part of his investigation, witness may answer.

Mr. Matibag. As part of our investigation, *ang importante po para sa amin dito* in establishing the pattern of violence, is *iyong* paragraph 270 and paragraph 270b and paragraph 270d.

Representative Luistro. For purposes of sub-marking, Your Honor, may we ask which particular part of paragraph 270 the witness first referred to?

Mr. Vinluan. Your Honor, manifestation.

The Presiding Officer. Counsel for Respondent may proceed.

Mr. Vinluan. All right. Your Honor, this pertains to an affidavit of Arturo Lascañas, and on page 186, Your Honor, of such an affidavit, it appears that even the signature is not a wet signature. It is a printed copy, and there is a subscription and sworn to portion thereof, but it is not notarized at all. So, this is a mere scrap of paper, Your Honor.

The Presiding Officer. Counsel—

Representative Luistro. Your Honor, the document is being presented only to seek confirmation from the witness that he is referring to this particular document as part of the investigation of the Special Task Force. We are not presenting it to prove the truthfulness of the contents of the affidavit. The question only, Your Honor, is whether or not this is the document that was part of the consideration of the Special Task Force in investigating the threat by the Vice President to the life of the President.

Mr. Vinluan. Just a short rejoinder, Your Honor.

The Presiding Officer. Counsel, may give a rejoinder or additional manifestation.

Mr. Vinluan. Then we will not allow this witness to build on the basis of a mere scrap of paper, Your Honor.

The Presiding Officer. Counsel, it was the Counsel for Respondent who chose this—to use this copy instead of the one previously marked, that I presume is either certified true or contains a more complete signature.

Mr. Vinluan. Then I would have to clarify, Your Honor, that it is our position—well, it is... First of all, we are not in the position to choose for this witness. But in the event that they use this document, we manifest, Your Honor, upon perusal that such document is unsigned and unnotarized, Your Honor. This is an affidavit. So, in other words, without the proper notarization and without the proper signature, then it is a mere scrap of paper. We cannot allow this witness to build his testimony based on this document.

Representative Luistro. Your Honor—

Mr. Vinluan. Your Honor, in fact, Your Honor, we request, Your Honor, that this Court peruse also page 186 of such document.

The Presiding Officer. Before the Court makes a—the Presiding Officer makes a ruling, the pre-marked document, is it notarized?

Representative Luistro. Your Honor, may I raise a question to the witness so that he will answer? Enlighten us on why the document is not notarized.

The Presiding Officer. You may Counsel. So, you're admitting that it's not—

Representative Luistro. Yes, Your Honor.

The Presiding Officer. —even your pre-marked copy is not notarized, whether we use that copy or this one.

Representative Luistro. We admitted to that, Your Honor.

The Presiding Officer. The witness will please explain why he is using in his investigation a document and/or affidavit that is not subscribed to or under oath, so it is not even an affidavit but merely a statement.

Mr. Matibag. *Ah, alam n'yo po, Your Honor, sa law enforcement po, mayroon po tayong mga tinatawag na open source intel, at ito po ay ipinadala sa atin, at atin pong susundan. At kaya nga po, ang amin pong imbestigasyon ay isang continuing investigation—open, continuing, and active investigation—sapagkat itong mga ganitong dokumento ay amin ding ikukumpara pa. Subalit, malaki po ang value ng mga ganitong bagay sa amin, sapagkat ito po ang nagbibigay rin sa amin ng direksyon at mga leads upang amin pong magampanan ang amin pong tungkulin na mag-imbestiga.*

The Presiding Officer. So, for the second time, and for the sake of clarity, and then for the information and guidance of the Senator-Judges, the document being identified by the witness is unsigned—is not notarized, not under oath, and it is only as to the fact that they used this document in their investigation, or as part of their investigation, but not as to the truth of the allegations contained in that unsubscribed document that was not made under oath.

Mr. Vinluan. Also, unsigned, Your Honor.

The Presiding Officer. Unsigned.

Representative Luistro. May I make a manifestation, Your Honor?

Mr. Vinluan. Also, unsigned, because there's a signature, but it appears to be a photocopy, so it doesn't qualify as a signature.

The Presiding Officer. With the additional manifestation of the Respondent, so noted.

What is the manifestation of the Counsel for the Prosecutors?

Representative Luistro. Your Honor, based on the ICC, as relayed to us by our witness, in the next article or in the last article that we will present, the ICC does not require notarization of documents.

The Presiding Officer. Noted. But we are not the ICC, Counsel. Again, we're just placing on the record, and for the record, the factual situation concerning the document that the witness is testifying to, for the information and guidance of the Senator-Judges.

Counsel for the Panel of Prosecutors, may proceed.

Representative Luistro. Mr. Witness, for purposes of sub-marking, can you read just a portion of paragraph 270, just for the guidance of the Impeachment Court?

Mr. Vinluan. Again, Your Honor, same objection. The document will speak for itself. The best evidence of the statement is a document.

Representative Luistro. Your Honor, we wanted to be guided.

The Presiding Officer. As previously ruled, the Court will allow it. Again, given the limited consideration, the Court will give this testimony of the witness and not as to the truth of what he will read.

Witness may answer.

Mr. Matibag. Paragraph 270: "The years 2012-2013 were the birth of "Tokhang" Operations and the evil side of enforcement in Davao City by its author, the newly-installed Davao City Police Office - Director Colonel Ronald 'Bato' Dela Rosa. The operations were all cleared and approved by Mayors Inday Sara Zimmerman Duterte-Carpio and Rodrigo Roa Duterte."

Representative Luistro. Your Honor, we are requesting that the portion read by the witness be bracketed and marked as Exhibit P-IV-35.

The Presiding Officer. So ordered.

Representative Luistro. Mr. Witness, what else is the pertinent portion of this affidavit that you are referring to?

Mr. Matibag. As mentioned earlier *po*, paragraph 270b.

Representative Luistro. For the guidance of the Impeachment Court, kindly read for purposes of sub-marking only.

Mr. Matibag. While eating, Colonel 'Bato' Dela Rosa told me in Bisayan dialect why he summoned me, and I quote: '*Tur*' (short of Arturo, my first name), *nagkaistorya me ni Mayor Inday* (referring to Davao City Mayor Inday Sara Z. Duterte-Carpio), *parti sa atoang 'Tokhang' operation* (as part of our Tokhang operation). *Ang order ni Mayor Inday sa akong e-lie low sa nato ang 'Pusil'* (Killing thru shooting) *sa atoang mga "target" personalities* (shabu users and pushers and other criminal elements in Davao City), *kay samokan siya sa 'media' magsige ug pangutana na pud. Kidnapa* (abduct) *na lang ninyo ang inyong "target" unya ilubong sa quarry* (laud quarry) *para 'missing' lang. Kay 'OK' si Mayor Inday sa ana nga paagi.*" (I talked to Mayor Inday. As part of our Tokhang operation, she ordered us to lay low our killings through gun shooting because the media is asking too much. Just kidnap the targets then bury them in the quarry, so they would go missing. She is OK with that way), to which I answered, 'Yes, sir.' *Sultian nako akoang grupo* (I'll inform my group). Colonel 'Bato' Dela Rosa instructed me, '*E-inform me, Tur, kung naa mo'y ma-abduct nga 'target' ninyo* (Inform me, Tur, whenever you kidnap a target.)"



Representative Luistro. Your Honor, we are requesting that that pertinent portion read by the witness be bracketed and marked as Exhibit P-IV-35a.

The Presiding Officer. So marked, Your Honor.

Mr. Vinluan. Your Honor, I just—

The Presiding Officer. Counsel for Respondent.

Mr. Vinluan. We just want to register again our continuing objection, Your Honor. Again, we already allowed, Your Honor, that the witness at least identified this document as to the fact, Your Honor, that he is allowed to read even portions thereof, he is not the author of this affidavit. And as to the truth or falsity thereof, he is incompetent to testify on that. And it already violates Your Honor, it already violates the rights of our client because she is being prejudiced by the reading of this affidavit that cannot even be verified because the person is not here to testify. That's our objection, Your Honor.

The Presiding Officer. Chair notes the objection and continuing objection of Counsel for the Respondent. And, as an additional, for the third time, perhaps, a reminder of the Presiding Officer to my fellow Senator-Judges, the mention of statements allegedly made by then-General Dela Rosa, now Senator Dela Rosa, are clearly hearsay, even on the part of Lascañas himself. But as to the fact that probably he told him that, it may be established if the affidavit of Lascañas, and if Lascanas is presented here.

Again, this is only as to the fact that this is what the NBI used in their investigation and coming up with their findings, not as to the truth of the statements being read by Director Matibag, much less the statements of other parties who did not execute this document. The continuing objection is noted. Witness may answer. Counsel will proceed.

Representative Luistro. We are requesting, Your Honor, that that portion just read by the witness be bracketed and marked as P-IV-35a.

The Presiding Officer. Let it be sub-marked.

Representative Luistro. Mr. Witness, *ano pa, kung mayroon man, ang mahalagang bahagi ng affidavit ni Arturo Lascañas na tinukoy mo kanina?*

Mr. Vinluan. Same objection, Your Honors.

The Presiding Officer. Noted. Witness may answer.

Mr. Matibag. *Sa paragraph (d) po,' yung portion po dito ay ito po ay isa sa aming pinagtuunan ng pansin sa aming imbestigasyon.*

Representative Luistro. Please read for the purpose of sub-marking only.

Mr. Matibag. "I later called up Retired Senior Police Officer (04) Sonny Buenaventura and relayed to him Colonel Ronald 'Bato' Dela Rosa's 'Abduction Operation order' to me, as allegedly ordered to him by Mayor Inday Sara Duterte-Carpio. Sonny Buenaventura answered that he would personally confirm and verify the matter with Mayor Inday Duterte. Two days later, to my recollection, Sonny Buenaventura called me and instructed me to meet him at Caltex Gasoline Station parking area in front of SM Mall Ecoland, Matina, Davao City, because Mayor Inday Sara Duterte will meet him in the said place. Sonny Buenaventura wanted me to narrate personally to Mayor Inday Sara about the 'Abduction Order' of Colonel Ronald 'Bato' Dela Rosa regarding his 'Tokhang' operation. I agreed. I immediately proceeded to Sonny Buenaventura's location. Upon my arrival on board my Strada pick-up vehicle at Caltex Gasoline Station parking area, Sonny Buenaventura motioned me to board his pick-up vehicle. However, before I could do so, Mayor Inday Sara Z. Duterte-Carpio arrived on board her SUV (a Fortuner-like vehicle), colored dark blue. Sonny Buenaventura then disembarked immediately from his vehicle and rushed to the vehicle of Mayor Inday Sara Duterte that stopped a few meters away from Sonny Buenaventura's pick-up vehicle. I stood in front of Sonny Buenaventura's pick-up vehicle, looking at them talking.

Mr. Matibag. Mayor Inday Sara Duterte-Carpio did not get-off from her vehicle while talking to Sonny Buenaventura and Sonny was standing on the left side of Mayor Inday Sara Duterte's vehicle. Then, Sonny Buenaventura hand signaled to me to come near him. I saw Mayor Inday Sara

Z. Duterte-Carpio inside her vehicle, alone. I personally heard Mayor Inday Sara Zimmerman Duterte-Carpio order Sonny Buenaventura and I, in Visayan dialect, and I quote: "*Bulgar man kaayo kung 'Pusilon' (SHOOT) ang 'target' ninyo 'nong'*" (referring to Sonny and myself, "NONG" short of "Manong" - older person). *Kidnapa na lang ninyo* ("target" shabu users and pushers and other suspected criminal elements in Davao City) *para 'missing' lang, para dili samok ang 'media'!* (Shooting your target is too brazen. Just kidnap them, so they would just go missing, and so that the media won't bother us). Sonny Buenaventura replied, "*Sige, Dai! OK!*" Then she drove away. It was a three to five-minute "Kill Order" thru "abduction operation" from a lady mayor of our city, the daughter of Mayor President Rodrigo Roa Duterte, that shed much blood of innocent poor Filipinos suspected of being "shabu" users and pushers in Davao City, now nationwide, thru the "Tokhang" campaign of the Philippine National Police Chief - Four Star General and a newly elected Senator - Ronald "Bato" Dela Rosa."

Mr. Vinluan. Your Honor.

The Presiding Officer. Counsel for Respondent.

Mr. Vinluan. Then, considering, Your Honor, the reading of this portion of this piece of paper, Your Honor, we ask for a Court's clarification on the part of the Chair that the reading of this document, Your Honor, already creates an impression not just to the minds of the Senator-Judges, but also the public. They may be misled, Your Honor, to believing the truth or falsity of these statements. So, in other words, Your Honor, this is highly improper for—with all due respect, Your Honor—for this Honorable Court to allow the reading of a portion of an affidavit that was not authored by this witness. He doesn't know, he doesn't have personal knowledge, again, and he's not competent to testify as to the truth or falsity of these statements. It is purely hearsay and excluded by the evidence in the *Rules of Court*, Your Honor.

The Presiding Officer. The Chair is inclined, at this point, to already agree with Counsel for Respondent. The Chair will cut short any further identifications of the witness in regard to this affidavit. I think you have sufficiently established, Counsel—

Representative Lnistro. May I comment, Your Honor?

The Presiding Officer. —the so-called pattern of violence that you sought to establish in the investigation of the NBI regarding the so-called grave threats that they are investigating. But the Chair will nevertheless remind again the Senator-Judges, as requested by Counsel for the Respondent, that this is only as to the fact that Lascañas executed a document that they used in their open-source investigation, not as to the truth of what was read. It was only identified for easy identification by the Senator-Judges, subject to that limited understanding. And, I think, Counsel, that should be enough for now insofar as establishing—your desire, rather, to establish so-called pattern of violence. Kindly move on already to the other grounds for investigation.

Mr. Vinluan. Just one last manifestation, Your Honor.

The Presiding Officer. Counsel for Respondent is recognized.

Mr. Vinluan. Well, in that case, Your Honor, with all due respect, again, then it is likely believed certain portions of the statements as read by this witness. Because we are already mentioning about a pattern. So, in other words, Your Honor, we gave credence, Your Honor, or value to the statements that were read, which is highly improper, and we would like to object to that, Your Honor.

Representative Luistro. May I respond, Your Honor?

The Presiding Officer. We did not give credence to it, Counsel. We merely allowed the witness to testify as to the evidence he used and/or considered in his investigation, which actually has not yet borne fruit unless he will testify to the contrary later on, as I believe the investigation, as of this moment, is still ongoing. But let it end at that. Counsel, please move on to another point.

Mr. Vinluan. We will submit, Your Honor, but register continuing objection.

The Presiding Officer. The continuing objection of Counsel for Respondent is duly noted and entered into the records.

Counsel—Lead Counsel for the Prosecutors, kindly move on to—

Representative Luistro. Yes, Your Honor.

The Presiding Officer. I presume you will go through the five—

Representative Luistro. Yes, Your Honor.

The Presiding Officer. —pillars of investigation of the NBI.

Representative Luistro. Yes, Your Honor.

The Presiding Officer. Kindly proceed to the next point—the gravity or seriousness aspect.

Representative Luistro. May I just request, Your Honor, that the last portion read by the witness be submarked as P-IV-35B?

Thank you, Your Honor.

The Presiding Officer. So ordered.

Mr. Vinluan. Continuing objection, Your Honor.

The Presiding Officer. Continuing objection of Counsel is noted.

Representative Luistro. *Maraming salamat sa iyong paglilinaw kaugnay ng pattern of violence. Ngayon, puntahan natin ang gravity at seriousness ng banta.*

Mr. Witness, *ano ang inyong sinuri, kung mayroon man, kaugnay ng gravity at seriousness ng banta?*

Mr. Matibag. *Unang-una na po rito, kung sino 'yung pinagbantaan, kung sino 'yung sinabing papatayin. At dito po natin makikita na dalawang pinuno ng dalawang sangay ng ating gobyerno—ang dating Speaker at ang Pangulo ng Pilipinas—ang pinagbantaan, kasama na rin po ang Unang Ginang. Kaya para sa amin po ay mabigat at seryoso po ang pagbabantang ito.*

Representative Luistro. *Bukod sa nabanggit mo na pinuno ng dalawang malalaking sangay ng gobyernong pinagbantaan, ano pa ang inyong sinuri, kung mayroon man?*

Mr. Matibag. *Mismong ang Bise Presidente na po ang nagsabi na—paulit-ulit—na “no joke, no joke.” At pati ‘pag tiningnan po natin ‘yung kanya pong press conference noong November 23, 2024, makikita natin sa kaniya na seryoso ang kaniyang pagsasabi nito.*

Representative Luistro. *Bukod dito sa binanggit mo na sinabi ng Bise Presidente, “no joke, no joke,” ano pa, kung mayroon man, ang sinuri mo kaugnay ng gravity at seriousness ng banta?*

Mr. Matibag. *Tiningnan po natin ‘yung mga kanina, katulad nung video noong October 18, at iyon pong kaniyang video noong November 23, at nasundan pa po ito noong November 26, na sinasabi niya at kinukumpirma na seryoso ang kaniyang pagbabanta, at siya ay mayroon nang kinausap at pumayag para patayin ang Pangulo ng Pilipinas.*

Representative Luistro. *Bukod sa nabanggit mong tatlong video, ano pa, kung mayroon man, ang iyong sinuri kaugnay pa rin ng gravity at seriousness ng banta?*

Mr. Matibag. *Para sa akin po, hindi na ito talaga banta kundi isa na pong confession ng kaniyang plano na pagpatay po sa ating Pangulo. Sapagkat makikita naman natin na sinabi niya na, “Meron akong kinausap at pumayag ang aking kinausap para patayin ang Presidente.”*

Mr. Vinluan. Objection, Your Honor. The witness already is providing conclusions of law, Your Honor. May we ask that it be stricken off the record?

Representative Luistro. Your Honor, may I respond to that?

The Presiding Officer. Counsel for the Prosecutor may respond, rather, the Lead Prosecutor may respond.

Representative Luistro. Your Honor, the witness is testifying as to what transpired during the investigation of the Special Task Force. He is testifying on the observation, appreciation, and findings of the Special Task Force, and this is the very purpose of presenting the testimony of NBI Director Melvin Matibag.

Mr. Vinluan. Short rejoinder, Your Honor.

The Presiding Officer. Counsel may give a rejoinder.

Mr. Vinluan. Part of the witness's response is the use of the term "confession," which is a legal term. The witness is a lawyer. He knows exactly what he is doing, Your Honor.

Representative Luistro. Nevertheless, Your Honor, that is the testimony of the witness, and that should be considered by the Impeachment Court.

The Presiding Officer. The Presiding Officer will issue a ruling. Let it stay in the record as part of the narration of the witness, but not as to a—for the Senator-Judges not to consider it as a conclusion of law, notwithstanding that the witness is the Director of the NBI and/or is a lawyer and a former dean. That is still not to be used by any of the Senator-Judges as a conclusion of law as to the fact in issue in this Impeachment Court.

Witness may answer. Rather, Counsel may proceed.

Representative Luistro. *Bukod sa binanggit mong confession, ano pa, kung mayroon man, ang iyong sinuri kaugnay pa rin ng gravity at seriousness ng banta?*

Mr. Matibag. *Maituturing po natin ito na mabigat at seryoso sapagkat alam n'yo po ang NBI, mayroon po kaming mga local counter—foreign counterparts na nasa investigation din, na patuloy namin pong nakakausap at nakakaugnayan. At kasama po roon, aming pinag-uusapan ang mga pangyayari sa kanilang lugar, sa ating lugar, at napag-aaralan po kung paano kami magkakaroon po ng collaboration at pagtutulungan. At kung saan po, sa amin pong pakikipag-usap rito ay atin pong napag-usapan—aming napag-usapan ang tungkol po sa ginawang pagbabanta ng Pangulo—ng Pangalawang Pangulo sa ating Pangulo at lumalabas po sa aming mga usapan na sinasabi na ito ay seryoso na pagbabanta at sinabi pa nga na kung sa kanilang jurisdiction ito nangyari, maaaring hanggang ngayon ay nakakulong ang nagbanta na Bise Presidente o maaaring natanggal na sa puwesto ang Bise Presidente na nagbanta sa Pangulo.*

Representative Luistro. *Maraming salamat sa iyong paglilinaw kaugnay ng gravity at seriousness.*

Puntahan natin iyong pangatlong batayan: identity.

Mr. Witness, *ano ang iyong sinuri, kung mayroon man, kaugnay ng identity ng pinagmumulan ng banta?*

Mr. Matibag. *Ito naman po ay malinaw na na-establish na ng identity at hindi naman po ito tinanggi, paulit-ulit naman na inamin na ang nagbanta, ang kumausap ng papatay ay ang atin pong Bise Presidente na si Vice President Sara Duterte.*

Representative Luistro. *Bukod sa Bise Presidente Sara Duterte, na tinukoy mong pagkakakilanlan ng nagbanta, ano pa o sino pa, kung mayroon man, Mr. Witness, ang inyong sinuri dito sa pag-aaral ng identity o pagkakakilanlan?*

Mr. Matibag. *Sinama na rin po namin dito ang tuloy-tuloy na mga banta, kahit na po ng mga ordinaryong indibidwal, at kasama na rin po rito ang patuloy na banta po na nabanggit po ng atin pong Mayor Baste Duterte.*

Representative Luistro. *Puntahan naman natin ang pang-apat ninyong batayan: capacity.*

Ano ang inyong mga sinuri kaugnay ng capacity to execute threat?

Mr. Matibag. *Unang-una po naming tiningnan sa capacity o kapasidad ng nagturan ng pagbabanta o pakikipag-usap nga sa pagpatay ay alam naman po natin na ang Bise Presidente ay may malawak na network, at alam po natin na matagal ding nanungkulang Pangulo ang kaniyang ama po, at sila po ay regionally ring kinikilala diyan po sa Davao. Ibig sabihin po, marami po silang network na maaari ding ibilang natin dito—iyong mga men in uniform sa Philippine military po natin, sa kapulisan—ito po ay ating ipinactor [factor] in na kasama po doon sa kapasidad na kayang gawin po ang kaniyang sinabing pagpapapatay.*

Representative Luistro. *Binanggit mo ang network ng dating Pangulo, ganoon din na ang ama ay dating Pangulo. Binanggit mo ang network ng Bise Presidente. Ano pa ang inyong sinuri,*

kung mayroon man, kaugnay pa rin ng capacity ng pinagmumulan ng banta?

Mr. Matibag. *Alam po natin, kanina, nabanggit ko na iyong pagiging kasama sa pagtatatag ng Davao Death Squad, at alam naman natin kung ano ang kakayahan ng Davao Death Squad, na pumatay ng mga tao through EJK. Ibig sabihin po, pag atin itong ibinilang, kasama po ito sa kapasidad ng ating Bise Presidente na maisagawa po ang kaniyang plano.*

Representative Luistro. *At bukod sa inyong pagsusuri dito sa Davao Death Squad ano pa, kung mayroon man, ang inyong sinuri kaugnay pa rin ng capacity ng nagbanta?*

Mr. Matibag. *It is also of public record. Nakikita naman natin po sa mga balita na ang mga Duterte ay maraming pag-aari na mga baril at alam din naman po natin na they are well connected financially para matustusan o maisagawa ang kanila pong plano na pagpatay po sa Pangulo ng Pilipinas.*

Representative Luistro. *Bukod sa binanggit mong pag-aaring baril at financial connections, Mr. Witness, ano pa, kung mayroon pa, ang inyong sinuri kaugnay pa rin ng capacity ng nagbanta?*

Mr. Matibag. *Karugtong po rito 'yung Vice Presidential Security Group, 'yung VPSG na tinatawag natin, na alam natin na sa ngayon ay napakarami pong miyembro, na isang tawag lang ng ating Bise Presidente ay nandidiyan para tumugon po sa kaniya pong mga instructions.*

Representative Luistro. *Mr. Witness, puntahan natin ang panglima ninyong batayan: motive or intention.*

Ano ang inyong mga sinuri, kung mayroon man, kaugnay ng motive at intention ng nagbanta?

Mr. Matibag. *Unang-una po at nasasaad naman ito sa atin pong batas, sa ating Konstitusyon, na kung ang Pangulo ng Pilipinas ay mawawala, mamamatay, ang susunod po na uupo, by succession ay ang Bise Presidente. So, pumapasok po ito sa—sa motibo at sa intensiyon.*

Representative Luistro. *Bukod sa ang Bise Presidente ang papalit kung mawawala ang Presidente, ano pa ang inyong sinuri, kung mayroon man, kaugnay pa rin ng motive at intention ng nagbanta?*

Mr. Matibag. *Dito na po namin sinundan 'yung tinatawag namin na sunod-sunod at magkakaugnay na pattern na nangyayari, at kaya po namin paulit-ulit na sinasabi na ang banta sa Pangulo ay banta sa ating national security, sapagkat nakikita po natin na it's creating chaos, nagkakaroon po ng kaguluhan, sunod-sunod po na pagtuligsa sa—sa gobyerno, at iyong mga ordinaryong mamamayan na nga po ang makikita natin patuloy pong nagbabanta sa Pangulo. Katunayan, marami po kaming monitoring sa social media ng mga banta na amin pong sinusundan sa seguridad po ng ating Pangulo.*

Representative Luistro. *Maraming salamat sa iyong paglilinaw sa limang batayan na inyong ginamit kaugnay ng imbestigasyon ng Special Task Force.*

Kanina ay binanggit mo na na maging ang ordinaryong mga tao ay nagbabanta na rin sa buhay ng Presidente.

Mr. Vinluan. *Objection, Your Honor. May we know the question?*

The Presiding Officer. *Allow the Counsel to finish. She is not yet finished.*

Representative Luistro. *Your Honor, I am laying the basis.*

Binanggit mo na maging ang ordinaryong tao ay nagbabanta na rin sa buhay ng Pangulo. Ano pa ang naging obserbasyon mo na may kinalaman sa naging banta ng Pangulo—ng Bise Presidente sa buhay ng Pangulo?

Mr. Vinluan. *Objection on the use of the word "banta," Your Honor.*

The Presiding Officer. *Witness already used that word. Counsel is simply referring to the words used by the witness himself already at this time.*

Witness may answer.

Mr. Matibag. *Napansin ko nga po na tumaas ang antas ng kaguluhan sa pamamagitan po—doon lamang po sa social media, kitang-kita natin, meron pong mga panahon na ang atin pong Pangulo ay nasa isang event na live, meron pong mga magko-comment na barilin na iyan, meron pong mga video na nakuha ang ating CCD na merong nagkakasa ng baril at ang reference din po ay, "Isang bala lang ito sa ulo ng Presidente."*

So iyan po 'yung kapansin-pansin na nagdudulot sa atin ng panganib sa ating Pangulo at sa atin pong pambansang seguridad.

Representative Luistro. *Pagkatapos ng mga nabanggit mong obserbasyon sa inyong imbestigasyon, ano ang inyong ginawa sa Special Task Force kaugnay pa rin ng inyong imbestigasyon sa banta ng Bise Presidente sa buhay ng Pangulo?*

Mr. Matibag. *Malinaw po ang mandato ng Special Task Force, at ang mandato po nito ay patuloy na bantayan ang seguridad po ng ating Pangulo, at hindi lamang po para bantayan ang seguridad ng Pangulo, kundi hanapin at ma-identify kung sino ang kinausap ng Bise Presidente para po patayin ang ating Pangulo.*

Representative Luistro. *Binanggit mo na bahagi ng inyong ginawa ay hanapin ang taong kinausap ng Pangulo. Ano ang inyong napag-alaman, kung mayroon man, kaugnay ng tao na kinausap ng Bise Presidente upang patayin ang Pangulo, ang First Lady, at ang former Speaker?*

Mr. Matibag. *Sa ngayon po, ang amin pong imbestigasyon at ang task force is continuing and active investigation of the threat to the President. Meron po tayong mga leads na atin pong sinusundan at katunayan we already have established persons of interest na maaaring makapagturo o tumukoy doon sa taong kinausap ng ating Bise Presidente, o maaaring isa rito sa tinatawag nating persons of interest ang siyang talagang nakausap ng Bise Presidente.*

Representative Luistro. *Mr. Witness, binanggit mo iyong "persons of interest." Upang mas maunawaan tayo ng mga kababayang nanonood, ano ang ibig sabihin mo ng "persons of interest?"*

Mr. Matibag. *Ang ibig sabihin po nito, itong mga taong ito ay maaaring magbigay-linaw, o makapagturo sa identity ng taong kinausap, o sa pangyayari ng pag-uusap, o iyon nga po, maaaring sila mismo ang nandodoon, or sila mismo ang kinausap—kaya po ito tinatawag na persons of interest. Hindi po nangangahulugan na sila na mismo ang kinausap, gaya ng akin pong sinabi.*

Representative Luistro. *Kaugnay pa rin ng binanggit mo na mayroon ng persons of interest, Mr. Witness, ano ang pagkakakilanlan ng mga persons of interest na tinukoy mo?*

Mr. Matibag. *Respectfully, Mr. Presiding Officer, kinalulungkot ko po, pero, sa akin pong katatayuan, bilang NBI Director, ay hindi ko po maaaring isiwalat ang pagkakakilanlan o pagkatao ng ating mga persons of interest na ito sapagkat, gaya ng aking sinabi, this is a continuing and an open investigation po sa nangyari po na pagkontrata sa pagpatay sa ating Pangulo.*

Representative Luistro. *Mr. Witness, matagal nang hinihintay ng sambayanan kung sino ang taong kinausap ng Bise Presidente, as a matter of fact, maging ang ating iginagalang na mga Senator-Judges ay nagtatanong din kaugnay ng pagkakakilanlan ng taong kinausap ng Presidente. Ano ang dahilan, kung mayroon man, bakit mo sinasabi—Vice President—bakit mo sinasabi na hindi ito puwedeng i-disclose o isa-publiko itong mga persons of interest na tinukoy mo?*

Mr. Matibag. *Alam po ninyo, maraming kadahilanan. Tayo po ay nasa law enforcement. Kapag ang ganito pong bagay na it's an open and continuing investigation ay ating isisiwalat, unang-una pong mangyayari rito ay makokompromiso po ang ating imbestigasyon at mailalagay po sa alanganin iyon pong ating mga tinatawag na informants o assets na nasa ground na nagbibigay po sa atin ng human intel na tinatawag. At kasama na rin po rito, na iyon pong aming capability to have successful operation ay makokompromiso sapagkat maaaring hindi na po kami pagtiwalaan ng amin pong mga pinanggalingan na source.*

Mr. Matibag. *Pangatlo po, it will violate the right of privacy po ng mga individual na ating natukoy na persons of interest, at meron din po itong kaparusahan under the Administrative Code na kung ang isa pong information ay confidential, secret, or top secret, eh hindi po ito puwedeng ibahagi basta-basta sa publiko. Ito po ay exception din sa freedom of information under po sa Memorandum Order No. 15 po ng atin pong Pangulo.*

Representative Luistro. Mr. Witness, *binanggit mo ang maraming dahilan kung bakit hindi mo puwedeng i-disclose itong pagkakakilanlan ng mga persons of interest. Baguhin ko yung tanong: Anong pagkakataon, kung meron man, na maaari mong ibahagi sa Impeachment Court na ito ang mga persons of interest na tinutukoy mo?*

Mr. Matibag. *Alam po ninyo, kahit dumating iyong punto na matukoy na natin kung sino ang kinausap, we have the right to protect iyong pong aming mga informants. Sapagkat ang pinoproteksiyonan din po namin dito ay ang institusyon ng NBI. Subalit ito po ay patuloy na pagsusuri at report, tuloy-tuloy na ginagawa po ng National Bureau of Investigation. Katunayan po, nandito po sa akin iyong mga report ng task force, tagged as confidential, kaya ipagpaumanhin po ninyo na talagang hindi ko po ito puwedeng ibahagi na pampubliko.*

Representative Luistro. *Ano-ano iyang mga—*

Mr. Vinluan. Your Honor, please.

The Presiding Officer. Counsel for the respondent is recognized.

Mr. Vinluan. Your Honor, considering already the length of time, can we just ask for a five-minute recess, Your Honor?

The Presiding Officer. Actually, I'm about to do so as soon as the lead counsel winds up.

Representative Luistro. Your Honor, I'm about to conclude.

The Presiding Officer. As soon as the direct examination is concluded, the Chair will declare a recess before we proceed with the cross. Would that be okay, counsel?

Mr. Vinluan. Okay, Your Honor.

The Presiding Officer. Counsel may proceed. Witness may answer.

Representative Luistro. Mr. Witness, *ano iyang mga papel na ipinapakita mo kanina?*

Mr. Matibag. *Ito po iyong patuloy na pag-uulat, mga minutes ng meeting, at mga intel report po na nasagap, kaugnay po sa ating isyung pinag-uusapan.*

Representative Luistro. *Kaugnay ng mga persons of interest na hindi mo puwedeng isiwalat, iyan ba ay bahagi ng mga papel na iyong ipinapakita?*

Mr. Matibag. *Kasama na po ito.*

Representative Luistro. Mr. Witness, I'm about to conclude. *Ano ang nalabag ng Bise Presidente kung mayroon man—*

Mr. Vinluan. Objection, Your Honor—

Representative Luistro. —*kaugnay ng banta niya sa buhay ng Presidente? Your Honor, this is still part of the investigation.*

The Presiding Officer. I will have to sustain the objection. It would call for a conclusion of law, and as admitted by the witness himself, the investigation is ongoing unless he has concluded it already. Kindly rephrase, counsel.

Representative Luistro. I have no further question, Your Honor.

SUSPENSION OF TRIAL

With the permission of the Court, the trial was suspended.

It was 4:03 p.m.

RESUMPTION OF TRIAL

At 4:42 p.m., the trial was resumed.

APPROVAL OF THE *JOURNAL*

Upon motion of the Presiding Officer, there being no objection, the Body dispensed with the reading of the July 20, 2026 *Journal* of the Senate Sitting as an Impeachment Court and considered the same as approved.

The Presiding Officer reiterated that the *Journal* had to be approved before the end of the day's trial taking into consideration the request of the Counsel for the Respondent for copies thereof. He also stated that the unsubmitted manifestations would still form part of the records of the Court.

CROSS EXAMINATION

Atty. Mark Vinluan conducted the cross examination of the witness, NBI Director Melvin Matibag, as follows:

Mr. Vinluan. Good afternoon, Director Matibag.

Mr. Matibag. Good afternoon.

Mr. Vinluan. As NBI Director, you are the chief executive of the Bureau.

Mr. Matibag. I'm the chief of the Bureau, yes.

Mr. Vinluan. And part of your duties is to oversee the conduct of investigations, correct?

Mr. Matibag. Tama po.

Mr. Vinluan. You're also authorized to issue subpoenas for the production of witnesses and documents, correct?

Mr. Matibag. Correct, tama po.

Mr. Vinluan. Very well. Now, the NBI conducted an investigation following the November 23, 2024, presscon, am I right?

Mr. Matibag. I'm aware of the report that there was a subpoena issue, but I have no personal knowledge of the issuance.

Mr. Vinluan. Okay. We'll go there in a while. But this investigation was documented in the two affidavits of investigation, correct?

Mr. Matibag. That's correct, Your Honor.

Mr. Vinluan. And did you read and understand these two affidavits of investigation?

Mr. Matibag. I read the affidavit of investigation, which was forwarded to the Department of Justice, which is dated February 11.

Mr. Vinluan. Okay. So, as part of that investigation, will you agree that individuals were subpoenaed?

Mr. Matibag. There were individual subpoenas.

Mr. Vinluan. More or less ten subpoenas?

Representative Luistro. Your Honor, please.

The Presiding Officer. Counsel for the panel of prosecutors—rather, the lead prosecutor is recognized.

Representative Luistro. Your Honor, the witness was appointed as NBI director only in February 2026. His testimony with respect to the first investigation will only be based on records.

Mr. Vinluan. Your Honor—

Representative Luistro. So, if it will go into the detail of the investigation, I'm afraid, Your Honor, he is not competent as he has no personal knowledge about the first investigation, Your Honor.

The Presiding Officer. To begin with, asked and answered, and the witness was about to answer if he knows, given that he is the current superior of this agency. And I presume that he has kept himself abreast of what happened in his agency prior to his assumption in February of 2026. Witness may answer if he knows.

Mr. Matibag. Please repeat the question.

Mr. Vinluan. So, more or less around ten subpoenas were issued, correct? If you know?

Mr. Matibag. Well, I cannot count, but I know that there were personalities subpoenaed.

Mr. Vinluan. Okay. Very well. Now, these people were asked to appear before the NBI, correct?

Mr. Matibag. Yes, that is the very purpose of the subpoena.

Mr. Vinluan. Now, these appearances were on various dates in November and December of 2024, correct, if you know?

Mr. Matibag. I cannot recall exactly.

Mr. Vinluan. Now, if you know also, some appeared while some did not.

Mr. Matibag. Yes, I was informed during the briefing.

Mr. Vinluan. All right. Now, for those who appeared, the NBI conducted interviews with them?

Mr. Matibag. Yes.

Mr. Vinluan. And minutes of these interviews were recorded, correct?

Mr. Matibag. That is the standard procedure, so I suppose during that time it was recorded.

Mr. Vinluan. SOP. All right. So, after the interviews, the interviewers were also NBI agents who executed affidavits. Is that also a part of the SOP?

Mr. Matibag. Yes, that is correct.

Mr. Vinluan. And the affidavits attested that interviews were conducted, correct?

Mr. Matibag. Yes, it will be signed by the investigating officers and eventually signed by a superior officer.

Mr. Vinluan. Very clear so far. Now my question to you is this: Did you actually participate in these stages of the investigation?

Mr. Matibag. That is very impossible because I'm not yet a director at that time.

Mr. Vinluan. Okay. That's okay. Are you aware that a subpoena was issued to VP Sara?

Mr. Matibag. Yes, I was informed.

Mr. Vinluan. Did you sign that subpoena?

Mr. Matibag. I was not there, so I cannot sign it.

Mr. Vinluan. Okay. Are you aware that a subpoena was issued to Dempsey Reyes of the Philippine Daily Inquirer?

Mr. Matibag. I know that there are personalities subpoenaed who were present during the press conference on November 23, but I cannot recall exactly who the personalities are because I just went through the affidavit of investigation.

Mr. Vinluan. Did you sign that subpoena for Dempsey Reyes?

Mr. Matibag. That is impossible because...

Mr. Vinluan. That's okay. Now, are you also aware that a subpoena was issued to Red Mendoza of Manila Times? We can confront you with the hard copy if you just want to refer to it, but you can answer also. At any rate, we are showing the soft copies, Your Honor, for the benefit of this honorable court.

Representative Luistro. Your Honor, may I just—

The Presiding Officer. Assisting counsel may approach the witness. What is the pleasure of the lead prosecutor?

Representative Luistro. Your Honor, may I just enter into the record that the witness already testified that he has no personal knowledge about the first investigation, and all his testimonies will be based only on the records existing in the NBI.

Mr. Vinluan. At any rate, Your Honor—

The Presiding Officer. If he knows, if he knows, the witness will answer.

Representative Luistro. Your Honor, may we request also that those flashed on the big screen be explained by the defense counsel?

Mr. Vinluan. I already explained, Your Honor. We're confronting the witness with hard copies and the subpoenas. The soft copies thereof are displayed—

Representative Luistro. May we know, Your Honor, if these documents are pre-marked?

Mr. Vinluan. Well, it is part, Your Honor, of Articles of Impeachment, Annex G-9, pages 159 onwards. So, it is part of the records of this case. This is not a document.

Representative Luistro. May we know if they are pre-marked?

Mr. Vinluan. Yes, we can mark it. And it was also pre-marked.

The Presiding Officer. It is pre-marked—

Mr. Vinluan. But at any rate, Your Honor, these are not our documents. These are NBI documents, Your Honor.

The Presiding Officer. No, the query is just if it's pre-marked so that the senator-judges can refer to it if at all when they—

Mr. Vinluan. The marking is—sorry, Your Honor. The marking is D-1-145, Your Honor.

The Presiding Officer. Which document, counsel? Because I see eight documents on the table.

Mr. Vinluan. In succession, Your Honor.

The Presiding Officer. In succession?

Mr. Vinluan. Those are all parts.

The Presiding Officer. Counsel, may we proceed?

Mr. Vinluan. All right. Now, for the—

Representative Luistro. Your Honor, may I be clarified only about the XX which are superimposed on those documents on the screen?

The Presiding Officer. Counsel for the correspondent, will please reply?

Mr. Vinluan. Your Honor, it was based on the witness's own answer that he did not personally sign—

Representative Luistro. Nonetheless, it does not reflect the exact document referred to by the defense, Your Honor, and that should not be allowed, Your Honor, with all due respect.

Mr. Vinluan. It is just to illustrate, Your Honor, for the benefit of the senator-judges, and as well as the public watching, so that they can also follow the—

Representative Luistro. Objection.

The Presiding Officer. Lead Prosecutor, we will allow it. So, for the information of senator-judges, the counsel for the respondent confronted the witness with respect to these affidavits that were part of the investigation conducted prior to his assumption as NBI director. And the witness simply stated that he has no personal knowledge with respect to the execution or due execution, rather, of these two affidavits, thus far out of, I presume, 10.

Representative Luistro. May I comment, Your Honor?

The Presiding Officer. The Lead Prosecutor may register her comment.

Representative Luistro. May I know what is wrong with just presenting the exact document instead of those which are marked with XX? Your honor, I'm afraid it will give a wrong impression to the viewing public that those XX has something to do with inability, perhaps, or whatever impression it may give to the witness with respect to attending to this subpoena, Your Honor.

Mr. Vinluan. Short rejoinder.

Representative Luistro. May we just remove those XX. We don't mind if they flash the documents but it should be an exact reflection of what the document is.

Mr. Vinluan. Short rejoinder, Your Honor.

The Presiding Officer. No need for a rejoinder. Court has ruled, and the Court notes the observation, manifestation, and objection of the Lead Prosecutor. Again, I think it's quite plain. That these are documents that the witness cannot or does not have personal knowledge about because he was not yet the NBI director. Counsel may proceed. Witness may answer.

Mr. Vinluan. All right. I'll move on.

Are you aware that a subpoena was issued to Red Mendoza of Manila Times?

Mr. Matibag. I'm aware that there is a subpoena on the actual issue of the subpoena, that time, that will be impossible to be aware of because I'm no longer—I am not yet the NBI director.

Mr. Vinluan. So, in short, you did not sign it?

Mr. Matibag. I did not sign it. I think it was signed by Glenn Ricarte.

Mr. Vinluan. All right. That's enough. Okay. Now, are you aware also that the subpoena was issued to Bons Magsambol of Rappler?

Mr. Matibag. Based on the Affidavit of Investigation, I think it was mentioned.

Mr. Vinluan. And did you sign that subpoena?

Mr. Matibag. It is again signed by a certain Glenn Ricarte.

Mr. Vinluan. Are you aware that a subpoena was issued to Ana Rosario Malindog-Uy, also of Manila Times?

Mr. Matibag. Again, based on the investigation report.

Mr. Vinluan. And did you sign that subpoena?

Mr. Matibag. No.



Mr. Vinluan. All right. Are you aware that a subpoena was issued to Jason Rubrico of SMNI?

Mr. Matibag. Again, based on the investigation report.

Mr. Vinluan. Did you sign that subpoena?

Representative Luistro. Your honor, may I respectfully interrupt?

The Presiding Officer. The Lead Prosecutor is recognized.

Representative Luistro. The prosecution is willing to stipulate as to the issuance of this subpoena by the National Bureau of Investigation during the time that the witness is not yet appointed as the NBI director, Your Honor.

Mr. Vinluan. But that's not my question, Your Honor.

Anyway, Your Honor—

The Presiding Officer. Unless you're willing to stipulate, counsel, to abbreviate the proceedings that insofar as the questions of the counsel for respondent is concerned, that for the remaining four subpoenas, that the same answer of the witness for the previous six ones will be the same.

Representative Luistro. We are willing to stipulate on that, Your Honor.

Mr. Vinluan. We are not willing to stipulate, Your Honor. We'll just ask for a ruling from the court.

The Presiding Officer. In that case, witness may proceed—witness may answer. Counsel will please proceed.

Mr. Vinluan. All right. Are you aware that the subpoena was issued again to Jason Rubrico of SMNI?

Mr. Matibag. Same answer, Your Honor.

Mr. Vinluan. Same answer. And you did not sign that subpoena for Jason?

Mr. Matibag. I said same answer, Your Honor.

Mr. Vinluan. Are you aware that a subpoena was issued to Mikhail Flores of Reuters?

Mr. Matibag. Same answer, Your Honor.

Mr. Vinluan. Your honor, may we ask, your honor, that the the lawyer of the prosecution do not supply anything or make any comment near the witness? Because it may affect his—

The Presiding Officer. Is he—the assisting counsel may not supply any information to the witness other than merely observing the document being shown to him by assisting counsel for respondent.

Counsel may proceed.

Mr. Matibag. Mr. Presiding Officer, may I speak?

The Presiding Officer. Yes, Director Matibag.

Mr. Matibag. The counsel is not telling anything but may I request not to cover the view so that the people can see me.

The Presiding Officer. Yes, that may be granted by the Presiding Officer.

Mr. Matibag. Thank you, Your Honor.

The Presiding Officer. Assisting counsel, can you sit beside the assisting counsel for—stand, rather, beside the assisting counsel for the respondent?

You may proceed, counsel for the respondent.



Mr. Vinluan. Are you aware that a subpoena was issued to Mikhail Flores of Reuters?

Mr. Matibag. Same answer, Your Honor.

Mr. Vinluan. Same answer, you did not sign it. Okay. Are you aware that a subpoena was issued to Trixie Cruz Angeles?

Mr. Matibag. Same answer.

Mr. Vinluan. And you did not sign it. Okay. Are you aware that a subpoena was issued to two OVP personnel? And did you sign the subpoena?

Mr. Matibag. Same answer.

Mr. Vinluan. All right. So, not a single one.

Now, my next question to you is this, did you oversee any interview that was conducted in the fact-finding investigation?

Representative Luistro. Your honor, the question is vague.

Mr. Vinluan. The witness is a lawyer and is competent to answer, if he knows, Your Honor.

Representative Luistro. Your Honor, during the direct, it was established that there were two investigations. The first investigation and the current investigation of the STF. The counsel needs to specify which investigation is he referring to.

Mr. Vinluan. The affidavit and—

The Presiding Officer. Counsel will please clarify?

Mr. Vinluan. Okay. Did you oversee any interview that was conducted in the investigation that was covered by the Affidavit of Investigation?

Mr. Matibag. As mentioned in my testimony, I was appointed only on February 20, 2026, and it is very unlikely to be part of the investigation prior to that.

Mr. Vinluan. Okay. So, are you aware that there were at least four interviews that were conducted?

Representative Luistro. Your Honor, asked and answered.

Mr. Vinluan. That is a different question, Your Honor.

Representative Luistro. Nonetheless.

The Presiding Officer. Witness may answer.

Mr. Matibag. I'm not aware because I'm not yet there.

Mr. Vinluan. Okay. So, are you aware—let me be more specific—are you aware that an interview of Dempsey Reyes of PDI was conducted?

Mr. Matibag. I'm not aware of that, but as reflected in the investigation report, it was there.

Mr. Vinluan. So, in other words, you did not oversee that interview.

Mr. Matibag. Yes, definitely.

Mr. Vinluan. All right. Are you aware that there was an interview of Red Mendoza of Manila Times?

Mr. Matibag. Same answer, Your Honor.

Mr. Vinluan. Same answer. Are you aware that there was an interview of Bons Magsambol of Rappler?

Mr. Matibag. Same answer.

Mr. Vinluan. Same answer. So, you did not oversee that interview. And are you aware that there was an interview of Jason Rubrico, did you oversee this interview?

Mr. Matibag. Again, the same answer.

Mr. Vinluan. Same answer. Okay. Did you see them sign any minutes of the meeting?

Mr. Matibag. No.

Mr. Vinluan. No. Did you meet anyone of these interviewees? Before or after? Before or after?

Mr. Matibag. Who among the—

Mr. Vinluan. Among the interviewees that I mentioned?

Mr. Matibag. No.

Mr. Vinluan. No. Did you meet anyone of their lawyers?

Mr. Matibag. No.

Mr. Vinluan. No. All right. Now, were you even present at the NBI Cybercrime Division Office at the time of this interviews?

Mr. Matibag. That is impossible.

Mr. Vinluan. All right. After the interviews, affidavits attesting to the interviews were executed, as you mentioned, did you oversee the drafting of these affidavits by the NBI agents?

Mr. Matibag. Again, very unlikely. I was not present.

Representative Luistro. Your honor, if I may interrupt, may I just enter a continuing—

The Presiding Officer. The Lead Prosecutor may make a manifestation enter a continuing objection as I presume she will.

Representative Luistro. Yes, Your Honor. I'm entering a continuing objection to the line of questions of the defense on the ground as stated by the witness he has no personal knowledge about the investigation conducted prior to his appointment in February 2026, Your Honor. Just for the record.

The Presiding Officer. The continuing objection is noted. Counsel for respondent may proceed.

Mr. Vinluan. No need for that rejoinder.

But were you present when the NBI agents subscribed and sworn to their affidavits?

Mr. Matibag. I was not there.

Mr. Vinluan. You were not there. Still nothing. So, and since you did not actually participate, it means that you do not have personal knowledge of these stages of the investigation, correct?

Mr. Matibag. During that time, yes, but I—as I mentioned earlier, I read the investigation report.

Mr. Vinluan. So, your knowledge of the investigation was based on only of your reading?

Mr. Matibag. That is absolutely correct, and upon the discussion of the investigating officers.

Mr. Vinluan. Okay. Very well. Now, were you present at the November 23, 2024 presscon?

Mr. Matibag. I was not present, Your Honor.

Mr. Vinluan. You're not present.

Mr. Matibag. I was not participating on that.

Mr. Vinluan. And if you know, was any NBI agent present at the November 23, 2024 presscon?

Mr. Matibag. None that I know of.

Mr. Vinluan. None. All right. So, in layman's terms, for the benefit of this honorable court and the Filipino people watching, I'll phrase my question in Tagalog. So, *sa kabila po ng pagtestigo po ninyo ngayong araw, inaamin niyo ba na wala kayong personal na kaalaman sa nangyaring investigation starting November 23, 2024?*

Mr. Matibag. *Malinaw naman po iyon, at ang korte po can take judicial notice of the fact na hindi pa po ako NBI director ng panahon na iyon.*

Mr. Vinluan. So, you're confirming that you do not have personal knowledge because you were only appointed as NBI director a year later or on February 20, 2026?

Representative Luistro. Your Honor, asked and answered questions.

Mr. Vinluan. I haven't even asked that question, Your Honor.

The Presiding Officer. Can we let counsel finish?

Mr. Vinluan. So, again, I will repeat, so the reason for this is that because you became NBI director only a year later, or on February 20, 2026, correct?

Mr. Matibag. *Tama po.*

Mr. Vinluan. All right. Okay. So, prior to February 20, 2026, you do not have any personal knowledge of any investigation, correct?

Mr. Matibag. *Nababasa ko lang po sa balita mga mangyayari.*

Mr. Vinluan. Which is not personal knowledge, correct?

Mr. Matibag. Well, *iyon lang po iyong knowledge natin.*

Mr. Vinluan. You're a lawyer, correct?

Mr. Matibag. *Tama po, 29 years.*

Mr. Vinluan. Twenty-nine years. Can you recall Rule 130, Section 22 of the Rules of Evidence?

Mr. Matibag. Can you refresh me, Your Honor? Because I don't have a copy.

Mr. Vinluan. ...Okay. I will gladly you refresh you, of course.

I have here a copy of Rule 130, Section 22 of the Rules of Evidence, and I'll read it—please read with me, Director Matibag—"Testimony confined to personal knowledge." A witness can testify only to those facts which he or she knows of his or her personal knowledge; that is, which are derived from his or her own perception. Can you recall that rule now?

Mr. Matibag. *Ayan po, nababasa ko po ngayon. Tama po.*

Mr. Vinluan. Okay, can you read it.

All right. So, based on this rule, will you agree with me that a witness can only testify based on his personal knowledge?

Representative Luistro. Your Honor, may I comment to that?

Mr. Vinluan. These are basic questions, Your Honor. The witness is a lawyer; he is competent enough to answer.

The Presiding Officer. Counsel, are you making an objection?

Representative Luistro. This is a comment, Your Honor.

The witness repeatedly testified that he was appointed only in February 20, 2026, and that all his testimonies pertaining to the first investigation are based on records, Your Honor.

And this is allowed, as a matter of fact, under the rules, entries in official records are considered as *prima facie evidence* of the contents thereof, and that is exactly the basis of the witness in answering the question of the defense.

All his knowledge pertaining to the first investigation are based on records.

Mr. Vinluan. Short rejoinder, Your Honor.

The Presiding Officer. No need, Counsel.

Distinguished lead prosecutor, the counsel for respondent did not object to the line of questioning of the lead prosecutor earlier based exactly on the grounds cited by the lead prosecutor.

The Presiding Officer will give sufficient leeway to the counsel for respondent to establish his point. I think you also see what he is trying to establish, that's why you made a continuing objection in relation to it. I'll give you some leeway, Counsel, but go to your next topic as soon as you're done with this.

Mr. Vinluan. Thank your, Your Honor.

So, again, based on this rule, a witness can only testify based on his personal knowledge, correct?

Mr. Matibag. *Tama po, pero mayroon pong mga exception sa mga iyan.*

Mr. Vinluan. All right.

If not based on personal knowledge, then that is hearsay, correct?

Mr. Matibag. But it is not an absolute rule *po dahil may exceptions nga po.*

Mr. Vinluan. Okay. Now, I'm trying to look for the Filipino term for "hearsay." *Ano ba ang "hearsay" sa Tagalog—sabi-sabi or tsismis? Is that a fair translation? What is a fair translation to you of "hearsay?"*

Representative Luistro. Your Honor, the question of the defense is misleading. He never testified that that is hearsay.

Mr. Vinluan. No. I am not asking...

Representative Luistro. As a matter of fact, he's trying to raise the exception to hearsay.

Mr. Vinluan. Your Honor, I'm not asking about the exceptions of hearsay. I'm asking a translation of hearsay, Your Honor.

Anyway, I'll move on to...

The Presiding Officer. If the witness knows. If he does not know, he may say so.

Mr. Matibag. *Hindi ko po alam kung anong translation nito sa Tagalog.*

Mr. Vinluan. Okay. So. I'll just use my own translation: tsismis.

Anyway, at any rate, *kung wala kang personal knowledge, tsismis lang iyon, tama?*

Mr. Matibag. *Hindi ko naman po naririnig sa korte, ako'y nag-practice din, kahit ... sa Tagalog, kahit minsan ko po, hindi ko po narinig na ang "hearsay" ginamit ang salitang tsismis.*

Mr. Vinluan. All right. I'll move on.

Now, the main material that the NBI used in its investigation was the video of the November 23, 2024 press con, correct?

Mr. Matibag. Tama po.

Mr. Vinluan. Did you watch that whole video yourself?

Mr. Matibag. *Napanood ko po.*

Mr. Vinluan. The whole video?

Mr. Matibag. Well, *iyong pong importanteng bahagi diyan ang aking tinutukan, pero napanood ko po.*

Mr. Vinluan. All right.

Now, let me ask you, do you confirm that in that virtual press con, VP Sara spoke about a lot of topics?

Mr. Matibag. *Tama po*

Mr. Vinluan. All right.

I'll show you a portion of that video, and then, I'll ask questions thereafter.

Your Honor, we beg the indulgence of this Honorable Court. Again, this video is a little lengthy, but we will only show one video, Your Honor.

The Presiding Officer. Counsel, may proceed.

[Video presentation]

Mr. Vinluan. Your Honor, it appears that we're having technical difficulties. Can we just replay that part?

Representative Luistro. Your Honor, may I make a manifestation first?

The Presiding Officer. Can you the tech kindly and rewind a bit with respect to that portion? Just a bit.

Mr. Vinluan. Your Honor, this is part of the question, Can we ask that the manifestation be made after playing of this video and the asking of appropriate question?

Representative Luistro. Your Honor, the manifestation concerns the very video that they are presenting.

The Presiding Officer. We're already playing it, lead counsel. We will recognize you after the video is played. Kindly proceed with the playing of the video?

[Video presentation]

Mr. Vinluan. Twenty-nine years. Can you recall Rule 130, Section 22 of the Rules of Evidence?

Mr. Matibag. Can you refresh me, Sir? Because you have a copy.

Mr. Vinluan. Okay. I will gladly refresh you, of course.

I have here a copy of Rule 130, Section 22 of the Rules of Evidence, and I'll read it—please read with me, Director Matibag— "*Testimony confined to personal knowledge.* - A witness can testify only to those facts which he or she knows of his or her personal knowledge; that is, which are derived from his or her own perception." Can you recall that rule now?

Mr. Matibag. *Ayan po, nababasa ko po ngayon. Tama po.*

Mr. Vinluan. Okay, you read it.

All right. So, based on this rule, will you agree with me that a witness can only testify based on his personal knowledge?

Representative Luistro. Your Honor, may I comment to that?

Mr. Vinluan. These are basic questions, Your Honor. The witness is a lawyer; he is competent enough to answer.

The Presiding Officer. Counsel, are you making an objection?

Representative Luistro. This is a comment, Your Honor.

The witness repeatedly testified that he was appointed only in February 20, 2026, and that all his testimonies pertaining to the first investigation are based on records, Your Honor. And this is allowed, as a matter of fact, under the rules, entries in official records are considered as prima facie evidence of the contents thereof, and that is exactly the basis of the witness in answering the question of the Defense.

All his knowledge pertaining to the first investigation are based on records.

Mr. Vinluan. Short rejoinder, Your Honor.

The Presiding Officer. No need, Counsel.

Distinguished Lead Prosecutor, the Counsel for the Respondent did not object to the line of questioning of the Lead Prosecutor earlier based exactly on the grounds cited by the Lead Prosecutor.

The Presiding Officer will give sufficient leeway to the Counsel for the Respondent to establish his point. I think you also see what he is trying to establish, that's why you made a continuing objection in relation to it. I'll give you some leeway, Counsel, but go to your next topic as soon

as you're done with this.

Mr. Vinluan. Thank you, Your Honor.

So, again, based on this rule, a witness can only testify based on his personal knowledge, correct?

Mr. Matibag. *Tama po, pero mayroon pong mga exception sa mga iyan.*

Mr. Vinluan. All right, okay. If not based on personal knowledge, then that is hearsay, correct?

Mr. Matibag. That is not an absolute rule *po dahil may exceptions nga po.*

Mr. Vinluan. Okay. Now, I'm trying to look for the Filipino term for "hearsay." *Ano ba ang "hearsay" sa Tagalog—sabi-sabi or tsismis?* Is that a fair translation? What is a fair translation to you of "hearsay?"

Representative Luistro. Your Honor, the question of the Defense is misleading. He never testified that that is hearsay. As a matter of fact, he's trying to raise the exception to hearsay.

Mr. Vinluan. Your Honor, I'm not asking about the exceptions of hearsay. I'm asking a translation of hearsay, Your Honor.

Anyway, I'll move on to...

The Presiding Officer. If the witness knows. If he does not know, he may say so.

Mr. Matibag. *Hindi ko po alam kung anong translation nito sa Tagalog.*

Mr. Vinluan. Okay. So. I'll just use my own translation: *Tsismis.*

Anyway, at any rate, *kung wala kang personal knowledge, tsismis lang iyon, tama?*

Mr. Matibag. *Hindi ko naman po naririnig sa korte, ako'y nag-practice din, kahit [itranslate] sa Tagalog, kahit minsan po, hindi ko po narinig na ang "hearsay" ginamit ang salitang "tsismis."*

Mr. Vinluan. All right. I'll move on.

Now, the main material that the NBI used in its investigation was the video of the November 23, 2024 presscon, correct?

Mr. Matibag. *Tama po.*

Mr. Vinluan. Did you watch that whole video yourself?

Mr. Matibag. *Napanood ko po.*

Mr. Vinluan. The whole video?

Mr. Matibag. Well, *iyong pong importanteng bahagi diyan ang aking tinutukan, pero napanood ko po.*

Mr. Vinluan. All right.

Now, let me ask you, do you confirm that in that virtual presscon, VP Sara spoke about a lot of topics?

Mr. Matibag. *Tama po*

Mr. Vinluan. All right.

I'll show you a portion of that video, and then, I'll ask questions thereafter.

Your Honor, we beg the indulgence of this Honorable Court. Again, this video is a little lengthy, but we will only show one video, Your Honor.

The Presiding Officer. Counsel may proceed.

(Video presentation)



Mr. Vinluan. Your Honor, it appears that we're having technical difficulties. Can we just replay that part?

Representative Luistro. Your Honor, may I make a manifestation first?

The Presiding Officer. Can the tech kindly pause and rewind a bit with respect to that portion? Just a bit.

Mr. Vinluan. Your Honor, this is part of the question. Can we ask that the manifestation be made after playing of this video and the asking of appropriate question?

Representative Luistro. Your Honor, the manifestation concerns the very video that they are presenting.

The Presiding Officer. We're already playing it, Lead Counsel. We will recognize you after the video is played. Kindly proceed with the playing of the video?

[Video presentation]

Mr. Vinluan. All right. For the benefit of this Court, that is timestamp 1:12:43 onwards of the video recording, with accompanying transcript.

The Presiding Officer. With the permission of the Counsel for the Respondent, the Lead Prosecutor is recognized for a manifestation.

Representative Luistro. Your Honor, I wish to manifest that the video which was played is unmarked and spliced video, Your Honor. That is for the record.

The President. The Counsel for the Respondent just mentioned the timestamp and the marking as well. Counsel for the Respondent may proceed.

Mr. Vinluan. All right. Now, Director Matibag, these are my questions about the statements of VP Sara in that video: Do you have personal knowledge of the theft incident involving Attorney Lopez's cellphone?

Mr. Matibag. *Wala po.*

Mr. Vinluan. *Wala?* Do you have personal knowledge on the buffet in the House of Representatives?

Mr. Matibag. *Wala po.*

Mr. Vinluan. *Wala?* Do you have personal knowledge on the communities *na asin lang ang kinakain*?

Mr. Matibag. *Wala po.*

Mr. Vinluan. All right. Do you have personal knowledge on the person whom VP Sara talked to regarding BBM, FL, and the former Speaker?

Mr. Matibag. *Wala po dahil siya nakipag-usap.*

Mr. Vinluan. All right. Okay. Thank you for that.

So, now, you mentioned that you watched the whole video. My question to you is: Did the NBI conduct any separate investigation regarding the alleged acts of corruption of BBM, FL, the former Speaker, and the congressmen as mentioned by VP Sara?

Mr. Matibag. *Marami pong iniulat sa akin na mga imbestigasyon, subalit hindi naman po kasi binanggit doon sa video sino ang mga partikular na kailangang imbestigahan. Kaya naman po, iyong imbestigasyon na ginagawa ngayon ng NBI, maaaring tumutukoy na po sa mga taong binabanggit po rito.*

Mr. Vinluan. But as NBI director now, you have the authority to investigate alleged cases of corruption, correct?

Mr. Matibag. *Tama po iyon.*

Mr. Vinluan. All right. In fact, you came out in the news recently stating that you will investigate the 2019 SEA Games, correct?

Mr. Matibag. *Tama po.*

Mr. Vinluan. All right. And the 2019 SEA Games came prior to this 2024 presscon, correct?

Mr. Matibag. *Tama po.*

Mr. Vinluan. All right. My next question is this: Do you also intend to investigate the alleged corruption involving the unaudited confidential funds of the OP— Office of the President— also mentioned by VP Sara?

Mr. Matibag. *Kung meron pong mga ebidensiyang ilalatag sa amin para amin pong sundan, hindi po magdadalawang-isip ang NBI sapagkat ito po ang mandato ng NBI—ang imbestigahan ang mga krimen po na aming nakikita.*

Mr. Vinluan. All right. Thank you for that answer.

Now, do you also intend to investigate the alleged corruption involving the former Speaker going around the country and giving government funds to people also mentioned by VP Sara in that video?

Representative Luistro. Your Honor, may I comment, Your Honor.

The Presiding Officer. What is the comment of the Lead Prosecutor?

Representative Luistro. We are objecting to that question, Your Honor, as the same is misleading.

Mr. Vinluan. Your Honor, if he knows. He said he watched the whole video. He listened to the statements. There was a statement.

The Presiding Officer. Witness may answer, if he knows.

Mr. Matibag. Well, *kung meron pong mga ebidensiyang pumapasok, tulad ng lahat ng aming ginagawa*, we are driven by evidence and the process and the law *na dapat pong sundin*.

Mr. Vinluan. All right. Now, my next question is: Your wife is also a Member of the House of Representatives.

Mr. Matibag. That is correct.

Mr. Vinluan. And she is Representative Maria—

Representative Luistro. Your Honor, with all due respect—

Mr. Vinluan. This is cross, Your Honor. May be given leeway, Your Honor—

The Presiding Officer. Allow the Counsel to finish the question, and then you may make your objection afterwards. Finish your question, Counsel for the Respondent.

Mr. Vinluan. She is Representative Maria Rene Ann Lourdes G. Matibag.

Representative Luistro. I object, Your Honor.

The Presiding Officer. Before witness answers, what is the objection of the Lead Prosecutor?

Representative Luistro. The questions, Your Honor, of the Defense with **regards [regard]** to the wife of the witness is totally irrelevant. That should not be allowed.

Mr. Vinluan. Your Honor, these are credibility testing questions, Your Honor, which is always relevant.

The Presiding Officer. The objection is overruled. It tests the freedom from bias, if any, of the witness regarding his testimony, and the Chair would allow it. Witness may answer.

Representative Luistro. Your Honor, may I just enter a continuing objection on the line of questions pertaining to the wife of the witness, Your Honor.

The Presiding Officer. So, noted. Witness may answer.

Mr. Matibag. *Opo.*

Mr. Vinluan. Now, let me direct your attention to House Resolution No. 989. This is also part of the records of this case, entitled "Setting Forth the Articles of Impeachment Against Vice President Sara Z. Duterte."

Permission to use a pointer, Your Honor.

The Presiding Officer. Counsel may do so.

Mr. Vinluan. Now, it appears that from this document that your wife is one of the endorsers of this House resolution. Can you confirm that?

Mr. Matibag. Yes, her name is there.

Mr. Vinluan. It is there. Okay. Now, there is a signature page also. This document is not numbered but it appears that it is around page 19. Can you confirm if this is your wife's signature?

Mr. Matibag. I think I have no authority to confirm the signature even if she is my wife.

Mr. Vinluan. So, you can confirm the signature of your NBI agent but not your wife?

Mr. Matibag. It appears to be her signature, but I am not confronted with the document, so I cannot compare it.

Mr. Vinluan. At any rate, Your Honor, may we allow—

Mr. Matibag. With the NBI, it is different. I testified earlier that it was presented to me, and I asked him if he signed it, and I am familiar to his signature because he is always making submission to my office.

Mr. Vinluan. All right, that is okay. At any rate, Your Honor, may we request, Your Honor, that we be allowed to sub-mark this particular portion? Again, this is already part of the record.

Representative Luistro. We may request, Your Honor, that the witness be confronted first with the document, and may we request as well that the Assisting Counsel for the Prosecution be allowed to approach.

Mr. Vinluan. We will do that, Your Honor.

The Presiding Officer. Assisting Counsel for the Respondent may please confront the witness with the document in the presence of Assisting Counsel for the Prosecutor, before Counsel for the Respondent requests it to be marked. Witness will kindly look at the document and answer their question.

Representative Luistro. May I first manifest, Your Honor, that the document being presented to the witness is a photocopy?

Mr. Vinluan. Your Honor, if at all, we can agree that the Court's copy be sub-marked, Your Honor. And we request, Your Honor, that the first page that we showed, and this signature page around page 16 be sub-marked even later, Your Honor, before the—

The Presiding Officer. It shall be done at a later time. In the meantime, by the oath of respective counsels, I believe you can rely on this copy, subject to confirmation in the marking of the actual copy that the Court has.

You are referring to the resolution on impeachment, right?

Mr. Vinluan. Yes, Your Honor. But, Your Honor, insofar as the identification of this witness, we are relying, actually, on the transmittal by the Committee on Justice, which was received by your office on May 11, 2026, Your Honor.

The Presiding Officer. Not by my office, but by the Secretary General of the Senate.

Kindly confront the witness with the document so that he may answer intelligently.

Mr. Vinluan. If you know only, Director Matibag.

Mr. Matibag. Your Honor, respectfully, if I may say something, if the Court will allow me?

The Presiding Officer. Yes, Director Matibag.



Mr. Matibag. In order to save time in the questioning of the Defense Counsel, I think he's going to the position if my wife endorses the Article of Impeachment, so that we save time, and it's on record, a matter of public notice— Yes, my wife is one of the endorsers of the impeachment.

The Presiding Officer. Duly noted. Counsel, move on.

Mr. Vinluan. All right. Thank you for that admission Director Matibag. And despite that spousal relationship that you admitted, you decided to appear and testify today, correct?

Mr. Matibag. My decision to be a witness is by virtue of a subpoena issued by the Honorable Court and by the invitation of the Committee on Justice to the prosecution. However, the job of my wife, as a legislator, is totally detached from me being the Director of the National Bureau of Investigation.

Mr. Vinluan. Okay. My next question is—but the court did not issue a subpoena for you to appear today.

Mr. Matibag. Actually—

Mr. Vinluan. Are you saying that you received a subpoena despite this Honorable Court not issuing a subpoena for you?

Mr. Matibag. I believe there is no subpoena. In the Pre-Trial Order, I was mentioned to be a witness, and I was invited by the prosecution to be a witness.

And from my understanding, in the Pre-Trial Order, I was also listed by the Defense, and I will be gladly witness for the Defense as well if I will be called upon.

Mr. Vinluan. All right. But which is which: Are you appearing today by virtue of a subpoena, or without a subpoena?

Mr. Matibag. I'm appearing today as a witness, as called upon and announced by the Honorable Court, and by the invitation also of the Prosecution.

Mr. Vinluan. No, that's not my question, Director Matibag. You're a lawyer, you know this. Are you appearing today by virtue of a subpoena, or no subpoena?

Mr. Matibag. There is no written subpoena, but there is a verbal announcement from the Honorable Court that I will be a witness in today's hearing.

Representative Luistro. Your Honor, the question of the Defense is misleading. It is apparent that last week a subpoena was issued to the witness, Your Honor, and it is because of the other matters that were heard and addressed by the Impeachment Court, thus the schedule of the witness was scheduled to today.

Mr. Vinluan. Your Honor—

The Presiding Officer. The objection is overruled. First, asked and answered. And for the record and information of the senator-judges, the Presiding Officer confirms that no subpoena was issued to Director Matibag. In fact, I asked if one was needed, and the response I got was that it was not necessary. But, indeed, the Chair also confirms that the name of Director Matibag was requested to be invited by the prosecutors, and he was so named by the Presiding Officer to attend in, I believe, yesterday, supposedly, and today's trial dates.

Move on, Counsel.

Mr. Vinluan. Just one last question on this point. So, considering that there's no subpoena, I just—I'm just wondering how it works. Did you coordinate with any of the prosecutors in relation to your appearing—or appearance—in today's proceedings?

Mr. Matibag. Well, we conducted some meetings on this matter.

Mr. Vinluan. You mean prior to your appearance to this Honorable Court you met with certain members of the prosecution?

Mr. Matibag. Yes, twice, when I was informed that I will be a witness on the Pre-Trial Order.

Mr. Vinluan. All right. Did you meet with the private prosecutors or the public prosecutors?

Mr. Matibag. With the Chairman of the Committee, with Congresswoman Gerville Luistro.

Mr. Vinluan. And you are confirming in open court that you discussed or you were briefed in that meeting based on your testimony?

Representative Luistro. Leading.

Mr. Vinluan. Okay. You explain.

Mr. Matibag. Well, I'm a lawyer and I know where you're going. There was no discussion or coaching. We just discussed matters that are supposed to be covered by my testimony. Because I'm a Director, I will be testifying. Of course, they will want to know what will be the nature of my testimony. In the same way that when you want to present me as your witness, I will be more than willing to sit down with the defense counsel.

Mr. Vinluan. Your Honor, I take exception to that. I don't think Director Matibag knows where I'm going. In fact, I'm moving on to a new point.

At any rate, Your Honor, I don't think we are calling him as a witness. So, these are facts that he—only he assumes.

Mr. Matibag. No, but—

Mr. Vinluan. I want to say that for the record, Your Honor.

The Presiding Officer. Witness will not argue with the Counsel. Kindly move on, Counsel for the Respondent?

Mr. Vinluan. All right. Let's just move on, Director Matibag.

The NBI is under the DOJ, correct?

Mr. Matibag. That is correct.

Mr. Vinluan. And the DOJ is under the Office of the President, correct?

Mr. Matibag. That is correct.

Mr. Vinluan. Now, in short, BBM has control and supervision over both NBI and the—Your Honor, sorry. I'm hearing comments from the prosecution. I don't mean any disrespect to the President. It's just for purposes of abbreviation I'm just calling him BBM.

But, at any rate, I'll move on to my question. So, BBM has control and supervision over both the NBI and the DOJ, correct?

Mr. Matibag. That is not exactly correct. Only on the matter of appointments, but we enjoyed independence in the matter of investigation.

Mr. Vinluan. I'm glad you mentioned that. Do you confirm that you're an appointee of BBM?

Mr. Matibag. Well, it's only the President who can make an appointment. I think it is provided for in the law.

Mr. Vinluan. So, what's the answer?

Mr. Matibag. Yes.

Mr. Vinluan. Yes. Okay. And so, my question to you is this: Did BBM participate in the NBI's investigation in any way?

Mr. Matibag. No.

Mr. Vinluan. All right. So, don't you consider your appointment as NBI director as participation on the part of BBM?

Mr. Matibag. No.

Mr. Vinluan. No. All right. You mentioned a while ago that after the Affidavit of Investigation, it was submitted to the DOJ for evaluation, correct?

Mr. Matibag. For their evaluation and finding if there's enough reason to file a case before the Regional Trial Court or the proper courts.

Mr. Vinluan. All right. And during your direct testimony, you also mentioned that, as we speak, it is still pending, correct?

Mr. Matibag. That is correct.

Mr. Vinluan. All right. Now, in other words, in terms of formal charge to be filed in court, that is still not available at this time, correct?

Mr. Matibag. It should be within the jurisdiction of the National Prosecution Service, which is under the Department of Justice.

Mr. Vinluan. But insofar as the case that the NBI filed with the DOJ, is it not the case that that charge does not include contracting for the assassination?

Mr. Matibag. That is correct. What was filed was grave threat and inciting to sedition.

Mr. Vinluan. So, in other words, at this point, VP Sara is not being made to answer for contracting for assassination, correct?

Mr. Matibag. That is exactly what my testimony covered—that she is being investigated for contracting a person to kill the President, and that is a continuing threat, not only to the life of the President, but to the national security of our country.

Mr. Vinluan. Not responsive, Your Honor. My question is, if she is already being made to answer to that particular charge.

The Presiding Officer. Made to answer, Counsel, meaning has she been subpoenaed?

Mr. Vinluan. I'll be more specific. Has she been subpoenaed in terms of contracting for assassination?

Mr. Matibag. Well, in this Impeachment Court, she is being on trial, and that is very well covered by the Articles. To me, as a lawyer, not only as an NBI Director, and as a former dean, that is a betrayal of public trust to me. Because she made an oath of office that she will protect, defend the Constitution, execute laws, do justice to others, and consequently—

The Presiding Officer. Director Matibag, let the Court intervene at this juncture. That is not responsive to the question of counsel. Kindly just answer the question: Has the NBI issued a subpoena against the Vice President with respect to the crime of contracting a killer allegedly?

Mr. Matibag. At this point, Your Honor, not yet.

Mr. Vinluan. Not yet. Okay. That's enough

The Presiding Officer. Please proceed, Counsel.

Mr. Vinluan. So, no subpoena as of now. But, in other words, has there been any Affidavit of Investigation relating to contracting for assassination?

Mr. Matibag. My understanding is there was a subpoena issued at that time during the investigation to the Vice President, and the lawyer submitted an affidavit.

Mr. Vinluan. No. Again, not responsive, Your Honor. I'm talking about an Affidavit of Investigation executed by the NBI.

Mr. Matibag. Not yet.

Mr. Vinluan. Not yet. Okay. So, at this point, would you agree with me that the DOJ has not found any basis for contracting for assassination?

Mr. Matibag. *Wala pa po sa ngayon.*

Mr. Vinluan. All right. So, at this point, as of today, there is simply no evidence to warrant the filing of a formal charge for contracting for assassination, correct?

Mr. Matibag. That's why *kung babalikan po natin yung aking testimony*, this is a continuing and an open investigation as to the contracting a killer.

Mr. Vinluan. So in other words, the reason why these are not present at this time is because your investigation is still ongoing?

Mr. Matibag. It's a case build-up and an open active investigation.

Mr. Vinluan. All right, very well.

Now, you mentioned about grave threats and inciting to sedition. My question to you is: these subject matters fall under the category of felonies, correct?

Mr. Matibag. That is correct.

Mr. Vinluan. Now, in fact, based on the penalties involved, as provided by law, these fall under the jurisdiction of the first-level trial courts, correct?

Mr. Matibag. Yes.

Mr. Vinluan. All right. Now, moreover, for one to be declared guilty of these felonies, the burden of proof is guilt beyond reasonable doubt, correct?

Mr. Matibag. That is correct.

Mr. Vinluan. Now, guilt beyond reasonable doubt—is this a low threshold or a high threshold?

Mr. Matibag. Beyond reasonable doubt, of course, it's a high threshold.

Mr. Vinluan. In fact, it is the highest threshold in criminal law, correct?

Mr. Matibag. That is correct.

Mr. Vinluan. So, in other words, *para lang* for the benefit of the Filipino people watching, so *hindi ka pwedeng magsampa ng kaso nang hindi mo kayang patunayan*, correct?

Mr. Matibag. *Tama po iyan, dahil mayroon pong Memorandum Circular No. 20 ng Department of Justice kung saan sinasabi* that when you file cases, there should be a reasonable certainty of conviction.

Mr. Vinluan. Thank you for that clarification.

So, if the threshold is guilt beyond reasonable—if this threshold of guilt beyond reasonable doubt is not reached, then the accused must be acquitted, correct?

Mr. Matibag. *Tama po iyan.*

Mr. Vinluan. And insofar as grave threats or inciting to sedition, it is the trial courts that will decide that, correct?

Mr. Matibag. That is correct.

Mr. Vinluan. Not the DOJ?

Mr. Matibag. The DOJ will submit the Information and the Resolution for prosecution. At the end of the day, it will be the Court who will say whether it's guilty or not.

Mr. Vinluan. All right. Now, in your testimony earlier, you mentioned that there are leads on the alleged person that VP Sara talked to, correct?

Mr. Matibag. Yes.

Mr. Vinluan. But let me ask you this: during that presscon, did VP Sara mention the word "assassin"?

Mr. Matibag. *Wala po.*

Mr. Vinluan. All right. Now, the investigation on these leads, are these already final?

Mr. Matibag. *Paki ulit po?*

Mr. Vinluan. The investigation, based on these leads that you mentioned, are these already final?

Mr. Matibag. *Hindi po.*

Mr. Vinluan. *Hindi pa*

Mr. Matibag. *Malinaw po ang sinabi ko that this is a continuing and open investigation po.*

Mr. Vinluan. All right. So, in other words, you haven't given any opportunity for VP Sara to confront this alleged person, correct?

Mr. Matibag. *Hindi pa po.*

Mr. Vinluan. All right. But will you agree with me that confronting this alleged person is part of due process?

Mr. Matibag. *Tama po. Kaya mas maganda nga po kung si VP Sara mismo ang magsabi dito kung mayroon siyang kinausap at kung sino ang kaniyang kinausap.*

Mr. Vinluan. But is that part of the SOP also, that you give an opportunity for VP Sara to confront?

Mr. Matibag. *Tama po. 'Pag natukoy na po namin kung sino ang taong kaniyang kinausap, that is the time na siya po ay aming kokomprontahin para siya po ay masagot niya kung itong tao ba talaga ito ang kaniyang kinausap para patayin ang Pangulo.*

Mr. Vinluan. All right. My next question is very simple. So, you offered your testimony before this Impeachment Court, even you performed SOP or giving opportunity to VP Sara to confront?

Mr. Matibag. *Malinaw naman po iyong sinabi ko, "Pag nakita po namin kung sino ang taong kinausap, saka po namin siya kokomprontahin, kasama po ang taong iyon, at kasama po iyong mga willing na magbibigay ng human intel para harapin po ang akosasyon na iyon."*

Mr. Vinluan. So, considering that you're still pursuing those leads, don't you think that your testimony today is premature?

Mr. Matibag. *Hindi po. Sapagkat malinaw naman po sa statement ng ating Bise Presidente na mayroon siyang kinausap para patayin si Bongbong Marcos, si Lisa Marcos-Araneta, si Martin Romualdez, at sinabi pa niya na walang biro.*

To us, sa law investigation, applying po namin iyong pong methodology na ginagamit ng Secret Service sa Amerika, papasok po rito na ito ay isang malinaw na confession ng isang tao na mayroon siyang isang plano na pagpatay.

Mr. Vinluan. Okay. I'll move on. But I'll ask you: isn't that a trial by publicity, which is not sanctioned by our laws?

Mr. Matibag. *Hindi po. Sapagkat kaya nga po namin hindi inilalabas iyong amin pong mga confidential at secret investigation. Lamang nga po, tayo'y pinatitestigo rito na kailangan natin pong sabihin kung ano na ang naging takbo ng imbestigasyon at malinaw naman po sa aking testimonya that it is a continuing open investigation, active investigation, na kung saan mayroon pong mga persons of interest. At pag tinanong po natin ito sa mga nakakaunawa ng law enforcement, ganito po talaga ang practice ng law enforcement.*

Mr. Vinluan. In fact, you mentioned during your direct testimony that you cannot give further details, correct, as classified?

Mr. Matibag. *Tama po.*

Mr. Vinluan. Okay. So, with all due respect—I'll ask this in Filipino: with all due respect to you, Director Matibag, kung hindi niyo pa po pala kayang magbigay ng detalye, bakit niyo pa po inilabas na may leads kayo, in the first place?

Mr. Matibag. *Sapagkat gaya po ng sinabi ko, malinaw naman na iyong pagsasalita ng ating Bise Presidente na siya ay kumausap ng papatay at pumayag iyong papatay na patayin ang mga indibidwal na ito, mayroon na pong pagkakasundo na gagawin po ang isang krimen.*

Mr. Vinluan. Yeah, but my point is: wouldn't that prejudice your ongoing investigation that you come out here and you make statements that you already have leads?

Ms. Luistro. Objection, Your Honor. That is speculative.

The Presiding Officer. Witness may answer.

Mr. Matibag. *Kaya nga po ang dahilan na iyan ay hindi ko mabanggit kung sino po iyong mga persons of interest dahil doon po makokompromiso ang imbestigasyon na gumugulong.*

Mr. Vinluan. Okay. At any rate, if this ongoing investigation progresses, that is the only time that a different charge will be executed against the Vice President?

Mr. Matibag. *Babalikan ko po iyan.*

Ms. Luistro. Objection, Your Honor.

Mr. Matibag. *Babalikan ko po ulit. Para po sa amin, malinaw na ang pagkontrata sa pagpapatay o sa papatay sa mga pangalang binanggit ay nandodoon na, applying the methodology ng Secret Service na binanggit ko po kanina. Ang hindi na lang po natin nakikita ay kung sino ang taong kinausap kaya ito po ay still open and continuing investigation.*

Mr. Vinluan. At any rate, it's not yet final, correct?

Mr. Matibag. *Tama po.*

Mr. Vinluan. All right. Now, you mentioned that the NBI is still conducting an investigation, ongoing investigation. Do you still use the video of the November 23, 2024 presscon in this ongoing investigation?

Mr. Matibag. *Isa po ito sa aming naging batayan para po doon sa five-point na standard na tinitingnan po namina ay amin pong matulungan.*

Mr. Vinluan. All right. It's an almost two-year-old video now, do you think it's still relevant to your ongoing investigation?

Mr. Matibag. *Hindi po. Sapagkat hanggang sa ngayon nga ay hindi pa natin nahahanap kung sino ang taong kinausap po ng ating Bise Presidente.*

Mr. Vinluan. All right, very well.

Atty. Matibag, do you know Mel Sabio?

Mr. Matibag. Opo.

Mr. Vinluan. All right. Now, about two months ago, an old audio-video file of the two of you circulated online.

By the way, we won't show that video out of respect to the party's rights, as well as—I saw your wife here also—out of your family members' rights, and also out of Mel Sabio's rights. I'll just ask you a few questions. This video circulated online, and you already came out in the media admitting that it was you and Mel Sabio who were involved in that video, correct?

Mr. Matibag. *Tama po iyan. That is a private conversation sa dalawa kong magkaibigan na hindi nagkakasundo.*

Mr. Vinluan. All right. And my only question to you is this: did that incident demonstrate an emotional outburst on your part?

Mr. Matibag. *Kasama na po 'yon, combination na ng galit at disappointment, at ako naman po ay inamin ko na iyan ay isang pagkakamali na akin pong tinanggap na rin at pinagsisihan.*

Mr. Vinluan. All right. Can you recall what you said in that video?

Mr. Matibag. *Masama po ang aking mga sinabi. Mayroon pong hindi talaga kaaya-aya.*

Mr. Vinluan. Can you recall just to give an idea of those who were not able to watch it?

Mr. Matibag. I cannot exactly recall because that was a really long time ago.

Mr. Vinluan. That's okay. Now, on July 10, 2026, you wrote a letter to Representative Luistro, do you confirm this?

Mr. Matibag. July 10.

Mr. Vinluan. July 10, 2026.

Mr. Matibag. Opo.

Mr. Vinluan. And in that letter—we can confront you with a hard copy, but we can also flash. In that letter you mentioned, and I quote, “As Director of the Bureau, I will personally attend to represent the NBI at this summit of director and commissioner general-level law enforcement leaders across the Asia-Pacific, which will require my travel and attendance on those dates.”

Now, those dates pertain to July 21 to 22, 2026, so today and tomorrow. Do you confirm this?

Mr. Matibag. Opo.

Mr. Vinluan. All right. Now, in that letter, there was a prior letter to that, correct, which you received from FBI Director Kash Patel.

Mr. Matibag. *Tama po.*

Mr. Vinluan. Do you personally know Kash Patel?

Mr. Matibag. *Hindi po, pero, hindi po siya personal kong kilala.*

Mr. Vinluan. All right. And did you inform him, at any point, that you are a lawyer?

Mr. Matibag. *Hindi ko po alam kung alam niya na abogado ako.*

Mr. Vinluan. Ah, okay. That is interesting because in the letter—and I’ll use my pointer again—he referred to you as “Dear Director Attorney Matibag.” And this record was submitted to this Honorable Court through the Prosecution on July 13, 2026.

Now, just a manifestation, this now forms part of the records of this case.

So, are you friends or did he just research about your being a lawyer?

Mr. Matibag. *Ganito po kasi ang nangyari diyan, meron pong high-value target, one of the Top 10 Most Wanted, si Henry Kimble ang pangalan po niya, who scammed the government about P2.8 billion. Number two po siya sa 10 Most Wanted. And we have a coordination meeting with our local counterpart ng U.S. Embassy ng FBI, stationed in Manila—si Ma’am Courtney—asking for our help for the extradition of this person, who happens to have a problem in a Court in Makati.*

They were expecting na ito pong taong ito ay matagal pa bago ma-extradite sa kanila, lumapit po sa atin, sa NBI. At dahil natulungan po natin na iyong inaakala nilang buwan ang lilipas bago ma-extradite, ay natulungan po natin sila. Sa loob ng dalawang araw ay na-extradite po. Kung kaya noong na-extradite po ito pong si Henry Kimble, ako po ay tinawagan ni Ma’am Courtney ng FBI, nang siya ay nasa Amerika, at sinabi na nagpapasalamat. Katunayan po, nagpadala po ng letter of gratitude ang FBI.

At iyon pong pag-attend ko sa Bangkok, hindi naman po basta lang ako a-attend doon sa conference. There was an opportunity on the side na magkaroon po kami ng pagpupulong po ng personal ni Dir. Kash Patel, kaya po, gusto ko sana makadalo doon.

Mr. Vinluan. Thank you for that clarification. Anyway, I’m just asking because the schedule of the Court actually changed, or was altered, because of this letter. Just a few questions on this.

Now, upon perusal of this letter, it appears na sinulatan kayo ng direktso ni Dir. Kash Patel and walang address iyong NBI? It just says Manila. Do you confirm receipt of this letter?

Mr. Matibag. It was sent through an email.

Mr. Vinluan. Through email, okay.

Now, of course, before you wrote Representative Luistro, you first confirmed your attendance with FBI Director Patel, am I right?

Mr. Matibag. *Wala pa pong confirmation. Dahil malinaw naman po, sinasabi ko nga po kay Congresswoman Luistro na dalawang event iyan na magkasabay, sayang iyong opportunity na*

maaari kong makausap iyong FBI Director, sapagkat it is very rare that an FBI Director will talk to an NBI Director.

Mr. Vinluan. Yes.

Mr. Matibag. So, *sinabi ko na baka naman puwede na mas mapaaga, kung pwede lang, at kung makikita naman po doon sa liham ko, "Respectfully, I am requesting." Pero nilinaw ko po kay Congresswoman Luistro na dalawang event iyan at in order of priority, ang akin pong priority ay ang tumestigo po dito sa Impeachment Court. At sabi ko naman, ipinaabot ko po ito kay Ma'am Courtney that, probably, we can arrange another day na magkausap po kami ni Dir. Kash Patel.*

Mr. Vinluan. Okay. Thank you for that clarification.

At any rate, you are admitting that before you wrote Representative Luistro, *hindi pa final* *iyong confirmation mo dito kay Director.*

Mr. Matibag. *Meron na pong arrangement.*

Mr. Vinluan. *Ah, may arrangement na.*

Mr. Matibag. *Pero alam po nila na ako ay magtitestigo. So, kung malilipat po, that is the only time na ako po ay pupunta sa Bangkok.*

Mr. Vinluan. No, no. I am talking about may confirmation *na kayo ni Dir. Kash Patel* before you wrote Luistro. *Wala pa?*

Mr. Matibag. There was already an invitation and information channeled to their local representative, *si Ma'am Courtney po.*

Mr. Vinluan. Ma'am? sino iyong Ma'am?

Mr. Matibag. *Siya po ay si Courtney, siya po iyong FBI Representative dito.*

Mr. Vinluan. All right.

At any rate, my question is, do you maintain that this is an official invitation from FBI Kash Patel?

Mr. Matibag. Yes.

Mr. Vinluan. All right.

Mr. Matibag. *Katunayan, meron pong dumalo ngayon doon, iyon pong aming representative ng IOD.*

Mr. Vinluan. And it is also a director or a commissioner level?

Mr. Matibag. No, *po. Siya po ay division level.*

Mr. Vinluan. Are you at liberty to disclose the name?

Mr. Matibag. Yes, *opo, Attorney Chris Hernandez.*

Mr. Vinluan. *Nandoon siya sa Bangkok ngayon.*

Mr. Matibag. *Nandodoon po siya ngayon.*

Mr. Vinluan. Would you know *kung si Dir. Kash Patel nag-attend doon sa Bangkok ngayon* or *nag-cancel din siya?*

Mr. Matibag. *Hindi ko po alam.* I have to get the information.

Mr. Vinluan. All right. Now, just one last manifestation, Your Honor.

Again, these documents, comprising three documents—June 24, July 10, and July 13—were introduced by the Prosecution and are now part of the records of this case.

If I may be allowed to proceed, Your Honor.

The Presiding Officer. Noted.

Mr. Vinluan. Now, I will show you one last graphic, and then I will ask you a couple of questions thereafter.

Can we show the graphic?

All right. So, this is from the *Daily Tribune*,

Representative Luistro. Your Honor, please.

Mr. Vinluan. No question yet, Your Honor.

The Presiding Officer. Let Counsel finish with his question and the Lead Prosecutor may make her objection.

Mr. Vinluan. All right. This is from the *Daily Tribune*, okay. And this is entitled "Public Trust Rating." I will just focus on the green, not the red. Vice President Sara Duterte, it says there: "57%." And this was conducted by the Social Weather Stations (SWS) Survey, okay.

Now, my question to you is this, you mentioned that you have an ongoing investigation. Do materials like this, insofar as how Filipino people view or trust VP Sara, have an effect in your investigation?

Representative Luistro. Objection, Your Honor.

The Presiding Officer. Before the witness answers, Lead Prosecutor is recognized for her objection. What is the basis of the objection?

Representative Luistro. Your Honor, the Defense is showing a picture of the President and the Vice President with a certain rating at the bottom. This has no relevance at all, Your Honor, with respect to the subject matter of this Impeachment Trial.

Mr. Vinluan. I think he has—

Representative Luistro. And we are objecting to the presentation of this picture, Your Honor.

Mr. Vinluan. Just a short rejoinder, Your Honor.

The Presiding Officer. Kindly allow the Lead Prosecutor. Are you done, Ma'am?

Representative Luistro. Yes, Your Honor.

Mr. Vinluan. Just a short rejoinder, Your Honor.

The Presiding Officer. Attorney Vinluan is recognized.

Mr. Vinluan. The witness mentioned the term "betrayal of public trust" and we can run the TSN back.

Your Honor, of course, we are allowed. This is cross-examination, we are allowed to present controverting evidence to that statement.

The Presiding Officer. The Chair will allow the witness to answer despite that there is no date when the survey was taken. Kindly answer if you know, Director Matibag.

Mr. Matibag. Gladly, Mr. Presiding Officer.

Alam niyo po, survey iyan. And all of us know, or for the information of the public, a survey is just a snapshot of something. It doesn't necessarily follow *na iyong survey na iyan is a, kumbaga, nakataga na sa bato.*

Pangalawa po, may mandato po ang NBI. We cannot be swayed by public opinion *o kaya po ng aming personal na opinyon.* Kami po ay nag-iimbestiga—*nababatay sa batas, nababatay sa proseso, at nababatay po sa ating itinakdang mandato base po sa pagtatatag ng NBI.*

Mr. Vinluan. So, the short answer to my question is "no." It doesn't affect.

Mr. Matibag. No, it will not.



Mr. Vinluan. Okay. I mentioned *Daily Tribune*. You write editorials for the *Daily Tribune*, correct?

Mr. Matibag. Tama po, long time ago po.

Mr. Vinluan. Long time ago. And in 2024, you wrote at least three editorials about VP Sara. Can you recall?

Mr. Matibag. *Maari po. Mayroon po akong mga isinulat tungkol po kay Vice President, Sir.*

Mr. Vinluan. I am showing you the editorials, all right, from the *Daily Tribune*—and we have hard copies that you can refer to—but it says here: “Director Melvin Matibag.” Do you confirm that it is you who authored these editorials?

Mr. Matibag. Yes.

Mr. Vinluan. All right. Now, I am showing you the first one entitled: “Inday Sara, the Bratinella,” dated September 12, 2024. Do you confirm that you wrote this editorial?

Mr. Matibag. That is correct, in my opinion column.

Mr. Vinluan. All right. And you also wrote, “The ‘Bratinella’ is a flat spare tire,” dated October 24, 2024. Do you confirm this?

Mr. Matibag. Yes.

Mr. Vinluan. All right. And you also wrote, “‘Bratinella’ Sara and her bad habits,” dated November 7, 2024. Do you confirm this?

Mr. Matibag. Yes.

Mr. Vinluan. And in these editorials, you shared your opinions against VP Sara. Is that correct?

Mr. Matibag. Well, *unang-una po, siguro doon sa title na “Bratinella,”* that is not my original. In fact, *kaya ko po nasulat iyan, iyan ang mismong naririnig ko noong kami ay magkakasama nila dating Pangulong Duterte, na ang tawag niya kay Inday Sara ay “Bratinella.”*

Mr. Vinluan. All right. So, my only question is, before you testified today, there were already instances in the past that you shared your public opinions against VP Sara.

Mr. Matibag. Well, that is an opinion column.

Mr. Vinluan. All right.

Mr. Matibag. *At meron po tayong mga pinagbabasehan diyan.*

Mr. Vinluan. Okay. In fact, let me read one line from your editorial, it says there: “As Inday Sara is being unmasked in the legislative inquiries and by her own mouth as an ill-bred bratinella, her public trust crumbles.” Do you confirm that you included this statement in your editorial?

Mr. Matibag. *Iyon po iyong nakasulat.*

Mr. Vinluan. All right. And despite this position, the recent surveys show that VP Sara even gained positive trust rating, as shown earlier, a positive 57. Do you confirm this?

Mr. Matibag. Well, again, I’m saying *na noong sinulat ko po iyan*, that is my opinion as an opinion writer.

Mr. Vinluan. All right. Now, despite this positive trust rating by VP Sara, do you still maintain that—and I quote—“her public trust crumbles?”

Mr. Matibag. Well, *para sa akin po, na ako’y NBI Director, palagay ko po hindi po material itong ating pinag-uusapan, sapagkat sabi ko nga, ang atin pong pag-iimbestiga ay nababase sa batas, nababase sa ebidensiya, at prosesong nandodoon na nang ako’y dumating po bilang NBI Director.*

Mr. Vinluan. All right. One last question on this before I let this point go. So, considering the positive trust rating of VP Sara, can one really say that she betrayed public trust?

Mr. Matibag. *Magkaiba po iyan eh.*

Representative Luistro. Speculative, Your Honor.

Mr. Vinluan. Can we get a ruling, Your Honor?

The Presiding Officer. Witness is knowledgeable enough to answer. He can handle himself. Director Matibag, you may answer.

Mr. Matibag. *Magkaiba po iyan.* Again, I'm saying, and I'm sure *marami rin po ritong nakakaalam na umaasa sa mga survey.* A survey is just a snapshot of what's happening. It doesn't necessarily follow *na pagka iyon ang lumabas eh iyon na iyong totoo.* *Pangalawa, pagka po ating pinagbasehan ang popularidad, ang ibig sabihin po ba nito, ang isang pinakakilala at popular na tao puwede nang gumawa ng krimen at hindi natin papapanagutin?*

REQUESTS OF THE COUNSEL FOR THE RESPONDENT

Attorney Vinluan moved for a continuance on behalf of the Respondent's counsel, citing two principal grounds. First, he argued that the testimony of Director Matibag introduced numerous new topics that were not included in the Articles of Impeachment, which the Counsel for the Respondent considered a violation of the Vice President's right to be promptly and fully informed of the exact charges against her. He maintained that their team needed additional time to review these new matters in order to conduct an intelligent and effective cross-examination. Second, he pointed out that the witness had introduced a 100-page document during direct examination that was unsigned and unnotarized. Relative thereto, he believed that adequate time was necessary to examine said document before proceeding with cross-examination.

Representative Luistro objected to the motion, arguing that the Counsel for the Respondent had already commenced an extensive cross-examination and that the witness had fully and accurately responded to the questions posed. She manifested the position of the Prosecution that the cross-examination be completed on that day and, if the Court would permit, for the Prosecution to proceed immediately with redirect examination.

Presiding Officer Escudero acknowledged the objection but granted the Counsel for the Respondent's initial request for a continuance, adding that he would do the same should the Counsel for Prosecution make a similar request in the future. He then cautioned both parties against making it a regular practice to request for a continuance.

Before the senator-judges' interjections, Attorney Vinluan requested a copy of the Lascañas document introduced by the witness. The Presiding Officer stated that the Court had already ordered the Counsel for the Prosecution to furnish the Counsel for the Respondent with a copy of Mr. Lascañas's affidavit during the interregnum.

INQUIRY OF SENATOR-JUDGE VILLANUEVA

Senator-Judge Villanueva sought procedural guidance from the Impeachment Court regarding the ongoing investigation being conducted by the NBI, noting the witness's repeated statements that the investigation remains ongoing. He asked how the Court should be informed on the matter, and whether any significant developments from the NBI's investigation arising after the conclusion of the presentation of evidence on Article IV could still be presented if they proved material to the proceedings. In response, Presiding Officer Escudero explained that the Court, as a rule, is a passive body and would not interfere with or speculate on hypothetical actions that counsels for either the Prosecution or the Respondent might take, as doing so could be construed as prejudging matters that properly belong to the parties.



Senator-Judge Villanueva then suggested that the Court consider the supplementary application of the revised *Rules of Court* under Rule 6, and most directly, under Section 24, Rule 119 of the *Rules of Criminal Procedure*, which allows a judge, before the finality of a judgment of conviction, to reopen proceedings either *motu proprio* or upon motion, to avoid a miscarriage of justice. He stated that the aforementioned could serve as the proper procedure should such circumstances arise. Presiding Officer Escudero acknowledged that reopening the proceedings was an available option under the rule but emphasized that, at that stage, he preferred to leave such matters to the parties, given the adversarial nature of the proceedings and their responsibility to determine the appropriate course of action in the interest of their respective clients.

QUESTIONS OF SENATOR-JUDGE VILLANUEVA

Senator-Judge Villanueva. Thank you, Mr. Presiding Officer; thank you, Mr. President.

Just one question to our witness, Director Matibag, for the benefit of the Court and this Representation. *Maaari po ba ninyong ipaliwanag kung paano ini-evaluate po ng National Bureau of Investigation ang isang alegasyon na ang isang tao ay nag-utos o kumontra ng iba upang magsagawa ng isang krimen? Bilang bahagi po ng inyong imbestigasyon, tinukoy po ba ninyo kung ang ganito pong alegasyon ay maaaring pumasok sa mga umiiral na probisyon ng ating Revised Penal Code o iba pang special penal laws?*

Director Matibag, I'd like to ask this question because I believe—I don't know if you would agree with me—that the Bureau's role is to determine whether the facts may actually give or the facts may give rise to a criminal liability under our penal laws.

Now, the constitutional function of this Court, however, is different. We are not sitting as a criminal court to determine guilt beyond reasonable doubt. Rather, we are called upon to determine whether the respondent's alleged acts constitute impeachable offenses, including betrayal of public trust. So, *magkaiba po iyong binabanggit natin na criminal liability at constitutional accountability. Hindi po lahat ng maaaring maging batayan ng impeachment ay kailangang tumutumbas sa isang krimen, sapagkat ang impeachment ay hindi naman po usapin lamang ng paglabag sa batas, kung hindi paglabag sa tiwalang ipinagkakaloob ng taumbayan.*

Ano pong masasabi n'yo dito, Mr. Witness?

Mr. Matibag. Your Honor, *tama po iyon. Doon po sa huling sinabi ninyo na hindi naman nangangahulugan, kung may krimen na nangyari, ito ay impeachable offense. Pero ilagay po natin sa pangyayaring ito, kaya naman po, iyon pong imbestigasyon doon sa grave threat at doon po sa inciting to sedition, malinaw po ito na napapaloob sa Revised Penal Code.*

Iyon naman pong pag-iimbestiga at paghahanap doon sa taong kinausap para pumatay, hindi po ito napapaloob sa Revised Penal Code dahil iyon pong pagpapalano ng pagpatay ay hindi naman po pinaparusaan iyan kung hindi nga nagawa. Subalit, doon na po papasok iyong sinasabi nga natin na mayroon pong sinasabi na sa impeachment, tinitingnan po at para sa akin nga, iyong betrayal of public trust, dito po papasok. Bakit po? Dahil mayroon po siyang sinumpaang tungkulin. Doon po mismo sa kaniyang oath of office bilang Vice President, sinabi niya that "protect and defend the Constitution, execute the laws, do justice to everyone, and consecrate herself to protect the nation." Pero doon po sa sinabing "execute the laws," dito po natin nakikita, hindi po execute the laws iyong pag-usap ng papatay—that is to execute the President. Kaya doon po papasok iyong magkaiba na betrayal of public trust.

Senator-Judge Villanueva. *Naintindihan ko po iyong binabanggit n'yo, iyong role ninyo na limitado doon sa criminal investigation at iyong findings po ninyo, hindi po, again, I think, binabanggit n'yo nga po, hindi po ibig sabihin ay impeachable offense kaagad-agad.*

Mr. Matibag. *Tama po.*

Senator-Judge Villanueva. And, again, that's why I'm putting into the record *na* this is not a criminal proceeding but an impeachment proceeding.

Last but not the least, *doon sa binanggit po ninyo*, there is a difference between saying that an individual has not yet been identified and saying also that no such individual exists. So, *ang una, nangangahulugan na nagpapatuloy pa po iyong bureau sa pagberipika at pagba-validate ng impormasyong mayroon ito. Sa ikalawa naman po ay isang konklusyon na matapos ang isang imbestigasyon.*

Director Matibag, *maaari po ba ninyong ipaliwanag iyong kahalagahan ng distinction na ito sa point of view of the NBI sa inyong pag-iimbestiga?*

Mr. Matibag. *Doon ko na po, doon na po natin hinihiwalay—*

The Presiding Officer. Before the witness answers, kindly wind up after that question, Senator-Judge Joel.

Senator-Judge Villanueva. Yes.

The Presiding Officer. Witness may answer.

Mr. Matibag. *Doon nga po natin hinihiwalay iyong imbestigasyon na nangyari doon sa grave threat at inciting to sedition. Pumasok na po tayo doon sa pag-iimbestiga kung saan hinahanap natin iyong kinausap. At bakit po tayo naniniwala na may kinausap? Sapagkat doon sa pronouncement po mismo ng Bise Presidente, na may kinausap siya at pumayag. Ang naging basehan nga po dito, iyong akin pong testimonya kanina na iyong five-point field po na pinagbabasehan ng National Threat Assessment Center na ginagamit po ng Secret Service po ng Amerika.*

Senator-Judge Villanueva. *Okay po. Siguro hihilingin ko na lang, Mr. Presiding Officer, at sa ating witness, kung matapos po iyong inyong ongoing at sinasabi n'yo nga pong continuing investigation, ay ma-inform lang din po ang Korteng ito.*

Maraming salamat, Your Honors, Mr. Presiding Officer.

QUESTIONS OF SENATOR-JUDGE TULFO (R)

The Presiding Officer. Thank you, Senator-Judge Villanueva.

Senator-Judge Raffy Tulfo is recognized for his interjections and interventions.

You have two minutes, Sir, for your questions. You may proceed when you're ready.

Senator-Judge Tulfo (R). Mr. Witness, are you familiar with the case of Ronnel Mas?

Mr. Matibag. *Opo, napanood ko po iyan.*

Senator-Judge Tulfo (R). At that time, *hindi pa kayo ang NBI Director?*

Mr. Matibag. *Opo.*

Senator-Judge Tulfo (R). And you are not connected to the NBI whatsoever?

Mr. Matibag. *Opo.*

Senator-Judge Tulfo (R). So, tell us briefly *dito sa kaso ni Ronnel Mas.*

Mr. Matibag. *Sa pagkaalala ko po rito, itong si Ronnel Mas ay isang guro, na kung saan siya ay nagsabi na kung sino ang papatay sa dating Pangulong Rodrigo Roa Duterte ay papabayaan niya ng P50 million. At sa pagkakaalala ko po, ang National Bureau of Investigation rin po ang tumugis at humuli sa kaniya, particularly po ang amin pong opisina sa Region I. At siya po ay kinasuhan po ng pagbabanta, at itinuring po na ang threat niya ay isang malaking threat po, hindi lamang sa dating Pangulo kundi po sa atin pong national security.*

Senator-Judge Tulfo (R). In other words, *pinaylan (file) siya ng case na inciting to sedition, and he was arrested warrantless. It was a warrantless arrest, right?*

Mr. Matibag. *Tama po.*

Senator-Judge Tulfo (R). *Okay. So, isang guro, nagbanta sa dating Pangulo, agad-agad inaresto ng walang warrant.*

Now, itong si VP Sara, si Vice President Sara Duterte na nagbanta rin kay Pangulong Marcos, anong difference ng dalawa?

Mr. Matibag. *Well, ang pagkakaiba po nila, itong si Ronnel Mas ay isang guro; si Vice President, isa naman pong vice president. At siguro po, ito ang naging konsiderasyon kung bakit hindi siya inaresto agad.*

Senator-Judge Tulfo (R). *So, ibig sabihin, ang NBI pala ay tumitingin sa tinatawag na special treatment?*

Mr. Matibag. *I cannot say—*

Senator-Judge Tulfo (R). *So, ibig sabihin, hindi pala patas ang NBI? Bakit noong panahon ni Pangulong Duterte, isang guro na nagsabing may patong sa ulo na P50 million si dating Pangulong Duterte, kung sino man makapagpapatay sa kaniya, agad-agad inaresto ng walang warrant for arrest. And then, ito naman si VP Sara, na sabi n'yo, allegedly, nagbigay ng death threat against President Marcos at hindi inaresto.*

Mr. Matibag. *I cannot speak for the NBI at that time, Your Honor, sapagkat iyong mga pangyayari pong iyan, wala naman ako sa NBI pa po. Subalit ang maaari ko pong ibahagi sa inyo, if mamarapatin po ninyo, iyon na nga pong aking pakikipagtalastasan sa amin pong mga foreign counterparts, na akin ding napag-aralan at sinasabi nila, na sa kanilang jurisdiction, kung mayroong isang pagbabanta na ginawa ng bise presidente ay maaaring agad na ikulong at matanggal kaagad po sa puwesto.*

Pero again, respectfully, I cannot speak for the NBI noon po at saka iyong pangyayari po noon po.

Senator-Judge Tulfo (R). *Okay. Anong ibig sabihin po, para sa inyo, ni Mayor Baste, noong sinabi niya sa isang RAGE Coalition gathering, "Isang ulo lang naman ang kailangan namin at ang ulo ni BBM or Bongbong Marcos"? What does it mean to you?*

Mr. Matibag. *Well, kagaya po ng aking naging testimonya, trinato po namin ito na isang threat, isang banta sa ating Pangulo, that transcends also to a threat to our national security.*

Senator-Judge Tulfo (R). *So, is it the same as saying, may patong sa ulo ang isang tao, like a reward, whoever can capture this person, dead or alive, or something to that effect?*

Mr. Matibag. *It could be that way, or it could be in many ways. Pero ang sa amin po, ang aming naging interpretasyon nga diyan, isinama po namin ito sa maraming banta sa seguridad ng ating Pangulo at sa seguridad po ng ating bansa.*

Senator-Judge Tulfo (R). *So, again, kung itinuturing n'yong threat itong salita na binitawan ni Baste or Mayor Baste Duterte against President Bongbong Marcos, anong difference niyan doon sa ibinigay naman noon na threat ni, iyong teacher na si Ronnel Mas kay dating Pangulong Duterte?*

Mr. Matibag. *Iyon pong naging banta ni Mayor Baste Duterte ay ipinasok po natin sa mas mahaba pang pagsusuri, kaya po isinama natin ito po doon sa ating continuing threat assessment po.*

Senator-Judge Tulfo (R). *So, why was he not arrested, tulad ng nangyari sa teacher na si Ronnel Mas?*

Mr. Matibag. *Ang warrantless arrest po kasi, kagaya ng nangyari kay Ronnel Mas, dahil naging warrantless arrest, siya po ay na-dismiss ang kaso. So, iyan din po iyong iniingatan namin, na kung kami ay gagawa ng warrantless arrest ay maaari pong ma-dismiss ang kaso. Ngayon po, kasama po iyan sa case build-up namin na maaaring magdulot po ng pagpa-file po ng nararapat po na kaso.*

Senator-Judge Tulfo (R). *Thank you, Mr. Witness.*



QUESTIONS OF SENATOR-JUDGE HONTIVEROS

The Presiding Officer. Thank you, Senator-Judge Raffy Tulfo.

Senator-Judge Risa Hontiveros is recognized. You may proceed, Ma'am, when you're ready, and you have two minutes.

Senator-Judge Hontiveros. *Salamat po, Mr. Presiding Officer.*

Mr. Witness, *noong nakaraang hearing po, paulit-ulit na binabanggit ang pangalan ni Princess Maui. Sino po ba iyong taong iyan? Background po niya? Profile po niya?*

Mr. Matibag. *Sa pagkakaalam ko, isa po siyang vlogger.*

Senator-Judge Hontiveros. *Ano po'ng background niya? Paano siya naging vlogger?*

Mr. Matibag. *Well, base po doon sa patuloy na pagmo-monitor, siya po ay isang kritiko na madalas nagba-vlog at nagpo-promote po ng iyon pong tinatawag natin—at alam naman ng lahat—na DDS po.*

Senator-Judge Hontiveros. *I see. At ano po iyong—bukod doon na vlogger siya doon sa panig na iyon, mayroon pa bang ibang profile itong Princess Maui bilang vlogger?*

Mr. Matibag. *Sa katunayan po, I was informed that she or he was invited to the NBI pero hindi po siya dumalo. At iyan po ay kasama rin po sa patuloy na sinusubaybayan po ng atin pong Cyber Crime Division po.*

Senator-Judge Hontiveros. *All right, salamat po.*

Ngayon, nabanggit rin po iyong Oplan Romanov. Ang sabi po ni Attorney Lotoc, ang alam niya ay banta ito sa Presidente at pamilya nila na nagmula kay Mayor Sebastian Duterte. Sa kabilang banda, ayon naman kay Princess Maui, ay banta daw po iyan sa buhay ni Bise Presidente at pamilyang Duterte. Pareho po ba iyang iniimbestigahan ng NBI?

Mr. Matibag. *Ang alam ko po, na-cover na po ng NBI noon iyong imbestigasyon doon sa alegasyon na iyong Oplan Romanov ay banta sa Bise Presidente dahil nagpadala nga po ng subpoena kay Princess Maui at kay Vice President subalit, unfortunately, hindi po yata sila dumalo diyan. Pero noong iyan po aming sinusuri din, iyong binabanggit ninyo po Romanov, I think that was the January 18, 2024 na pahayag po ni Mayor Baste Duterte na kung saan sinabi niya, "Let me tell you this, Mr. Bongbong Marcos," hindi ko lang po alam ang exact words, but I remember that, "before you go to sleep, remember the Romanovs and the Mussolinis and what happened to the Marcos family in 1986." Iyon po iyong nakita natin na isa na nagli-link po diyan sa Romanov. Kaya, recently, narinig ko rin po iyong dating director na sinasabi niya na ang Oplan Romanov ay tunay na banta sa pamilya ng mga Marcoses at hindi po kay Vice President Sara Duterte.*

Senator-Judge Hontiveros. *So, base po sa imbestigasyon ng NBI, ang Oplan Romanov po ba ay banta nga sa buhay ng Presidente o sa buhay ng Bise Presidente?*

Mr. Matibag. *Your Honor, iyan po ay kasama pa rin sa aming tinutukoy po ngayon. Kaya po mayroon kaming task force, kasama po yan sa aming continuing surveillance at active investigation po.*

Senator-Judge Hontiveros. *All right. May actionable intelligence po ba ang NBI na posibleng patuloy pa rin ang panganib sa buhay ng Presidente doon sa linyang iyon ng inyong imbestigasyon?*

Mr. Matibag. *Tama po iyan sapagkat binanggit ko nga po kanina iyong ginagamit sa National Threat Assessment Center po ng Secret Service ng Amerika ay pumapasok po doon iyong mga obserbasyon na yan. At katunayan po, lalo pang lumawig o lumawak iyong mga banta sa Presidente na amin pong namo-monitor. Pati po ang mga ordinaryong tao ngayon ay napakadali po na magbigay ng banta. At para sa amin po, hindi lang naman po iyong banta sa ating Pangulo ang aming binabantayan, kundi iyong pong bantayan natin ang kaligtasan ng ating mga kababayan at siguraduhin natin na ang democratic process po ay umiiral sa atin base sa atin pong Konstitusyon po.*



Senator-Judge Hontiveros. *At sa kabilang banda naman po, may actionable intelligence din po ba ang NBI na may totoong banta sa buhay naman ng Bise Presidente?*

Mr. Matibag. *Sa ngayon po, hindi po namin tinitingnan kung totoong may actionable intel. Pero base po sa aming mandato, kasama po sa mandato namin na proteksyunan po ang seguridad ng Pangulo, ng Bise Presidente, ng Senate President, ng Speaker of the House, at Chief Justice. Kaya kung wala man pong task force, tuloy-tuloy naman po ang amin pong pagmonitor dito.*

Senator-Judge Hontiveros. *Pero sa ngayon, kung isusuma po natin, may actionable intelligence na may patuloy na panganib sa buhay ng Presidente, pero wala pang actionable intelligence na may banta din naman sa buhay ng Bise Presidente?*

Mr. Matibag. *Malinaw po iyon sapagkat lumabas lang naman po iyon doon sa sinasabi nitong si Princess Maui.*

Senator-Judge Hontiveros. *Salamat po, Mr. Witness; salamat po, Mr. Presiding Officer.*

QUESTIONS OF SENATE PRESIDENT GATCHALIAN

The Presiding Officer. Thank you, Senator-Judge Risa Hontiveros. Next to interject and make his interventions will be our Senate President Sherwin Gatchalian. He is recognized. You have two minutes, Sir. You may proceed when you're ready.

The Senate President. *Maraming salamat, Mr. Presiding Officer.*

Tama po ba, Director Matibag, na after one year and eight months, wala pang nakikita ang NBI na nakontratang papatay?

Mr. Matibag. *Wala pa pong specific na personalidad.*

The Senate President. *Wala pang specific na nakikita.*

Mr. Matibag. *Opo.*

The Senate President. *Pero kanina, narinig ko sa inyong testimonya na may sinabi kayong hindi banta kundi isang plano talaga. So, may plano.*

Mr. Matibag. *Iyon po ang base sa mismong pahayag ng atin pong Bise Presidente na siya ay may kinausap at iyong kinausap niya ay pumayag para patayin po ang mga taong nabanggit. Para sa akin po, this is actually a public confession na dahil sa sinabi niyang ito, nalagay po sa alanganin hindi lamang po ang seguridad ng Presidente kundi po ang ating pambansang seguridad.*

The Senate President. *Sino ang ka-plano niya? Kung may magpaplano, obviously, may kasama siya sa pagpaplano. Sino na ang natukoy ng NBI na kasama sa pagpaplano?*

Mr. Matibag. *Iyon na po iyong binabanggit namin na persons of interest based on the officers' intel and the human intel po na ibinabato po sa amin, na iyan po ay reported po sa atin ng atin pong task force na itinayo po.*

The Senate President. *Itong persons of interest, kasama sa pagpaplano at inamin sa inyo na mayroong pagpaplanong ginagawa para pumatay?*

Mr. Matibag. *Mayroon po silang impormasyon na magtuturo po dito sa pagpaplano.*

The Senate President. *Hindi sila iyong kasama sa pagpaplanong pumatay?*

Mr. Matibag. *Sa ngayon po, doon po—*

The Senate President. *Magtuturo lang sila?*

Mr. Matibag. *—doon po sa ibang persons of interest, mayroon po kaming kinokonsidera doon na maaaring siya po ang kausap mismo ng Bise Presidente.*

The Senate President. *Ano ang ebidensya na magpapatunay na kasama siya sa pagpaplano o kaya niyang ituro iyong pagpaplano?*

Mr. Matibag. *Iyan po ang ating kukunin na impormasyon pa sa atin pong mga persons of interest, na atin pong sinu-surveillance. Sa katunayan po, as we speak, tuloy-tuloy po iyong ating pakikipag-usap pati po doon sa mga malalapit sa taong akin pong binabanggit po na persons of interest.*

The Senate President. So, tuloy-tuloy pa ngayon ang inyong investigation?

Mr. Matibag. *Tama po.*

The Senate President. *Ngayon, nakita ko na bumuo kayo ng task force. Iyang task force, temporary in nature lang iyan, 'di ba? Kailan matatapos ang inyong imbestigasyon? Dahil nga nasabi ko, one year and eight months na ito, ngayon may bagong task force. So, kailan matatapos itong investigation?*

Mr. Matibag. *Ito po ay matatapos finally kapag atin pong na-locate, specifically, ang taong kausap ng Bise Presidente. At iyon naman pong task force, bukod po sa seguridad ng Presidente, we are also guarding po na walang gulo, na iyong pong mga destabilization ay atin din pong mabuwag.*

The Senate President. *Pero, kailan matatapos iyong investigation para matukoy kung sino iyong nakontrata?*

Mr. Matibag. Only in the time po na atin pong matukoy na finally iyong atin pong—

The Senate President. Kailan nga iyon? Do you have a time frame?

Mr. Matibag. I cannot—

The Senate President. *Base doon sa pag-uusap niyo dito sa persons of interest ninyo, kailan? Kasi, like I said, November 2024 ito, may bagong task force ngayon, but in your opinion, gusto ko kasi malaman, malapit na ba o malayo pa?*

Mr. Matibag. I cannot give the exact time, but, the task force was established on April 16 and it's doing great progress po. So, sa palagay ko po, malapit na rin natin itong mahanap, itong taong atin pong tinutukoy.

The Senate President. Can you give me an explanation ano iyong “great progress?”

Mr. Matibag. *Marami pong report na pumasok po sa atin at may mga pangalan po talaga na na-identify na atin pong pinupuntahan po.*

The Senate President. And can you give me a time frame kung within three months, six months, ay matutukoy na itong kakontrata?

Mr. Matibag. As we go—

The Senate President. Can you give me a time frame? An indicative time frame?

Mr. Matibag. As we go on to the progress, probably po, within three to six months, magkakaroon po tayo ng mas malinaw po na data tungkol po dito.

The Senate President. But in three to six months, matutukoy na natin iyong kakontrata?

Mr. Matibag. *Iyon po ang ating inaasahan.*

The Senate President. In the meantime, nasabi ninyo kanina na merong kinetic force. Ito—ina-assume ko na may naiimpluwensiyahan, 'di ba? Sino na ho ang nakausap ninyo na naiimpluwensiyahan tungkol dito sa mga sinasabi ng Vice President at iyong iba pa?

Mr. Matibag. *May mga ilan na po kaming pinuntahan, at katunayan, may ilan na po kaming sinampahan na rin ng mga kaso at iyon pong mga nagbanta through social media ay atin na rin pong nakausap; at 'yung iba naman po ay sa ngayon ay kasalukuyang humaharap po sa imbestigasyon po.*

The Senate President. Last question. So, itong—dahil sa kanilang pananalita, nagkaroon ng kinetic force at naiimpluwensiyahan nito at base sa inyong—paano ninyo nasabi naiimpluwensiyahan itong mga taong ito?

Mr. Matibag. *Kagaya po noon aming mga nakausap, malinaw din po that they're always targeting the head of the President. Maiko-correlate po natin doon sa statement mismo ng Mayor at ng atin pong Bise Presidente po.*

The Senate President. *Maraming salamat, Mr. Presiding Officer.*

The Presiding Officer. Thank you, Mr. Senate President.

Will Senator-Judge Alan make an interjection, or will he make a manifestation regarding another matter?

Then the Presiding Officer will first recognize Senator-Judge Aquino for his interjections and interventions. You may proceed, Sir, when you're ready. You have two minutes.

QUESTION OF SENATOR-JUDGE AQUINO

Senator-Judge Aquino. Thank you, Mr. Presiding Officer.

Very quickly lang, Director Matibag. *Kapag sinasabi kasing "bukas pa ang isang imbestigasyon" posibleng mayroon, posibleng wala, 'di ba? Pero ito po, just one question: sa inyo pong professional assessment, anong porsiyento—what percentage—is the probability na mayroon ngang nakausap na tao ang Bise Presidente para gawin 'yung mga pagpatay? Sa inyo pong assessment—hindi n'yo pa po masasabi, may kailangan pa kayong ilang buwan—pero sa inyong assessment po ba, anong porsiyento po na mayroon talagang nakausap ang Vice President?*

Mr. Matibag. *Base po mismo sa pahayag ng Bise Presidente, nakasisiguro po na mayroong kinausap.*

Senator-Judge Aquino. *Anong percentage po, 70%?*

Mr. Matibag. *100% po, sapagkat siya na mismo ang nagsabi ng kaniyang plano na siya'y may kinausap ng papatay at pumayag 'yung papatay sa kanilang pag-uusap.*

Senator-Judge Aquino. *Maraming salamat, Mr. Presiding Officer.*

MANIFESTATION OF SENATOR-JUDGE CAYETANO (A)

Senator-Judge Cayetano (A) manifested that he had submitted a "*Written Continuing Objection to the Ruling of the Presiding Officer Dated 20 July 2026*" concerning the subpoenas taken up the previous trial day. He informed the Court that he received confirmation that the submission could no longer be included in the *Journal* and manifested his intention for it to form part of the record.

The Presiding Officer assured Senator-Judge Cayetano (A) that the objection would form part of the record, while the question of its inclusion in the *Journal* would be referred for resolution due to a technical issue.

Senator-Judge Cayetano (A) emphasized that his submission had been made within the prescribed period. The Presiding Officer thereafter stated that a motion for reconsideration of the approval of the *Journal* could be entertained.

RECONSIDERATION OF THE APPROVAL OF THE JOURNAL OF IMPEACHMENT TRIAL NO. 8

Upon motion of Senator-Judge Cayetano (A), there being no objection, the Court reconsidered the approval of the *Journal* of Impeachment Trial No. 8 (Monday, July 20, 2026) to allow the inclusion of his written explanation of objection to the ruling of the Presiding Officer, consistent with the inclusion of the explanations of Senator-Judges Villanueva, Marcos, Go, Villar (C), and Legarda.



APPROVAL OF THE JOURNAL AS AMENDED

Upon motion of Senator-Judge Cayetano (A), there being no objection, the Court dispensed with the reading of the *Journal* of Impeachment Trial No. 8 (Monday, July 20, 2026) and considered it approved, as amended, by including the manifestation of Senator-Judge Cayetano (A).

MANIFESTATION OF SENATOR-JUDGE VILLANUEVA

Senator-Judge Villanueva clarified that his manifestation regarding the subpoena was not an objection to the ruling of the Presiding Officer issued the previous day, but merely a request that his manifestation be included in the record.

QUESTIONS OF SENATOR-JUDGE CAYETANO (A)

Senator-Judge Cayetano (A). Good afternoon, Mr. Witness, Director, Attorney Matibag, schoolmate.

Mr. Matibag. Good afternoon, Sir, Your Honor.

Senator-Judge Cayetano (A). Just on that point *ni* Senator Bam. I understand that as a law enforcer, as an investigator, you have to take all threats seriously. I'll ask you the same questions I asked the two NBI officers, and I do understand they were not under your supervision during that time *dahil doon pa sila kay* Director Santiago. I won't ask all the questions, but *'yung*—you did review the whole video or just the portions relevant to the statement of the Vice President *na* “No joke, no joke,” *'yung* November 23?

Mr. Matibag. Your Honor, *napanood ko po 'yung buong* video, but you're correct, I focused mainly on the issue that is being investigated.

Senator-Judge Cayetano (A). So, simple question. *Paano naging* process, *kung anong* parts *ng* video *at ng* statement *niya ang paniniwalaan mo* or *ng* task force? So it's not personal. I mean, if you were in the task force or, as you said, you created a task force now *at* duty *ninyo 'yung* safety *ng* high government officials, *anong* process *ninyo kung anong* parts *ng* video *ang* *paniniwalaan ninyo at hindi?* *Ng* statements *niya*, what I meant.

Mr. Matibag. Well, *ang ginawa po natin diyan, doon po mismo sa konteksto ng kaniyang sinabi na humanap siya ng papatay at inutos niya na papatayin ang tatlong indibidwal, at iyon po ay pumayag 'yung papatay, at sinabi pa n'ya* “no joke,” *doon pa lamang po ay amin na pong nakita 'yung pong ating hinahanap po na mga puwede niyang pananagutan po sa batas.*

Senator-Judge Cayetano (A). Well, as an appointee of this government, as a lawyer, as an NBI Director, I see your point and I get that. But what I meant is that before that statement, *sabi kasi n'ya, “kung papatayin ako ay”—I mean, the record will bear out naman 'yung eksaktong sinabi niya.* So this is my paraphrase, but *ang pagkaintindi ko sa sinabi n'ya, kung papatayin ako, ito 'yung tatlong papatayin mo.* And *ang impression ko, pinagbibintangan n'ya 'yung tatlo na may plot against her. So iyon ang tanong ko doon sa two previous NBI Directors. If you're going to believe that she contracted or talked to—may kausap siya—if you're going to believe that may kausap siya at ipapapatay 'yung tatlo, will you not believe the previous noon sinabi niyang “Kung ako naman ang papatayin?”*

Mr. Matibag. *Hindi po ganoon, sapagkat ang tiningnan na lang nga po natin ay iyong kaniyang mismong pagbabanta, at sa amin po sa ngayon 'yung atin pong task force na nag-iimbestiga ay malinaw po na ang tinitingnan ay kung ano na ang nangyari dahil doon sa pagbabanta. At sinasabi nga po namin dahil po doon sa pagbabanta, ito po ay umabot na doon na po sa level na ang national security na taya na po, nakumpromiso na sapagkat marami na pong lumalabas—tuloy-tuloy na pagbabanta. So, doon na po natin ito tinitingnan.*

Senator-Judge Cayetano (A). In the same video, she mentioned massive corruption. But *wala pa diyan kasi 'yung “Mahiya kayo”* speech *at* flood control investigation. So same question,

Director. *Naiintindihan ko iyon 'yung pinaniwalaan n'yo, may kausap siya, "no joke, no joke." Pero ang question ko, paano 'yung proseso ninyo or ano ang naging thinking ninyo na itong papatayin 'yung Presidente pinaniniwalaan ko, pero itong siya ang papatayin, hindi ko paniniwalaan, at itong graft and corruption, hindi ko rin paniniwalaan. What's the process there?*

Mr. Matibag. *Well, ang proseso po diyan ay tiningnan naman natin doon po sa pagbabanta n'ya, kung sa grave threat po 'yung pag-uusapan natin, alam naman po natin na 'yung threat na iyan is absolute dahil nandoon naman po 'yung elemento. Doon naman po sa sinasabi namin na tuloy-tuloy na pag-iimbestiga, dahil ito nga po ay umabot na sa level na naapektuhan ang national security, we take into context 'yung mismong sinabi n'ya na mayroon siyang kinausap at 'yung kaniyang kinausap ay pumayag. Iyon pong kaniyang sinasabi na kung papatayin ako, that is supposed to be na statement n'ya, sa amin pong pananaw, just to cover 'yung kaniyang pagsasabi na siya'y may kinausap para patayin ang ating Pangulo.*

Senator-Judge Cayetano (A). *Okay. I won't argue with you. Iyon 'yung proseso ninyo. But, in the meantime, there were three statements—massive corruption, kung papatayin siya, patayin. So focusing doon sa patayin 'yung tatlo, kung papatayin siya, in the meantime, tumotoo 'yung massive corruption, lumabas afterwards, 'di ba?*

So just one other point: in the beginning of the Prosecution's questions to you, and I think the Defense had a question about, "What can you investigate?" Can you repeat your answer? As the NBI Director and the NBI can investigate, did you say all crimes or 'yung mga—

Mr. Matibag. *Lahat po ng mga pumapasok sa amin na mga krimen ay amin pong puwedeng imbestigahan, motu proprio. Ganoon din po 'yung mga krimen na mayroon pong nagreklamo na araw-araw na may pumupunta sa aming tanggapan para magreklamo, ito po'y aming iniimbestigahan. At mayroon din pong mga iniimbestigahan kami na inutos po ng Department of Justice. And, by the very nature, under the Constitution po ng Office of the Ombudsman, they can delegate the National Bureau of Investigation to investigate.*

Senator-Judge Cayetano (A). *So, as a general rule, you can investigate any crime, motu proprio?*

Mr. Matibag. *More than the investigation of the crime is also the protection of our nationals. Saka po, siyempre, siguraduhing na-promote ang ating demokrasya hindi nakokompromiso.*

Senator-Judge Cayetano (A). *Yes, but sa investigation lang. So you can investigate any crime.*

Mr. Matibag. *Tama po.*

Senator-Judge Cayetano (A). *Isn't that against Republic Act 10867? The statute of power, the act reorganizing and modernizing the National Bureau of Investigation. Sabi dito sa inyong Section 4, "the NBI shall have the following powers and functions: Undertake and investigate the detection of crimes and offenses enumerated under Section 5." Section 5, may enumeration: human trafficking cases in all airports, extrajudicial or extra-legal killings committed by state's security forces against media practitioners and activists, killings of justices and judges, violation of Republic Act No. 10175, otherwise known as the Cyber Crime Prevention Act, cases referred by the Inter-Agency Anti-Graft Coordinating Councils, and violations of the Anti-Dummy Law. Tapos, cases involving threats to security or assaults against persons of the President, Vice President, Senate President, Speaker of the House, and Chief Justice of the Supreme Court. Walang congressman, senators, unlike judges, lahat. Transnational crimes, pursuant to existing international agreements, identification of dead/victims in case of mass fatality incidents caused by natural disasters, and violation of commercial, economic, and financial or white-collar crimes... So, exclusively 'yung enumeration. Then, provided, however, if—that the President or Secretary of Justice may direct the NBI to undertake investigation of any crime when public interest so requires.*

So, *hindi ba limited ang puwede ninyong imbestigahan, except that ang DOJ at President ang puwedeng mag-atas? That's my last question.*

The Presiding Officer. *Yes. Kindly wind up.*

Witness may answer.

Mr. Matibag. Yes. *Iyon pong ating listahan na iyan, tama po, nandiyan, subalit hindi naman po sinasabi na nalilimita diyan ang amin pong pag-iimbestiga. Sapagkat malinaw po ang mandato ng NBI that we are the primary investigating body. Iyon lamang nga po, mayroong mga kaso, kung ito po ay bumagsak na sa jurisdiction, halimbawa, ng PNP, na kanilang iniimbestigahan, we can still help and coordinate in the same way na kung kami po'y nag-iimbestiga at ang PNP ay puwede rin pong tumulong sa amin.*

Senator-Judge Cayetano (A). Well, Director, if that's your interpretation, that goes against what they taught us in law school, *na pag exclusive 'yung enumeration, you cannot add.* And at the end of the enumeration of Section 5, *nakalagay nga dito, "However, the President and the Secretary of Justice may direct you to undertake investigations of any crime."* Why do they have to say any crime if you can do it any crime, if you can investigate any crime, after all? It seems that you're expanding your jurisdiction by yourselves.

Mr. Matibag. Well, we've been doing *po iyan, sapagkat* we have also our primary role, to make sure that law and order is being promoted through the NBI *din po.*

Senator-Judge Cayetano (A). Thank you.

The Presiding Officer. Senator Cayetano (A), can avail of the second round later or tomorrow, since I believe Attorney Matibag—Director Matibag, forgive me, will still be here for the continuation of the cross.

Senator-Judge Raffy Tulfo, thereafter, Senator-Judge Pangilinan.

Senator-Judge Raffy Tulfo, you have, I believe, one question, right?

QUESTIONS OF SENATOR-JUDGE TULFO (R)

Senator-Judge Tulfo (R). Actually, two questions, Your Honor.

The Presiding Officer. You may proceed, Sir. You have two minutes, actually.

Senator-Judge Tulfo (R). *Ako na-stress na ako kanina, limang minuto ako.* But anyway, going back to Ronnel Mas, what was the justification of the NBI back then when Mr. Ronnel Mas was arrested without warrant?

Mr. Matibag. Well, we considered *po* that the threat is live, and, *alam ninyo nga po, 'yung sinasabi na lahat po ng threat ay hindi po—ito po ay siniseryoso.*

Senator-Judge Tulfo (R). So, *may nag-order na arestuhin si Ronnel Mas?*

Mr. Matibag. I don't have that recollection. *Hindi ko po alam.* But the arrest was made by the regional office *po*, Region I *po.*

Senator-Judge Tulfo (R). So would you admit now *na illegal 'yung ginawa ng NBI noon na pag-aresto kay Ronnel Mas na walang warrant?*

Mr. Matibag. Well, *si Ronnel Mas po* was released, precisely the reason why *mayroon pong lapses po doon sa procedure.*

Senator-Judge Tulfo (R). Okay. Would you also consider *na* the fact *na mayroong ginawang pagbabanta si Baste Duterte na, simula dito kay Ronnel Mas, na dapat umaksiyon din ang NBI tulad ng pag-aksiyon nila sa isang guro?*

Mr. Matibag. *Katunayan, iyan nga po 'yung aking binabanggit na tuloy-tuloy po 'yung imbestigasyon. Sapagkat alam n'yo po, 'yung warrantless arrest, lesson nga po diyan kay Ronnel Mas na dapat po kasi immediate po iyon pong pag-aresto.'Pag iyan po ay lumipas na, hindi na po tayo puwedeng mag-aresto under the law sapagkat papasok po ito sa illegal arrest.*

Senator-Judge Tulfo (R). Last *na lamang.* So, make a comparison *ngayon.* *Bakit 'yung isang guro na nagbanta kay dating Pangulong Duterte, agad inaresto, at bakit itong isang Vice President na nagbanta kay Pangulong Bongbong Marcos, hindi inaresto ng NBI?*

Mr. Matibag. I can only second-guess *po na maaaring may pagkakaiba po ng proseso o tinitingnan po ang administrasyon ng panahon na iyon at ng panahon na ngayon.*

Senator-Judge Tulfo (R). *Maraming salamat po.*

By

QUESTIONS OF SENATOR-JUDGE PANGILINAN

The Presiding Officer. Thank you, Senator-Judge Raffy Tulfo.

Senator-Judge Pangilinan is recognized. You may proceed with your intervention, Sir. You have two minutes.

Senator-Judge Pangilinan. Thank you, Mr. Presiding Officer. *Magandang gabi, G. Direktor. Kanina tinaanong sa inyo, 'no, 'yung usapin noong trust rating, na mas mataas 'yung trust rating ng Vice President kaysa sa Presidente. Bilang abogado, tinanong sa iyo ito kanina. May kinalaman ba ang approval sa trust? Kung mas mataas ang trust rating, ibig sabihin, wala nang betrayal of the public trust?*

Mr. Matibag. Well, *wala po. Sapagkat sabi ko nga, sa akin pong pananaw, sa akin din pong kaunting esperyensiya bilang isang political adviser din po, 'yung atin pong mga survey is only a snapshot ng mga puwedeng nangyayari. Alam naman po natin, ang tinaanong diyan, iilan lang, o pipili ng lugar kung saan po gagawin 'yung survey. Hindi po natin puwede itong maging basehan sa pag-imbestiga. Sapagkat pagka ganyan po 'yung ating ginawa, magkakaroon po tayo ng problema sapagkat ang mangyayari sa atin diyan, 'yung tinitingnan pala natin ay 'yung numero. At, without accusing anyone, alam naman natin, there are surveys that can be manipulated po.*

Senator-Judge Pangilinan. Having said that, *kaya ko lang tinanong iyon, kasi baka 'yung mga nakikinig nating mga kababayan ay malito, dahil hindi ba tamang sabihin na iba 'yung trust rating, iba 'yung betrayal of the public trust?*

Mr. Matibag. *Tama po. Iyong trust rating po ay base sa numero, dahil sa survey. Iyong betrayal of public trust, malinaw naman po iyan na nakasaad sa Konstitusyon na ito ay isang basehan ng impeachment. At saan po pumapasok ang betrayal of public trust? Pag mayroon ka pong ginawa na pag-violate, not necessarily criminal, hindi kailangan ng conviction, kundi sinasabi po, pag tiningnan natin 'yung discussion po ng ating constitutional committee nang ginawa iyan, binabanggit nga po diyan 'yung betrayal of public trust, 'yung hindi mo pagtupad sa iyong oath of office, that will qualify as a betrayal of public trust.*

Senator-Judge Pangilinan. In other words, negative 'yung trust rating mo, o 100% 'yung trust rating mo, base sa batas, base sa Konstitusyon, puwede kang ma-convict. Whether negative or positive trust rating, puwede ka pa ring ma-convict o ma-acquit depende sa ebidensiya sa usapin ng betrayal of the public trust.

Mr. Matibag. *Tama po. Wala pong kinalaman ang survey on the trust rating kundi kung ano po ang ebidensiya na ipinasok po sa atin pong Impeachment Court.*

Senator-Judge Pangilinan. *Maraming salamat.*

The Presiding Officer. Senator-Judge Pia Cayetano is recognized for her interjections and interventions. You may proceed, Ma'am. When you're ready, and you have two minutes.

QUESTIONS OF SENATOR-JUDGE CAYETANO (P)

Senator-Judge Cayetano (P). For the Prosecution, do you consider Lascañas unimportant witness for you? For the Prosecution.

Representative Luistro. With all due respect, Your Honor, the purpose of the testimony is to present what transpired during the investigation of the special task force. As to whether or not what probative value it holds, it is not part, actually, of the decision of the prosecution, as what we are intending to do here is to present only what happened during the investigation of the NBI, Your Honor.

Senator-Judge Cayetano (P). Mr. Presiding Officer, rules of evidence are very clear. You either present a witness who provides your testimony, or you present a document. And in terms of documents, Rule 132, Section 19 says there are two classes of documents: public documents and private documents. Included in public documents are documents acknowledged before a notary

public. *Iyong pinakitang* document is not acknowledged by a notary public. *Puwede naman* din ang private document, that's the other class. If it can be shown and authenticated in any of the following manner: the person saw the document executed or written. *Nakita ba ng witness mo na sinulat iyon? Nakita ba niya?*

Representative Luistro. Your Honor, we can—

Senator-Judge Cayetano (P). No, please answer my question.

Representative Luistro. No, Your Honor.

Senator-Judge Cayetano (P). The next manner of authenticating: by evidence of the genuineness of the signature or handwriting of the maker. The defense said *ni walang* original signature *doon*. Do you disagree with that?

Representative Luistro. We don't, Your Honor.

Senator-Judge Cayetano (P). Okay. And the third: by other evidence showing its due execution or authenticity. Did you provide?

Representative Luistro. No, Your Honor.

Senator-Judge Cayetano (P). Okay. So *simple lang*, Mr. Presiding Officer. We're trying to prove something by showing a document that any law student— even *iyong mga kababayan natin na nakikinig na ngayon na ang dami nang alam sa* procedure will tell you *na hindi* acceptable *iyon*. And with all due respect, *katulad din noong kahapon na humingi ako ng payo sa inyo*, again, I will not name names, we had a discussion in caucus *na you cannot unsee what you see*. You cannot unhear what you hear. So, *pinalabas iyon*. *Wala akong problema na palabasin iyon, pero* do your job. And present the proper witness and the proper documentation to do that. Do your job. I'm addressing this, Mr. Presiding Officer, to ask us a Body. *Kasi hindi tama iyon*. *Magdedesisyon tayo*, you warn us *pero pinabayaan natin na makita iyon*. Minamarkahan pa. Submarkings. What's the purpose of all that?

Representative Luistro. May I respond, Your Honor?

Senator-Judge Cayetano (P). Not really.

The Presiding Officer. I don't believe there was a question.

Senator-Judge Cayetano (P). Because I already answered—I already asked you the questions, and you had a chance to respond. Yes.

The Presiding Officer. There was no question poised, I was telling the Lead Prosecutor.

Senator-Judge Cayetano (P). I move to my next point, Mr. Presiding Officer.

Our jurisprudence is very clear. A witness must be competent and credible. *Hindi ko na babasahin lahat iyong jurisprudence natin diyan dahil kompleto na iyong record natin diyan*. But there is also included in our rules, Rule 132 on the Rules of Evidence, and I'll read it. "A witness may be impeached by the party against whom he or she was called by contradictory evidence, by evidence that his or her general reputation for truth, honesty, or integrity is bad, or by evidence that he or she has made at other times statements inconsistent with his or her present testimony." So, this is the Rules, *siguro* we can well, I'm reading the Rules, so we can take notice of this that this is what our Rules say, and I don't think anyone will contradict that.

Again, there are lots of cases supporting this. So, I just want to point out, that—I'm just looking for my notes. Sorry, with the indulgence of the Body, I am just looking for my notes because I want to be accurate in my next statement that I'm going to read into the record.

The Presiding Officer. If the lady cannot locate it, she may avail of her time again tomorrow since Director Matibag and the counsel for the parties will be here.

Senator-Judge Cayetano (P). *Puwede naman*, but if you give me a few more seconds, I might be able to dispose of this issue, Mr. Presiding Officer. Okay. I won't delay... I can paraphrase it, but I think it would be best if I look at the record. So I will just avail, anyway the witness will be there.

SUGGESTION OF THE PRESIDING OFFICER

The Presiding Officer suggested that Senator-Judge Cayetano (P) continue her intervention during the following day's proceedings, after the Counsel for the Respondent shall have completed the cross-examination of NBI Director Matibag. He added that all other senator-judges would have the opportunity to raise their interventions after the cross-examination, redirect, and any re-cross examination.

ADMINISTRATIVE MATTERS

1. Upon the request of Atty. Vinluan, the Presiding Officer directed the Prosecution to provide the Counsel for the Respondent copies of the Lascañas document and Administrative Order No. 11 signed by Director Matibag and dated April 16, 2026.
2. The Presiding Officer noted that the Impeachment Court had received requests for subpoenas *ad testificandum* for Ms. Marivic Pareja, and for Mr. Roderick C. Wamil and Ms. Eileen Mae Del Ocampo of the Commission on Audit, but would defer action thereon.
3. As to the subpoenas *ad testificandum* and *duces tecum* for Ms. Violeta Constantino and Ms. Nenita Camposano, the Presiding Officer said that the same were being recalled and would be reissued at a later date, thus, Ms Constantino and Ms Camposano need not appear before the Impeachment Court the following day.
4. Responding to Senator-Judge Zubiri's inquiry, the Presiding Officer explained that the subpoenas had been temporarily withdrawn because the testimony of Director Matibag was expected to continue and would likely not conclude the following day.
5. The Presiding Officer announced, as agreed upon by the senator-judges during caucus, that there would be no impeachment trials on Monday, July 27, due to the President's State of the Nation Address (SONA), and on Tuesday, July 28, to allow the Minority senators to prepare and deliver their traditional contra-SONA; the trial proceedings would resume on Wednesday, July 29, from 10:00 a.m. to 3:00 p.m., after which the Senate would convene in regular session at 4:00 p.m. He further announced that beginning in August, impeachment proceedings would be held every Monday to Wednesday, from 10:00 a.m. to 3:00 p.m.
6. The Presiding Officer also instructed Director Matibag to return the following day at 2:00 p.m. to continue his testimony, including the respondent's cross-examination, any redirect and recross examinations, and questions from the senator-judges.

ADJOURNMENT OF THE IMPEACHMENT TRIAL

The Presiding Officer declared the impeachment trial adjourned until two o'clock in the afternoon of the following day.

It was 6:53 p.m.

I hereby certify to the correctness of the foregoing.

Approved on July 22, 2026

Atty. RENATO N. BANTUG JR.
Clerk of Court

